

Message 1 of 167

RE: Comanche Request, Phase II

Sender	rus.woody@enron.com
Recipients	['jenny.rub@enron.com', 'michelle.cash@enron.com', 'scott.tholan@enron.com', 'david.oxley@enron.com']
File	cash-m/inbox/345.

Jenny - Thanks for your help with Comanche. As a result of some of the earlier work we are now interested in further review of a few individuals. Could you have your team pull as much of the historical e-mail as possible for the following: terrie_james@enron.net Please advise how far back you can go with this. Also, we would like to include this name in a mailsweeper filter for future e-mail traffic.

We do want to compartment this a little from our overall Comanche effort so we ask that you help us with a second mailbox for this material. My boss, Scott Tholan, will be the lead on the second mailbox and needs your help getting started. Could you help him with the following: A.) Add the current mailbox, mbx_projcomm, to his desktop. B.) Create a second Comanche mailbox with the above filter and add to his desktop. C.) Install the pst viewing software on Scott's machine D.) Provide the above historical e-mail to Scott

Scott can be reached on 58889 should your team need to contact him. We are on a very short timeframe and need to accelerate this as soon as possible so we greatly appreciate your help. As always, thanks for your support and please let one of us know if you have any questions. Thanks, Rus

-----Original Message-----

From: Rub, Jenny Sent: Wednesday, November 21, 2001 1:15 PM To: Deleon, Roberto Cc: McAuliffe, Bob; Woody, Rus Subject: FW: Comanche Request Sensitivity: Confidential

Roberto, Please proceed. Thanks. JR -----Original Message----- From: Davies, Neil Sent: Wednesday, November 21, 2001 8:02 AM To: Woody, Rus; Rub, Jenny Subject: FW: Comanche Request Sensitivity: Confidential

fyi - not quite a one liner but !

-----Original Message-----

From: Oxley, David Sent: Tue 11/20/2001 8:12 PM To: Davies, Neil Cc: Subject: RE: Comanche Request

OK -----Original Message----- From: Davies, Neil Sent: Tuesday, November 20, 2001 6:41 PM To: Oxley, David Subject: FW: Comanche Request Sensitivity: Confidential

Can you approve ?

Need this to investigate some specific peoples activities

Neil

-----Original Message-----

From: Woody, Rus Sent: Tuesday, November 20, 2001 5:18 PM To: Davies, Neil Subject: FW: Comanche Request Sensitivity: Confidential

FYI... You might want to touch base with Oxley and see if he can send a one liner to Jenny to say "I approve." Give me a call if you have questions. Thanks, Rus -----Original Message----- From: Rub, Jenny Sent: Tuesday, November 20, 2001 11:18 AM To: Woody, Rus Cc: Oxley, David; Cash, Michelle Subject: RE: Comanche Request Sensitivity: Confidential

Rus, But this doesn't request PST.

David/Michelle, could one of you ok this? PST is software that allows viewing of these various file formats. We are very restricted with who has this software for obvious reasons so I need one of you to ok this request.

Thanks. JR

-----Original Message-----

From: Woody, Rus Sent: Tuesday, November 20, 2001 9:37 AM To: Rub, Jenny Subject: FW: Comanche Request
Sensitivity: Confidential

Please let me know what else you need to move this forward. Thanks, Rus

-----Original Message-----

From: Cash, Michelle Sent: Thursday, November 15, 2001 6:04 AM To: Woody, Rus; Rub, Jenny Cc: Oxley, David; Tholan, Scott Subject: RE: Comanche Request Sensitivity: Confidential

Jenny, as mentioned in my voice mail, this is fine with me. Thanks. Michelle

-----Original Message-----

From: Woody, Rus Sent: Wed 11/14/2001 6:12 PM To: Rub, Jenny Cc: Oxley, David; Cash, Michelle; Tholan, Scott Subject: Comanche Request

Jenny - Could you have your team run a CDR for the last three weeks with the following numbers and then add them to the master list?

(562) 290-8411 (800) 525-9082 (818) 725-3835 (818) 710-7013 (818) 464-6895 (480) 483-0496 (480) 483-2832 (650) 577-0100 (650) 577-0122 (513) 762-7633 (240) 368-1411 (713) 569-2881 (717) 560-2295 (415) 789-1422 (415) 435-6867 (609) 409-3380 (609) 409-2283 (615) 377-0786 (615) 309-0577

Also, could you add the associated e-mail address listed below to Mailsweeper filter? marketing@rayberndtson.com lavenderx@lavenderx.com clientsvcs@thefinexgroup.com tfgglobal@thefinexgroup.com jeff@eflinternational.com mailbox@execsearch.com ExecSearch@bason.com resumes@croweinn.es.com jcrowe@croweinn.es.com questions@jcoughlin.com general@cutergroup.com

Finally, please add the following to the master URL list for future Comanche WebTrends reports.
www.recruiterconnection.com www.dwic.com www.eliasassociates.com www.emeraldstaffing.com

Thanks and let me know if you have any questions, Rus

Rus Woody 1400 Smith Street, Suite 3387 Houston, TX 77002-7361 W (713) 853-4312 C (713) 410-2286
russell_woody@enron.net

Message 2 of 167

RE: Visa Lists

Sender	timothy.callahan@enron.com
Recipients	['kalen.pieper@enron.com', 'Kalen', 'mike.atkins@enron.com', 'Pieper', 'marla.barnard@enron.com']
File	cash-m/inbox/189.

Thanks, Kalen.

All,

The employee is to purchase their own one way, non-refundable ticket and submit for reimbursement to the following:

John Branigan or Willie Bailey The MI Group 3500 Claymoore Park Drive Houston, TX 77043 Tel 713 460 0192 or 1 800 223 7911 Fax 713 460 4382 www.themigroup.com john.branigan@themigroup.com willie.bailey@themigroup.com

Note that we will only reimburse up to the budgets provided by Travel Agency in The Park. The employee should contact The MI Group for the budgeted amount and use TAP, if they are having trouble meeting the budget.

Tickets will be reimbursed for the H-B visa holder only. Family members are not eligible, nor is any type of shipment for the H-1B holder unless they have an assignment letter covering additional relocation.

Regards,

Timothy J. Callahan Director, Global Employee Services Enron Corp 333 Clay Street, Suite 1047 Houston, Texas 77002
Telephone: 713.646.9565 Fax: 713.646.9501

-----Original Message-----

From: Pieper, Kalen Sent: Friday, December 21, 2001 9:27 AM To: Atkins, Mike; Barnard, Marla; Barrow, Cynthia; Becker, Melissa; Blaylock, John; Brown, Daniel; Callahan, Timothy; Cash, Michelle; Chatham, Gerry; Cook, Kathleen A.; Curless, Amanda; De Jesus, Frank; Doucet, Dawn; Fitzpatrick, Amy; Funkhouser, Shanna; Galloway, Sonja; Gilchrist, Scott; Gray, Judy; Hankamer, Cecilia; Hickok, Kim; James, Terrie; Jones, Robert W.- HR Exec; Joyce, Mary; Kearney, Julie; Kinningham, Laura; Labbe, Anne; Mayes, Fran; McLoughlin, Hector; Migliore, Todd; O'Brian, Angie; Olson, Cindy; O'rourke, Tim; Oxley, David; Pierce, Shelly; Russi, Estalee; Schaffer, Brian; Slone, Jeanie; Smith, Gary; Sullivan, Kriste; Tilney, Elizabeth; Vaughn, Ann; Walton, Sheila; Wheeler, Terrie; Yeverino, Norma Subject: FW: Visa Lists

Attached are the L1 and H1-B termed employees. Please identify your termed employees from the list (1st attachment and tab 1 are L1's, second attachment, tab 1 are H1-Bs)

Please let the H1-B termed employees know that we will pay for the employee's return ticket home (coach). Tim Callahan will let you know who to contact to reimburse them for the cost of the ticket.

For the L1 holders, Enron is only obligated to conform with the obligations in the transfer letter, so you will need to pull their letter from the file and review with Tim Callahan. -----Original Message----- From: Callahan, Timothy Sent: Wednesday, December 12, 2001 6:59 PM To: Dorn, Joe; O'rourke, Tim Cc: Pieper, Kalen Subject: FW: Visa Lists

Thanks, Joe.

Tim/Kalen, See the attachments.

Timothy J. Callahan Director, Global Employee Services Enron Corp 333 Clay Street, Suite 1047 Houston, Texas 77002
Telephone: 713.646.9565 Fax: 713.646.9501

-----Original Message-----

From: Dorn, Joe Sent: Wednesday, December 12, 2001 1:36 PM To: Callahan, Timothy Subject: RE: Visa Lists

Tim I have updated the attached files to include employees current status. I have highlighted in blue those employees where I could not find a match in our database by the name provided.

Let me know if you need anything else.

Joe D.

-----Original Message-----

From: Schultea, Kathryn Sent: Tuesday, December 11, 2001 7:23 PM To: Dorn, Joe Subject: FW: Visa Lists

Can you take care of this tomorrow and send to Tim Callahan directly? Thanks.

-----Original Message-----

From: Callahan, Timothy Sent: Tuesday, December 11, 2001 5:43 PM To: Schultea, Kathryn Cc: Pieper, Kalen Subject: Visa Lists

Please match these files with your termination list and let us know who has been terminated.

Timothy J. Callahan Director, Global Employee Services Enron Corp 333 Clay Street, Suite 1047 Houston, Texas 77002
Telephone: 713.646.9565 Fax: 713.646.9501

Message 3 of 167

RE: Voluntary Severance Program Info Packet

Sender	catherine.huynh@enron.com
Recipients	['lizzette.palmer@enron.com', 'drew.lynch@enron.com', 'joe.gold@enron.com', 'michelle.cash@enron.com', 'cather...]
File	cash-m/inbox/56.

Dear All,

I've reattached the FAQ Sheet as the original did not save from my hard drive.

Thanks Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: Huynh, Catherine Sent: Monday, October 22, 2001 2:01 AM To: Gold, Joe; Lynch, Drew; Parra, Marcelo; Bacon, Philip; Kingsley, Sophie Cc: Cash, Michelle; Palmer, Lizzette Subject: FW: Voluntary Severance Program Info Packet

Dear All:

The following program details have been reviewed/approved by our legal team and has been distributed to all our US employees to kick off the Metals NA Voluntary Separation Program. We are still finalizing legal due diligence to determine if a similar voluntary program can be rolled out in Montreal and should have an answer on this shortly.

Also attached for your reference is the Plan Document for the Voluntary Separation Program. This will be circulated for signatures in the next two days.

Please let me know if you have any questions. << File: 10.22.01 VSP Plan Doc.doc >>

Regards, Cathy Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: Huynh, Catherine Sent: Monday, October 22, 2001 1:49 AM To: DL-NYMetals - Enron Metals at 520 Madison; DL-NYMetals - St. Louis Enron Metals; DL-NYMetals - Chicago Enron Metals Cc: Simpkin, Georgina Subject: Voluntary Severance Program Info Packet

Further to the All Employee meeting on Thursday, October 18, 2001, the attached documents will provide you with details of how the Program is laid out.

Four documents are attached for your reference:

1) The Program Summary Description is provided to give you an overview. 2) The Payment Calculator will calculate an estimate of what your voluntary separation would be. 3) The FAQ Sheet will cover most of your general questions regarding the application process and post-separation questions. 4) Application for voluntary separation.

If you have any further questions after review of these documents please feel free to contact me. Certainly, if you would like to discuss your individual situation privately please contact me directly or Georgi Simpkin to schedule a meeting time in a private conference room.

<< File: 10.22.01 Program Summary Description.doc >> << File: Payment Calculator.xls >> << File: 10.22.01 FAQs.doc >> << File: Application.doc >>

Cathy Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

Message 4 of 167

FW: Benefit Q&A

Sender	catherine.huynh@enron.com
Recipients	['sandy.huseman@enron.com', 'michelle.cash@enron.com']
File	cash-m/deleted_items/44.

Sandy, please thank everyone for all their efforts.

Michelle, here is the Benefits piece for the FAQ sheet.

Regards, Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: Huseman, Sandy Sent: Thursday, October 18, 2001 3:28 PM To: Huynh, Catherine Cc: Rahaim, Chris; Ratcliff, Renee Subject: Benefit Q&A Sensitivity: Confidential

Cathy,

Here's our best effort at providing you answers to frequently asked questions. I've left a couple of blanks in health benefit answers for the appropriate name of the former employer, if you wouldn't mind filling in those blanks.

Sandy

-----Original Message-----

From: Huynh, Catherine Sent: Wednesday, October 17, 2001 6:17 PM To: Huseman, Sandy; Barrow, Cynthia Subject: RE: Enron Metals Employee Separations Sensitivity: Confidential

You guys are great!! Thanks. Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com <mailto:Catherine.Huynh@Enron.com>

-----Original Message-----

From: Huseman, Sandy Sent: Wednesday, October 17, 2001 6:31 PM To: Huynh, Catherine; Barrow, Cynthia Subject: RE: Enron Metals Employee Separations Sensitivity: Confidential

Cathy,

I've used one of our templates and will hopefully have something for you late tomorrow - Thursday, after it's reviewed by Exec Comp for stock options and other Benefits personnel for Savings Plan and Cash Balance.

Talk to you later...Sandy

-----Original Message-----

From: Huynh, Catherine Sent: Wednesday, October 17, 2001 1:03 PM To: Barrow, Cynthia; Huseman, Sandy Subject: Enron Metals Employee Separations Importance: High Sensitivity: Confidential

Cynthia, Sandy,

Starting next week we will be rolling a out a Voluntary Separation Program for all employees of Enron Metals located in North America, roughly 70 employees who are all participating in Enron Corp's benefits plans. The details of the this program are still being finalized by Michele Cash and her legal team, however, we will be communicating general details of the plan to our staff tomorrow afternoon.

One of the communication documents that we will be providing employees is an FAQ of what happens in the event of termination, i.e. what happens to my vacation, what happens to by benefits, etc. Do you have a similar Q&A document

used in the past for these purposes? Michele mentioned you may have something already prepared. I could use the information provided in our normal termination letters, but if you've got something more in summary form, please let me know.

Please keep in mind, that I'll need to finalize the FAQ sheet for roll out Friday.

Thanks Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com <mailto:Catherine.Huynh@Enron.com>

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RE: Benefit Q&A

Sender	lizzette.palmer@enron.com
Recipients	[michelle.cash@enron.com]
File	cash-m/deleted_items/42.

Twanda has the changes.

--Lizzette

-----Original Message-----

From: Cash, Michelle Sent: Friday, October 19, 2001 9:14 AM To: Sweet, Twanda Cc: Palmer, Lizzette Subject: FW: Benefit Q&A Sensitivity: Confidential

please add to Q&A. michelle

-----Original Message-----

From: Huynh, Catherine Sent: Thursday, October 18, 2001 4:44 PM To: Huseman, Sandy; Cash, Michelle Subject: FW: Benefit Q&A Sensitivity: Confidential

Sandy, please thank everyone for all their efforts.

Michelle, here is the Benefits piece for the FAQ sheet.

Regards, Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

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Cathy,

Here's our best effort at providing you answers to frequently asked questions. I've left a couple of blanks in health benefit answers for the appropriate name of the former employer, if you wouldn't mind filling in those blanks.

Sandy

<< File: Q&A-metalsvoluntary.doc >>

-----Original Message-----

From: Huynh, Catherine Sent: Wednesday, October 17, 2001 6:17 PM To: Huseman, Sandy; Barrow, Cynthia Subject: RE: Enron Metals Employee Separations Sensitivity: Confidential

You guys are great!! Thanks. Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com <mailto:Catherine.Huynh@Enron.com>

-----Original Message-----

From: Huseman, Sandy Sent: Wednesday, October 17, 2001 6:31 PM To: Huynh, Catherine; Barrow, Cynthia Subject: RE: Enron Metals Employee Separations Sensitivity: Confidential

Cathy,

I've used one of our templates and will hopefully have something for you late tomorrow - Thursday, after it's reviewed by Exec Comp for stock options and other Benefits personnel for Savings Plan and Cash Balance.

Talk to you later...Sandy

-----Original Message-----

From: Huynh, Catherine Sent: Wednesday, October 17, 2001 1:03 PM To: Barrow, Cynthia; Huseman, Sandy Subject: Enron Metals Employee Separations Importance: High Sensitivity: Confidential

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Please keep in mind, that I'll need to finalize the FAQ sheet for roll out Friday.

Thanks Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com <mailto:Catherine.Huynh@Enron.com>

Message 6 of 167

FW: Enron Metals North America Voluntary Separation

Sender	catherine.huynh@enron.com
Recipients	['michelle.cash@enron.com']
File	cash-m/inbox/46.

Michelle,

Since we are wanting to include our 5 Canadian employees in Montreal I passed some questions to Dawn Doucet in Calgary. Our Montreal employees receive payroll and benefits via Enron Canada.

She has referred me to the following employment attorney in Canada. Please see his contact info below. Assume someone from your group will want to handle the legal inquiries?

Thanks Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: Doucet, Dawn Sent: Wednesday, October 17, 2001 8:12 PM To: Huynh, Catherine Cc: Henry, Patricia Subject: RE: Enron Metals North America Voluntary Separation

Jim d'Andrea (located in Calgary but will probably have a Quebec counterpart) Bennett Jones

d'Andrea Jim

Job title: Company: Bennett Jones

Address:

Office Phone: 298-3271 Office Fax: 298-3298 Cell Phone: Home Phone: Home Fax: Pager:

Email address: Web page:

Home address:

-----Original Message-----

From: Huynh, Catherine Sent: Wednesday, October 17, 2001 6:09 PM To: Doucet, Dawn Cc: Henry, Patricia Subject: RE: Enron Metals North America Voluntary Separation

Dawn,

Yes, can you forward a name? Maybe Michelle Cash already know someone, not sure though.

Thanks Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com <mailto:Catherine.Huynh@Enron.com>

-----Original Message-----

From: Doucet, Dawn Sent: Wednesday, October 17, 2001 8:07 PM To: Huynh, Catherine Cc: Henry, Patricia Subject: RE: Enron Metals North America Voluntary Separation

Cathy, I think you might be ok with the severance package you suggested but I strongly recommend that you seek a legal opinion from a Canadian source. I can't do the research in this short a time period. Sorry. Let me know if you'd like a contact name.....

-----Original Message-----

From: Huynh, Catherine Sent: Wednesday, October 17, 2001 5:53 PM To: Henry, Patricia; Doucet, Dawn Subject: Enron Metals North America Voluntary Separation Importance: High

Dawn, Tricia,

No doubt you've seen recent announcements from the CEO and COO of EEL regarding headcount reductions. To that end EEL has rolled out a voluntary redundancy program. Following suit, Metals NA is also rolling out a Voluntary Separation Program to all staff in the US and we want to include those employees in Montreal.

I've been working with Michelle Cash to finalise the plan, attached are two documents that will give you a summary of the plan. In essence, its 2 wks base pay per year of service PLUS 2 wks base pay per 10K of salary for an executed Waiver and Release.

Do you see any issues with making the Montreal staff eligible for this plan?

A general employee meeting is being held tomorrow to announce the roll out and Monday will be the 2 wk kick of the program when employees will receive more detail of the plan.

Practically speaking, we anticipate keeping only 2-3 people in Montreal.

Let me know what you think.

Thanks Cathy

<< File: Summary Description.doc >> << File: BU Briefing to Staff.doc >>

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com <mailto:Catherine.Huynh@Enron.com>

Message 7 of 167

FW: Thomas Gramlich, Response from his attorney

Sender	michelle.cash@enron.com
Recipients	['diane.goode@enron.com']
File	cash-m/sent_items/243.

Diane, would you please track this down and let Cathy know that we'll respond asap when I return. Or, you could have Kriste respond. I do not remember seeing a letter from counsel, but it is possible that it fell through the cracks. Thanks. Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

This message may contain confidential information that is protected by the attorney-client and/or work product privileges.

----- Forwarded by Michelle Cash/HOU/ECT on 06/09/01 12:21 AM -----

Catherine Huynh/ENRON@enronXgate 06/05/01 11:45 AM To: Michelle Cash/HOU/ECT@ECT cc: Joe Robertson/Enron@enronXgate Subject: FW: Thomas Gramlich, Response from his attorney

Michelle,

Tom's been calling me for the Company's response to his attorney's letter. Please advise and I can formally close the issue with him, i.e making his final day June 30th.

Thanks

Catherine Huynh Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: Huynh, Cathy Sent: Wednesday, May 23, 2001 10:14 AM To: Cash, Michelle Cc: Sweet, Twanda Subject: Thomas Gramlich, Response from his attorney

Michelle,

I'm faxing you a letter I received this morning from attorney's representing Thomas Gramlich.

To refresh your memory, Tom was the chap that resigned in May but had a 6 months notice period in his MG employment letter. He was the head sales person in our Lead Trading Group and given that he is going to work for a competitor, we wanted to use all of his notice period to keep him out of the market for as long as possible until we could find a suitable replacement. September 26 would be the end of his notice period and his attorneys are proposing a June 30th release date.

As notice periods are not enforceable in the US, our hands may be tied, but I wanted to keep you advised. Please let me know if you think there is anything we can do.

Thanks Catherine Huynh Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

Message 8 of 167

RE: ELT-Engagement Letter**Sender** michelle.cash@enron.com**Recipients** ['knotestine@littler.com']**File** cash-m/all_documents/6.

Thanks. I frequently pick up my first job after I complete my second shift at home. That's why I got the nifty flat screen for my computer -- jealous?? Michelle

"Notestine, Kerry" <KNotestine@littler.com> on 11/27/2000 02:16:36 PM To: ""Michelle.Cash@enron.com"" <Michelle.Cash@enron.com> cc: Subject: RE: ELT-Engagement Letter

Michelle

What are you doing replying to emails at 12:00 on a school night?

I had not seen any of this before they sent it to you, other than him telling me he was sending you the standard forms. I am sure everything can be worked out. Let me talk to him and get back to you.

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

-----Original Message-----

From: Michelle.Cash@enron.com [mailto:Michelle.Cash@enron.com] Sent: Monday, November 27, 2000 12:19 AM To: knotestine@littler.com Cc: Marty.Chrisman@enron.com Subject: ELT-Engagement Letter

Kerry, is this necessary? I don't agree to all the terms in here, and I really don't want to spend a lot of time with ELT to negotiate the agreement. For example, the part where we will be billed for developmental costs if we cancel within a certain period of time. From my perspective, that is inappropriate since I spent more time than ELT on developing this product, and you are simply delivering a product that you and I already prepared and completed on several occasions across North America. There will be one new scripted section, but that should be from the actors, and it should not be significant. Also, there are not appropriate confidentiality provisions, etc. So, I would have to negotiate it with ELT for it to be acceptable to us.

The last time, you just billed for time, and the actors billed separately. I prefer that approach, if we can do it that way. If I am being a major prima donna and it creates a big problem for you internally, let me know, and I can review it and comment back to ELT.

Thanks. Michelle

----- Forwarded by Michelle Cash/HOU/ECT on 11/27/2000

12:05 AM -----

(Embedded Marty Chrisman @ ENRON image moved 11/22/2000 02:48 PM to file: (Embedded image moved to file: pic24464.pcx) pic05705.pcx)

To: Michelle Cash/HOU/ECT@ECT cc: Subject: ELT-Engagement Letter

Michele, I can start working on the dates and location as soon as we have the "go ahead."

Marty ----- Forwarded by Marty Chrisman/Corp/Enron on 11/22/2000 02:45 PM -----

"Staley, Jim" <JStaley@elt-inc.com> on 11/17/2000 03:26:16 PM

To: ""marty.chrisman@enron.com"" <marty.chrisman@enron.com> cc:

Subject: ELT-Engagement Letter

Marty, here is a copy of the engagement letter. The fees include the actors where as before they billed separately. Please try to have signed and returned no later than the end of the month. Please fax a copy to my attention at 214-880-0181.

Then fax a copy to Gary Meisner at 415-982-1203 and finally mail the signed copy directly to our SF office: ELT-Attn: David Goldman 650 California Street, Suite 2000 San Francisco California 94108.

Thanks Marty. I will contact you next week to start working on the Computer Based Programs. Have a great weekend.

<<Enron Engagement Letter.doc>>

Jim Staley Account Executive Employment Law Learning Technologies Phone: (214) 880-8166 Fax: (214) 880-0181
jstaley@elt-inc.com www.elt-inc.com

(See attached file: Enron Engagement Letter.doc)

----- This email may contain confidential and privileged material for the sole use of the intended recipient(s). Any review, use, distribution or disclosure by others is strictly prohibited. If you are not the intended recipient (or authorized to receive for the recipient), please contact the sender by reply email and delete all copies of this message.

To reply to our email administrator directly, send an email to postmaster@littler.com

Littler Mendelson, P.C. <http://www.littler.com>

Message 9 of 167

FW: Referrals to HR consultants

Sender	michelle.cash@enron.com
Recipients	['cindy.skinner@enron.com', 'neil.davies@enron.com', 'david.oxley@enron.com']
File	cash-m/sent_items/33.

Here are some referrals for HR consultants. Michelle

-----Original Message-----

From: "Notestine, Kerry" <KNotestine@littler.com>@ENRON
[mailto:IMCEANOTES+22Notestine+2C+20Kerry+22+20+3CKNotestine+40littler+2Ecom+3E+40ENRON@ENRON.com]
Sent: Wednesday, October 03, 2001 8:40 AM To: Cash, Michelle Subject: Referrals to HR consultants

Michelle:

Here are the referrals that I received. Some of the referrals came from more than one source within our firm.

Kerry--

I suggest that you speak to Barry Cosloy at PricewaterhouseCoopers' Global HR Practice. Barry heads up the PwC Employment Compliance Risk Management Solutions. I am attaching his contact information and suggest that you contact him directly. I am also attaching two presentations that describe the exact type of practice group you need.

<<Barry I. Cosloy>> <<Workforce reduction v3.ppt>>

Kerry,

I have been networking with William M. Mercer Company, a subsidiary of Marsh McLennan Companies. They are one of the largest, if not the largest, human resources consulting firms in the world. They have 15,000 employees and offices all over the country. They are clearly the top in their field. Here is a contact person in Houston: Philip Tenenbaum in Mercer's Houston office. Philip can be reached at 713-653-5253. Here also is some information about Phillip and Mercer.

<<PTenenbaum - BIO.doc>> <<Mercer overview.doc>>

Kerry:

I have a strong relationship with Hewitt. I forwarded an edited version of your e-mail to my primary contact at Hewitt and inquired as to who he recommends in Houston. Below is Dick's response. Hopefully, this will be useful to you.

Christy

Christy, we'd certainly appreciate it if you suggested Hewitt. We have a rather large center in the Woodlands, which is just outside Houston. Also, we have a number of consultants who work on the issues mentioned.

You could suggest Don Henderson as an initial contact. Don is a benefits lawyer in the Houston (i.e., Woodlands) office who could help them locate the best Hewitt resource for the client. Don's number is 281-363-0456 I'm copying Don in case he has a suggestion of someone else who the client might contact.

It was good seeing you at the reception. Thanks for thinking of us!

Dick Hinman Legal Consultant Hewitt Associates 1 Embarcadero Center, Suite 1400 San Francisco, CA 94111-3703
(415) 438-2482 (direct dial) (415) 837-1810 (fax) rchinman@hewitt.com

We also had reference to Jeanneret & associates, but I know you know them. Here is another person in that line of business if you want to go that route:

If you need an economist, try these folks. <<Brian P. Sullivan Ph. D.>>

Based on our conversations to date, I would think the PriceWaterhouse and Mercer contacts would be your best bets.

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748
713.951.9212 (fax) knotestine@littler.com www.littler.com

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Content-Transfer-Encoding: 7bit Message-ID: <625F7846875CD211A5630008C7B1046904CA120D@LANEXCH> From: "Peter, Arnold" <APeter@littler.com> To: Subject: Barry I. Cosloy Date: Mon, 30 Jul 2001 15:00:14 -0700 MIME-Version: 1.0 X-Mailer: Internet Mail Service (5.5.2653.19) Content-Type: text/plain; charset=iso-8859-1

- Workforce reduction v3.ppt - PTenenbaum - BIO.doc - Mercer overview.doc Content-Transfer-Encoding: 7bit Message-ID: <C1FC515B14DBD1118D1300805F0DDFA4D98A6D@WASEXCH> From: "McEvoy, Vivienne" <VMcEvoy@littler.com> To: Subject: Brian P. Sullivan Ph. D. Date: Tue, 26 Sep 2000 13:13:35 -0700 MIME-Version: 1.0 X-Mailer: Internet Mail Service (5.5.2653.19) Content-Type: text/plain; charset=iso-8859-1

Message 10 of 167

RE: Drew Lynch

Sender	michelle.cash@enron.com
Recipients	['Huynh', 'Drew', 'Catherine; Lynch', 'brenda.aggar@enron.com']
File	cash-m/sent_items/377.

713-646-3490

-----Original Message-----

From: Aggar, Brenda Sent: Tuesday, December 18, 2001 6:15 AM To: Cash, Michelle Cc: Huynh, Catherine; Lynch, Drew Subject: FW: Drew Lynch

Michelle

If you could give me you fax number I will fax this novation to you.

Thanks

Brenda

-----Original Message-----

From: Huynh, Catherine Sent: 17 December 2001 22:12 To: Cash, Michelle; Aggar, Brenda Subject: RE: Drew Lynch
Michelle,

This must have originated in London as it's the first I've heard of it.

Brenda,

Michelle is our employment attorney in Houston and needs to initiate/aprove all US employment contract changes for execs.

Thanks Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel:
212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: Cash, Michelle Sent: Monday, December 17, 2001 1:15 PM To: Huynh, Catherine; Aggar, Brenda Subject: RE: Drew Lynch

Has there been a business decision to novate his agreement? I am not aware of our decisions to novate any agreements. Let me know who approved this from the business side. Thanks. Michelle

-----Original Message-----

From: Huynh, Catherine Sent: Monday, December 17, 2001 9:01 AM To: Aggar, Brenda; Cash, Michelle Subject: RE: Drew Lynch

Michelle,

Would you know where these need to be sent?

Thanks Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel:
212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: Aggar, Brenda Sent: Friday, December 14, 2001 9:52 AM To: Huynh, Catherine Subject: Drew Lynch

Hi Cathy, how are you?

I wonder if you can help me with this. I have a contract novation here for Drew Lynch which needs to be signed by an authorised signatories of Enron Corp, and Enron Expat Services Inc. Who should I fax this to for signature.

Many thanks

Brenda

Message 11 of 167

Re: Coal/Freight Candidate Jerry Prager

Sender	allbritton@clausman.com
Recipients	[alan.aronowitz@enron.com', 'michelle.cash@enron.com']
File	cash-m/resumes_for_recruiting/11.

Thanks, Alan. I just got off the phone with the other candidate, Donald Duncan, and he, too, appears strong. Donald has been an in-house energy lawyer in Houston for 24 years, most recently with Eagle Global Logistics (EGL), an international

freight forwarder, which he left in May. EGL is suffering severe financial problems which comes as no surprise since their principal client base are the computer manufacturers and tech companies that have all suffered dramatic losses over the past 3-5 quarters.

Notably, Donald spent 9 years with Pennzoil's mining business and, as such, is intimately familiar with the coal industry. He also worked on a major coal seam degasification project for Sonat in the '80s in the Black Warrior Basin of Alabama.

Donald has the advantage of being familiar with both the coal and freight industries and of being already in Houston. He is very interested in you and, as with Jerry Prager, let me encourage you to call him directly if you are interested in speaking with him. He is available anytime after 2:00 p.m. today and anytime tomorrow morning. He can be reached at 713.515.4863.

Of course, if you are interested in additional information, please feel free to give me a call. Best regards,

Lee Allbritton 888.296.5770 (tel)

----- Original Message -----

From: <Alan.Aronowitz@enron.com> To: <allbritton@clausman.com> Cc: <Michelle.Cash@enron.com> Sent: Thursday, July 12, 2001 9:23 AM Subject: RE: Coal/Freight Candidate Jerry Prager

I will try to give him a call later today. Alan -----Original Message----- From: "Lee Allbritton"

<allbritton@clausman.com>@ENRON

[mailto:IMCEANOTES-+22Lee+20Allbritton+22+20+3Callbritton+40clausman+2Ecom+3 E+40ENRON@ENRON.com]

Sent: Thursday, July 12, 2001 8:46 AM To: Aronowitz, Alan Cc: Cash, Michelle Subject: Coal/Freight Candidate Jerry Prager Good morning, Alan. Since our last discussion yesterday, I have had a detailed conversation with Jerry Prager and am pleased to report that, not only is he an experienced energy lawyer who is very familiar with the coal industry, but that he is also experienced in the legal issues involved in the freight and transportation of coal and other energy products. Licensed in both Texas and Ohio, of course, Jerry is an attractive candidate. Interestingly, when he had his own law practice in Dallas ('97 -- '99), he represented Enron Oil & Gas in Mexico on a variety of upstream transactions. He is also fluent in Spanish. Jerry is available to visit with you today or tomorrow afternoon by telephone. His direct number in Cincinnati is 513.721.5525 and I want to encourage you to call him directly if you are interested. I will

be

out of the office between 10:00 and 1:00, but will be in the office this afternoon if you would like to visit. Best regards, J. Lee Allbritton, Jr. Vice President, General Counsel & Director of Attorney Recruiting Clausman Legal Staffing, Inc. 816 Congress Avenue, Ste. 1100 Austin, Texas 78701 512.493.5770 (tel) 512.493.5771 (fax) 888.296.5770 (toll-free)

Message 12 of 167

RE: Midwest Generation

Sender	michelle.cash@enron.com
Recipients	['notestine@enron.com', 'Rick.Johnson@enron.com', 'knotestine@littler.com']
File	cash-m/sent_items/248.

Bummer about the flood insurance. Of course, we had it and didn't need it. We also pulled up our rugs, moved furniture, etc. Had we not, the house surely would have flooded.

Talk to you next week.

Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

This message may contain confidential information that is protected by the attorney-client and/or work product privileges.

"Notestine, Kerry" <KNotestine@littler.com> 06/11/01 08:15 AM To: "Michelle.Cash@enron.com"
<Michelle.Cash@enron.com> cc: Subject: RE: Midwest Generation

Thanks for the message. We had about 2 inches of water in the house and we lost most of our flooring on the first floor. Most everything else is ok. No flood insurance because we are not in the 100 year flood plain as you know.

Regarding Midwest Generation. I asked around with our Chicago lawyers and did not find out anything. I have made some other contacts and will let you and Jeff Hodge (whom I have met) know if I hear about anything.

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748
713.951.9212 (fax) knotestine@littler.com www.littler.com

-----Original Message-----

From: Michelle.Cash@enron.com [mailto:Michelle.Cash@enron.com] Sent: Monday, June 11, 2001 12:21 AM To:
knotestine@littler.com Cc: Rick.Johnson@enron.com Subject: Midwest Generation

Kerry,

We drove by your house, which looked like it took on some water. I hope all is ok, and that you didn't have too much damage. Bellaire was hit pretty hard.

On another note, if you are able to gather any more info on this Midwest Generation issue, would you please call Jeff Hodge in our legal department? Twanda can connect you.

I'll be on vacation this week and will return the 18th.

Thanks.

Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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----- Forwarded by Michelle Cash/HOU/ECT on 06/11/01 12:13 AM -----

Philip

Mayor/ENRON@e To: Michelle Cash/HOU/ECT@ECT

nronXgate cc:

Subject: Midwest Generation

06/07/01

08:55 AM

Jeff Hodges has told me that you are helping us out with trying to locate information re: the Midwest Generation Labor Dispute. The following article appeared in the Chicago Tribune today:

Under a settlement agreement signed with the National Labor Relations Board, Midwest Generation LLC, a wholesale power supplier to Commonwealth Edison Co., will begin negotiating as early as next week with the union representing 1,150 of its electrical workers, officials said. The move comes less than two weeks after the International Brotherhood of Electrical Workers local authorized a strike. The sides have disagreed over when the current contract expires; under a separate agreement, Midwest Generation was released from its obligation to maintain the existing contract through June 2002, company officials said.

Would there be any way to obtain details about this, or is it probably a confidential settlement?

Thanks for the advice.

Phil

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Message 13 of 167

New Vendors for Contract Accounting Services

Sender	michelle.cash@enron.com
Recipients	['norma.villarreal@enron.com']
File	cash-m/all_documents/237.

FYI. Here is most of the information. Michelle

----- Forwarded by Michelle Cash/HOU/ECT on 05/12/2000 09:21 AM -----

Bryce Baxter 05/12/2000 07:49 AM

To: Michelle Cash/HOU/ECT@ECT cc: Susan Harrison/HOU/ECT@ECT, Brenda F Herod/HOU/ECT@ECT, Lisa Csikos/HOU/ECT@ECT, Rita Wynne/HOU/ECT@ECT Subject: New Vendors for Contract Accounting Services

Michelle, as I mentioned in my voice mail to you, I would like to use contractors from the two firms listed below. Both of these firms have contractors available now, so as soon as we get these agreements in place we can bring them in and put them to work. If possible, I'd like any agreement we put in place to be flexible enough to allow us to use other contractors in the future besides those we currently have identified. If you need me to do anything else or if you are not the right person to talk to, please let me know. Thanks.

AccountSource International Contact: Pam White, Partner Phone: 713-629-9200 Address: 770 S. Post Oak Lane Suite 325 Houston, TX 77056 Email Address: plw@account-source.com Fax: 713-629-0101

Enterprise Services Company Contact: Rebecca Soots, Manager Phone: 713-219-4234 Address: 6671 Southwest Frwy Houston, TX 77074 Email Address: Rpsoots@esc-hdq.com Fax: 713.270.7195

Message 14 of 167

New Vendors for Contract Accounting Services

Sender	michelle.cash@enron.com
Recipients	['twanda.sweet@enron.com']
File	cash-m/all_documents/238.

Twanda, could you please start Consulting Services AGreements for these entities? I have asked Norma to get the rest of the information.

Thanks. MHC

----- Forwarded by Michelle Cash/HOU/ECT on 05/12/2000 09:21 AM -----

Bryce Baxter 05/12/2000 07:49 AM

To: Michelle Cash/HOU/ECT@ECT cc: Susan Harrison/HOU/ECT@ECT, Brenda F Herod/HOU/ECT@ECT, Lisa Csikos/HOU/ECT@ECT, Rita Wynne/HOU/ECT@ECT Subject: New Vendors for Contract Accounting Services

Michelle, as I mentioned in my voice mail to you, I would like to use contractors from the two firms listed below. Both of these firms have contractors available now, so as soon as we get these agreements in place we can bring them in and put them to work. If possible, I'd like any agreement we put in place to be flexible enough to allow us to use other contractors in the future besides those we currently have identified. If you need me to do anything else or if you are not the right person to talk to, please let me know. Thanks.

AccountSource International Contact: Pam White, Partner Phone: 713-629-9200 Address: 770 S. Post Oak Lane Suite 325 Houston, TX 77056 Email Address: plw@account-source.com Fax: 713-629-0101

Enterprise Services Company Contact: Rebecca Soots, Manager Phone: 713-219-4234 Address: 6671 Southwest Frwy Houston, TX 77074 Email Address: Rpsoots@esc-hdq.com Fax: 713.270.7195

Message 15 of 167

RE: Benefit Plans of Newco employees

Sender	michelle.cash@enron.com
Recipients	['angela.davis@enron.com']
File	cash-m/sent_items/361.

Happy to give them, but no reps are going to be made, as I understand. Michelle

-----Original Message-----

From: Davis, Angela Sent: Wednesday, December 12, 2001 12:13 PM To: Cash, Michelle Subject: RE: Benefit Plans of Newco employees

We are going to give it to them. That is what I was told.

Angela D. Davis Enron North America Corp. 1400 Smith Street, EB3817 Houston, Texas 77019 Tel: (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

-----Original Message-----

From: Cash, Michelle Sent: Wednesday, December 12, 2001 10:07 AM To: Davis, Angela Subject: RE: Benefit Plans of Newco employees

We have decided not to make any reps about these plans, since any buyer would not be taking them. However, we have a data room list that specifies what was made available, and the other side is welcome to review most of what is in that room. We remain cautious about releasing employment compensation data and contract information about individuals, but are happy to provide totals of current and future costs under those agreements in the aggregate. Let me know if you have questions.

Which deal are you actively working on? Fire or Wind? Do I need to be working on the draft agreement?

Thanks.

Michelle

-----Original Message-----

From: Davis, Angela Sent: Tuesday, December 11, 2001 6:39 PM To: Cash, Michelle Subject: Benefit Plans of Newco employees

We need a list of all benefit plans of any "to be" Newco employee. We also rep that we have made these available to the purchaser. I believe you said that the actual documents were available somewhere, so I assume that the other side could see them?

Angela D. Davis Enron North America Corp. 1400 Smith Street, EB3817 Houston, Texas 77019 Tel: (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

Message 16 of 167**FW: Voluntary Severance Program Info Packet**

Sender	catherine.huynh@enron.com
Recipients	['lizzette.palmer@enron.com', 'drew.lynch@enron.com', 'joe.gold@enron.com', 'marcelo.parra@enron.com', 'michel...]
File	cash-m/inbox/54.

Dear All:

The following program details have been reviewed/approved by our legal team and has been distributed to all our US employees to kick off the Metals NA Voluntary Separation Program. We are still finalizing legal due diligence to determine if a similar voluntary program can be rolled out in Montreal and should have an answer on this shortly.

Also attached for your reference is the Plan Document for the Voluntary Separation Program. This will be circulated for signatures in the next two days.

Please let me know if you have any questions.

Regards, Cathy Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022
Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: Huynh, Catherine Sent: Monday, October 22, 2001 1:49 AM To: DL-NYMetals - Enron Metals at 520 Madison; DL-NYMetals - St. Louis Enron Metals; DL-NYMetals - Chicago Enron Metals Cc: Simpkin, Georgina Subject: Voluntary Severance Program Info Packet

Further to the All Employee meeting on Thursday, October 18, 2001, the attached documents will provide you with details of how the Program is laid out.

Four documents are attached for your reference:

1) The Program Summary Description is provided to give you an overview. 2) The Payment Calculator will calculate an estimate of what your voluntary separation would be. 3) The FAQ Sheet will cover most of your general questions regarding the application process and post-separation questions. 4) Application for voluntary separation.

If you have any further questions after review of these documents please feel free to contact me. Certainly, if you would like to discuss your individual situation privately please contact me directly or Georgi Simpkin to schedule a meeting time in a private conference room.

Cathy Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

Message 17 of 167**RE: Performance termination**

Sender	catherine.huynh@enron.com
Recipients	['lizzette.palmer@enron.com', 'Catherine', 'twanda.sweet@enron.com', 'Huynh', 'michelle.cash@enron.com']
File	cash-m/deleted_items/398.

Hi Michelle,

Thanks for the fyi, however the Service Center doesn't generate our documents for us. In fact, due to the distance, they provide us support on an as needed basis, but what I will do is make sure we get all current documents from Irma so that we can make sure we are using the right versions.

Thanks Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: Cash, Michelle Sent: Friday, November 16, 2001 11:48 PM To: Palmer, Lizzette; Sweet, Twanda Cc: Huynh, Catherine Subject: RE: Performance termination

Cathy, Unless there is something unusual about this situation, I think that the service center can do these documents, as they are standard. We generally don't do termination letters here in legal unless there is a change to the form or something really sensitive. So, no need to wait on us! Just get with Irma's team. Michelle -----Original Message----- From: Palmer, Lizzette Sent: Fri 11/16/2001 6:02 PM To: Sweet, Twanda Cc: Huynh, Catherine; Cash, Michelle Subject: FW: Performance termination Twanda, Cathy is terminating this employee on Monday. Need a current term letter and waiver. Please prep for my review. Cathy, It would be a help if you could hold off until Monday afternoon to do communicate the termination. We'll e-mail you the docs, and I can initial the waiver once she's returned it but before the Company signs.

--Lizzette -----Original Message----- From: Huynh, Catherine Sent: Friday, November 16, 2001 4:56 PM To: Palmer, Lizzette Subject: Performance termination Hi Lizzette, Just want to make sure I'm using the current term letter for performance term. I also need to get the Waiver referenced in the attached. Can you please forward this to me? Thanks Cathy <<Bugs.doc>> Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

Message 18 of 167

RE: Enron Europe

Sender michelle.cash@enron.com

Recipients ['knotestine@littler.com']

File cash-m/sent/591.

We should get it today; I'll messenger it over when it arrives. mhc

"Notestine, Kerry" <KNotestine@littler.com> on 05/11/2000 08:59:54 AM To: "Michelle.Cash@enron.com" <Michelle.Cash@enron.com> cc: Subject: RE: Enron Europe

Thanks. Also, where are we on the check for Malme? Anne Marie inquired a couple of days ago.

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

-----Original Message-----

From: Michelle.Cash@enron.com [mailto:Michelle.Cash@enron.com] Sent: Thursday, May 11, 2000 8:38 AM To: KNotestine@littler.com Subject: Re: Enron Europe

I'll look into it for you. Michelle

"Notestine, Kerry" <KNotestine@littler.com> on 05/10/2000 06:28:34 PM

To: "mcash@enron.com" <mcash@enron.com> cc: "Williams, Dwayne" <DeWilliams@littler.com> Subject: Enron Europe

Michelle:

Enron has not paid us for the work we did for them related to the NJ law issue. The amount is \$ 8115.84. Any thoughts about what we can do to collect that amount?

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

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Message 19 of 167

Re: Follow up

Sender	michelle.cash@enron.com
Recipients	[' linda.strahm@enron.com ']
File	cash-m/all_documents/272.

Hi, Linda. I am not surprised; she sent me an email, too. I was out on vacation last week, so I only gave Kim my feedback early this week. I hope that ELM has received the response by now. Let me know if I need to do anything else. Michelle

Linda Strahm@ENRON COMMUNICATIONS 06/01/2000 07:47 AM

To: Michelle Cash/HOU/ECT@ECT cc: Subject: Re: Follow up

Hi Michelle. Unfortunately, this issue with Eddie Lynn Morgan is still alive. I talked with Kim a few weeks ago and she mentioned that she sent her write-up to you for your review - before sending it to Eddie Lynn. Do you have a status update on when it will be ready to go to Eddie Lynn?

Thanks Michelle! ----- Forwarded by Linda Strahm/Enron Communications on 06/01/00 05:46 AM

Lynn Morgan 05/27/00 01:16 PM

To: Linda Strahm/Enron Communications@Enron Communications cc: Michelle Cash/HOU/ECT@ECT Subject: Re: Follow up

It has now been two weeks since Kim said she would send me a note and yet no response. Perhaps now you can see my continued frustration with the lack of response to what I consider to be a very serious matter. As you had suggested when we first talked, I would appreciate it if you would forward this to Kim's boss so that I can get a response.

Lynn Morgan (503) 886-0668 (503) 816-0982 (cell)

Enron Broadband Services 2100 SW River Parkway Suite 740A Portland, OR 97201

----- Forwarded by Lynn Morgan/Enron Communications on 05/27/00 01:17 PM -----

EL Morgan 05/18/00 10:00 AM

To: Linda Strahm/Enron Communications@Enron Communications cc: Subject: Re: Follow up

I have not received anything from Kim.

EL Morgan (503) 886-0668 (503) 816-0982 (cell)

Enron Broadband Services 2100 SW River Parkway Suite 740A Portland, OR 97201

Linda Strahm 05/10/00 09:52 AM

To: EL Morgan/Enron Communications@Enron Communications cc: Sandy Thomas/Enron Communications@Enron Communications Subject: Follow up

EL - I just spoke with Kim Melodick. As you indicated, she had not had an opportunity to provide you with the final outcome of the email investigation. She apologizes for this and will have a write up to you within 1 week from today.

Let me know if you don't receive it by next Wednesday.

thanks.

Message 20 of 167

Professional Services Agreement with Paragon

Sender	michelle.cash@enron.com
Recipients	['Michael', 'Emilio Vicens/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT', 'twanda.sweet@enron.com']
File	cash-m/sent/86.

please do a consulting agreement with this group. Michelle

----- Forwarded by Michelle Cash/HOU/ECT on 12/11/2000 03:52

PM -----

James McMillan@ENRON_DEVELOPMENT 12/11/2000 01:27 PM To: Michelle Cash@ECT cc: Emilio Vicens/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Michael Wortham/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Professional Services Agreement with Paragon
Michelle,

As most Engineering Contractors are beginning to staff up, it is prudent for us to have more than one Professional Services Agreements in place for the VLNG Front End Engineering Design effort. Another Company that I have dealt with in the past, and which also provided assistance to Enron on the Dabhol Power Project, is Paragon Engineering Services, Inc. As requested for Technip USA in my e-mail of 5 Dec, please begin negotiations with Paragon Engineering Services for a Professional Services Agreement, to be in place in the Feb/March timeframe. The contact person at Paragon is:

Richard Durfee Project Manager Paragon Engineering Services, Inc. 10777 Clay Road Houston, Texas 77041 Phone: (713) 570-8068 Fax: (713) 570-8068 E-mail: rdurfee@paraengr.com

Thanks and regards James

----- Forwarded by James McMillan/ENRON_DEVELOPMENT on

12/11/2000 01:22 PM -----

James McMillan 12/05/2000 09:48 AM To: Michelle Cash@ECT cc: Subject: Professional Services Agreement
Michelle,

Following up on our meeting last week, we need to get a Professional Services Agreement in place with Technip USA Corp. We do not anticipate a need for utilizing their resources until Feb/March at the soonest, but as these agreements sometimes take a while to negotiate, I believe it appropriate to start this one soon. The contact person at Technip USA is:

Gerald W. Alves, P.E. Commercial Vice President Technip USA Corporation 1990 Post Oak Boulevard, Suite 200 Phone: 713 548 4263 Fax: 713 548 4013 Email: jalves@Technip.com

As discussed, we need a general type Professional Services Agreement so that we can draw upon any of their resources at previously established rates, on an as required basis.

Please let me know how we should proceed with getting this agreement in place,

Regards James

Message 21 of 167

FW: Picketing at the Payne Creek Jobsite

Sender	michelle.cash@enron.com
Recipients	['cindy.skinner@enron.com', 'exec.jones@enron.com']
File	cash-m/sent_items/18.

FYI re: NEPCO picketing issues.

-----Original Message-----

From: David.Lund@nepco.com@ENRON

[mailto:IMCEANOTES-David+2ELund+40nepco+2Ecom+40ENRON@ENRON.com] Sent: Tuesday, September 18, 2001 2:52 PM To: Cash, Michelle Cc: Brownfeld, Gail; Schwartzburg, John Subject: FW: Picketing at the Payne Creek Jobsite Importance: High

Michelle,

This is a heads up to an issue developing this morning at a project site in Payne Creek, Florida. As far as we know, the union is directing the picketing against the general contractor, OCI (a subsidiary of B&V), and not NEPCO who is the subcontractor to OCI. Rick Johnson may want to investigate.

By copy to Gail, Seth Price will evaluate whether additional claims are developed against OCI for any delay impacts caused by OCI to NEPCO or vice versa depending on who the union pipe fitters are picketing.

David H. Lund, Jr. Assistant General Counsel National Energy Production Corporation 11831 North Creek Parkway N. Bothell, WA 98011 425-415-3138 Fax: 425-415-3032 David.Lund@nepco.com or davidlu@nepco.com

-----Original Message-----

From: B-Bob Black Sent: Tuesday, September 18, 2001 6:48 AM To: B-David Lund Subject: FW: Picketing at the Payne Creek Jobsite Importance: High

Forgot about Lawyer Dave !!!!!!!!!

Thanks Bob Black bobb@nepco.com <mailto:bobb@nepco.com> 425-415-3157

-----Original Message-----

From: B-Bob Black Sent: Tuesday, September 18, 2001 6:45 AM To: B-Mike Ranz Cc: B-Frank Petty; B-Sean Mayer Subject: FW: Picketing at the Payne Creek Jobsite Importance: High

I have also requested Lark to contact Seath for review of OCI requirement to provide access to site. Any other comments ?

Thanks Bob Black bobb@nepco.com <mailto:bobb@nepco.com> 425-415-3157

-----Original Message-----

From: FLO-Mike Croall Sent: Tuesday, September 18, 2001 5:42 AM To: B-Bob Black Cc: B-Mike Indivero; FLO-Lark Mulvahill; FLO-Greg Renz; FLO-Bob Terrell Subject: Picketing at the Payne Creek Jobsite Importance: High

The pipefitters union is picketing OCI at the Payne Creek jobsite this morning. There are 4 pickets at the gate on Ft. Green Road. The gate system at the entrance has no designation as to union and non-union so they can picket any gate. The picket signs reference low wages according to Greg Renz. OCI has an agreement with Florida Maint. union ironworkers to perform work. Pipefitters think they should be doing the work. I am going to Payne Creek to meet with our supervisors on how to conduct themselves when they enter and exit the jobsite. At this point no activity is being directed at Nepco. We want to keep it that way. Call me on my cell phone if you need me. Mike

Message 22 of 167

Re: New Vendors for Contract Accounting Services

Sender	michelle.cash@enron.com
Recipients	['Susan Harrison/HOU/ECT@ECT', 'Norma Villarreal/HOU/ECT@ECT', 'twanda.sweet@enron.com']
File	cash-m/sent/176.

Twanda, here is more information about the project for Baxter. Michelle

----- Forwarded by Michelle Cash/HOU/ECT on 05/12/2000 05:04 PM -----

Bryce Baxter 05/12/2000 04:44 PM

To: Michelle Cash/HOU/ECT@ECT, Norma Villarreal/HOU/ECT@ECT, Susan Harrison/HOU/ECT@ECT cc: Subject: Re: New Vendors for Contract Accounting Services

The bill rate with Enterprise Services for Lloyd Lee is \$37.50/hour. Thanks.

From: Bryce Baxter 05/12/2000 04:21 PM

To: Michelle Cash/HOU/ECT@ECT cc: Norma Villarreal/HOU/ECT@ECT, Susan Harrison/HOU/ECT@ECT Subject: New Vendors for Contract Accounting Services

Data for AccountSource:

Name: Lydia T. Bolanos Bill Rate: \$48/hour Job Desc: Reconciliation of general ledger and subledger account balances. Includes A/R reconciliation and A/P reconciliation work to prepare for SAP implementation. Length of Assign: 3 Months anticipated, with a possibility of going longer

Data for Enterprise Services Co.

Name: Lloyd A. Lee Bill Rate: ?? - waiting to hear from Rebecca Soots on exact rate Job Desc: Reconciliation of general ledger and subledger account balances. Includes A/R reconciliation and A/P reconciliation work to prepare for SAP implementation. Length of Assign: 3 Months anticipated, with a possibility of going longer

Norma is researching how we should handle the contingency of hiring. I'll get you the rate and contingency info as soon as I get it. Thanks again for your help!

----- Forwarded by Bryce Baxter/HOU/ECT on 05/12/2000 02:47

PM -----

From: Bryce Baxter 05/12/2000 07:49 AM

To: Michelle Cash/HOU/ECT@ECT cc: Susan Harrison/HOU/ECT@ECT, Brenda F Herod/HOU/ECT@ECT, Lisa Csikos/HOU/ECT@ECT, Rita Wynne/HOU/ECT@ECT Subject: New Vendors for Contract Accounting Services

Michelle, as I mentioned in my voice mail to you, I would like to use contractors from the two firms listed below. Both of these firms have contractors available now, so as soon as we get these agreements in place we can bring them in and put them to work. If possible, I'd like any agreement we put in place to be flexible enough to allow us to use other contractors in the future besides those we currently have identified. If you need me to do anything else or if you are not the right person to talk to, please let me know. Thanks.

AccountSource International Contact: Pam White, Partner Phone: 713-629-9200 Address: 770 S. Post Oak Lane Suite 325 Houston, TX 77056 Email Address: plw@account-source.com Fax: 713-629-0101

Enterprise Services Company Contact: Rebecca Soots, Manager Phone: 713-219-4234 Address: 6671 Southwest Frwy Houston, TX 77074 Email Address: Rpsoots@esc-hdq.com Fax: 713.270.7195

Message 23 of 167

Enron/Release	
Sender	michelle.cash@enron.com
Recipients	['diane.goode@enron.com']
File	cash-m/sent_items/241.

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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----- Forwarded by Michelle Cash/HOU/ECT on 06/08/2001 11:03 AM -----

tcarrico@spilmanlaw.com 06/08/2001 10:18 AM To: michelle.cash@enron.com cc: Subject: Enron/Release

Michelle,

I spoke with Rick Brown, he told me that when he signed the handwritten agreement on behalf of Elliott and Dickinson, it was his understanding that CRDC would make the required payments under the settlement agreement. But, if CRDC defaulted then Chris Cline, Tim Elliott, John Dickinson, and Enron could be responsible for the remaining payments. He believes that if CRDC defaults and the other defendants do not agree among themselves as to the amount and manner in which Clonch will be paid, then Clonch will be required to institute one arbitration action against each of the remaining defendants. Additionally, he believes that under the agreement the parties did not agree to joint and several liability. I asked him as to why he allowed his clients to be potentially personally liable on the payments owing to Clonch by CRDC. He explained that it was a "no brainer." He reasoned that Elliott, Cline, and Dickinson are the chief officers of CRDC and they will do everything in their power to prevent CRDC from defaulting, because they do not want to be subject to personal liability. Rick also told me that Kevin also agrees with this interpretation.

After speaking with Rick Brown, I spoke to Rich Walters, who informed me that Clonch refused to accept Enron's offer to guarantee payments under the settlement agreement beginning 2002 until 2007 at a maximum of \$1000 a month and \$12,000 a year. Rich Walters told me Karen Miller's interpretation of the handwritten settlement agreement. Her interpretation is in accord with Rick Brown's interpretation. For these reasons, only intends to sue Enron and not Cline, Elliott, and Dickinson for violation of the settlement agreement.

Please call me so that we may discuss. Thanks.

Tim C. Carrico Spilman Thomas & Battle, PLLC email: tcarrico@spilmanlaw.com phone: (304)-340-3856 cell phone: (304)-549-2681 fax: (304)-340-3801 address: 300 Kanawha Blvd., East Charleston, W.Va. 25301

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Message 24 of 167

Re: BENJ.40387	
Sender	michelle.cash@enron.com
Recipients	['jay.boudreaux@enron.com', 'mark.greenberg@enron.com', 'gustavo.junqueira@enron.com']
File	cash-m/all_documents/70.

Mark,

The pay equity issue sounds like the reviews we do every year to ensure that people are being paid equitably. Given that the company has until November of next year to get in compliance and to report out on the compliance issue, it should be no big deal -- unless there currently are pay inequities. A list of persons in each job, with salary and gender, could allow us to determine whether an issue even exists.

Michelle

Mark Greenberg@ENRON 12/07/2000 09:08 PM To: deehyc@lapros.qc.ca cc: blundyp@bennettjones.ca, Jay Boudreaux/HOU/ECT@ECT, Gustavo Junqueira/HOU/ECT@ECT, Michelle Cash/HOU/ECT@ECT, Dolores Lenfest/HR/Corp/Enron@ENRON Subject: BENJ.40387

Christopher -

Based upon your memo and our due diligence effort to date, is there any indication of (a) any steps Daishowa has taken to put the committee required under the Pay Equity Act or (b) any increase in compensation that would be consistent with the Pay Equity Act and therefore enable Daishowa to dispense with the need for a committee? Is there any way to currently assess what potential liabilities could be or to view any industry data on this issue that may indicate how extensive liability could be???

The main concern is that we are negotiating with Daishowa to be in a position to undertake, as of closing, all responsibilities associated with all matters disclosed, unless there is a legal noncompliance issue (e.g., failure to maintain proper permits). Since the requirements of the Pay Equity Act have not been identified to management as a concern, I need to ensure that this is a real issue (mostly from a \$'s exposure standpoint) vs. something so remote that it should not even be discussed.

Please let me know your thoughts. Thanks.

Mark Senior Counsel, ENA Phone: 713-345-8897 Facsimile: 713-646-3940 E-Mail: Mark.Greenberg@enron.com -----
Forwarded by Mark Greenberg/NA/Enron on 12/07/2000 08:56 PM -----

Johanne Berthiaume <berthiaumej@lapros.qc.ca> 12/07/2000 10:32 AM

To: "'blundyp@bennettjones.ca'" <blundyp@bennettjones.ca> cc: "'mark.greenberg@enron.com'" <mark.greenberg@enron.com> Subject: BENJ.40387

<<d4s_03!.DOC>> Memo re: Quebec Labour Issues

Regards

Christopher Deehy e-mail: deehyc@lapros.qc.ca tel: (514) 925-6353

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- d4s_03!.DOC

Message 25 of 167

FW: Licensor's Bankruptcy Issues & Agenda for Tomorrow

Sender	marcus.nettelton@enron.com
Recipients	['William' <wbates@mdbe.com>, 'Bart' <BDeamer@mdbe.com>, 'Bates', 'Deamer', 'michelle.cash@enron.com']
File	cash-m/all_documents/577.

Michelle

Fortunately we have already received some advice on the effects of bankruptcy on NOxTech from our patent counsel, which is attached. This is very promising and appears to put us very much in control of the intellectual property. Turning to the employment of the key individual, Bruce Sudduth, you will see from the covering email that we might want to take some immediate steps to preserve our ability to access him in the event bankruptcy is declared, however I am not convinced on the limited amount of information that we would not be running the risk of a tortious interference claim, unless we agreed it with the directors of NOxTech first and then proposed it to Bruce. What do you think?

Marcus ----- Forwarded by Marcus Nettelton/NA/Enron on 11/29/2000 08:41 AM -----

"Maher, David" <DMaher@mdbe.com> on 11/28/2000 03:27:11 PM To: "marcus.nettelton@enron.com"
<marcus.nettelton@enron.com> cc: "Bates, William" <wbates@mdbe.com>, "Deamer, Bart" <BDeamer@mdbe.com>

Subject: FW: Licensors's Bankruptcy Issues & Agenda for Tomorrow

Marcus, In case you had not seen this yet, attached is a memorandum we had prepared at Bart Clark's request anticipating NOxTech's possible bankruptcy. I have forwarded your contact information to Bill Bates, and he should be calling you tomorrow.

Best regards, Dave

-----Original Message----- From: Miller, Gilman Sent: Thursday, June 29, 2000 7:17 PM To: 'Barton Clark' Cc: Mastroianni, Ron; Michelson, Randy; Maher, David; Evans, Hank Subject: Licensors's Bankruptcy Issues & Agenda for Tomorrow Bart - The attached memo summarizes Enron's rights in various scenarios involving NOxTech filing for bankruptcy. The memo is self-explanatory and in discussing it with Ron and Randy they did not have any drafting advice that would alter the outcomes set forth in the memo. However, the suggestion was made that a term-of-years (as opposed to an at-will) consulting contract could be entered into between Bruce Sudduth and Enron providing that Enron would pay Bruce Sudduth a specified amount per hour (and perhaps even a small amount up front) in exchange for his agreeing to provide Enron with technical assistance on an as-needed basis. Such an agreement could not spring into effect upon a bankruptcy event (or it would be subject to the same analysis in the attached memo whereby specific performance could not be compelled). Similarly, it should not be referenced in the Transaction Documents (much less be a condition to closing). Instead it might simply run for a two-year period starting upon its execution presumably next month. If such a contract is something that you would like to pursue we could get an employment attorney working on drafting such an agreement. ---- With respect to tomorrow's call at 8 a.m. our time (10 a.m. your time). As I mentioned in my voice message, if we still have not seen anything from LeBoeuf with respect to the other Transaction Documents then you should simply call David Maher (650-849-4908) at that time to discuss the License Agreement as he will be turning that agreement. If you leave me a voice message (415-393-2520) indicating that any other comments have arrived from LeBoeuf overnight or earlier that morning then I will still come in by 8 a.m. to begin reviewing such comments in preparation for discussing them with you after your License Agreement discussion concludes. Of course, if we have not received any comments from LeBoeuf by that time then we will not be able to turn the other Transaction Documents in time for a Noon p.s.t. signing by NOxTech. Thanks, Gilman Miller McCutchen, Doyle, Brown & Enersen Three Embarcadero Center, 18th Floor San Francisco, California 94111 T - (415) 393-2520 F - (415) 393-2286 <<21255682.DOC>>

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McCUTCHEN, DOYLE, BROWN & ENERSEN, LLP

<http://www.mccutchen.com>

- 21255682.DOC

Message 26 of 167

Re: Fwd: GSP Benefits Required Action List

Sender	michelle.cash@enron.com
Recipients	['BENJAMIN G. CLARK' <BGCLARK@LLGM.COM>, 'amurray@llgm.com']
File	cash-m/sent/298.

Ann, I am following up on the status of the research involving Section 6.4 of the SPA; specifically, what are the potential liabilities of Enron selecting persons for termination and providing those names to the Seller? I would like to have this research asap because our time table is very short. Do you have any information on that? Thanks. Michelle Cash

"ANN MURRAY" <AMURRAY@LLGM.COM> on 07/25/2000 05:40:33 PM To: <michelle.cash@enron.com>, <PETER.del.vecchio@enron.com> cc: "BENJAMIN G. CLARK" <BGCLARK@LLGM.COM> Subject: Fwd: GSP Benefits Required Action List

Mr. del Vecchio and Ms. Cash,

We are following up regarding the outstanding benefits issues in the GSP purchase. It is very important that certain benefits matters be addressed and resolved before the Closing Date.

Attached is a copy of our Benefits Required Action list, which was sent to Dolores Lenfest, Mark Greenberg, and Mr. del Vecchio on July 21, 2000. We spoke with Stuart Zisman today, who suggested we make sure that both of you have receive a recent copy of the list. (Please let us know if you have any problems opening the WordPerfect document. The page set-up to print should be 'landscape'.)

Among the outstanding issues is the amount of potential withdrawal liability existing in the 2 multiemployer pension plans. These numbers should be requested from the multiemployer plans as soon as possible. A concern has been raised as to whether requesting such information from the multiemployer plans will create problems with the union or plan because the union or plan might be given the false impression that GSP anticipates terminating these benefits. We do not expect any such problems (especially if the plan is told that the sale is anticipated and the buyer wants to make sure of its potential liabilities). A request for withdrawal liability, although not a daily event, is something that falls within the ordinary administration of a plan. The plans should either have this amount immediately available, or be able to calculate this amount for you. If you would like us to assist you with obtaining this information, please let us know.

We have included Dolores Lenfest as the responsible person for the majority of the required actions, since she had been our main contact. If any of these actions have been assigned to another responsible party, please let us know.

Thank you. Ann Murray

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Ann E. Murray LeBoeuf, Lamb, Greene & MacRae 50 N. Laura St. Suite 2800 Jacksonville, FL 32202 (904) 630-5336 amurray@llgm.com Date: Fri, 21 Jul 2000 18:20:37 -0400 From: "ANN MURRAY" <AMURRAY@LLGM.COM> To: <dlenfes@enron.com>, <MARKGreenberg@enron.com>, <PETER.del.vecchio@enron.com> Cc: "ANDREW J FAWBUSH" <AFAWBUSH@LLGM.COM>, "BENJAMIN G. CLARK" <BGCLARK@LLGM.COM>, "JOHN G KLAUBERG" <JKLAUBER@LLGM.COM>, "RUTH HEARD" <RHEARD@LLGM.COM> Subject: GSP Benefits Required Action List Mime-Version: 1.0 Content-Type: multipart/mixed; boundary="=_5F071567.5E3F112D"

Attached in WordPerfect format is a required action list for benefits items. This list is intended to be a starting point for transferring and setting up new benefits plans for GSP employees.

If you have any questions or concerns, please let us know. Also, please let us know if you prefer this document in Word format.

Thank you, Ann Murray

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Ann E. Murray LeBoeuf, Lamb, Greene & MacRae 50 N. Laura St. Suite 2800 Jacksonville, FL 32202 (904) 630-5336
amurray@llgm.com

- 0153366.01

Message 27 of 167

Enron Amendment (corrected version)

Sender	cshaw@siebel.com
Recipients	['jbarnette@siebel.com', 'djimenez@siebel.com', 'michelle.cash@enron.com', 'cshaw@siebel.com']
File	cash-m/inbox/1.

Michelle,

My previous email was recalled for a minor correction. If you did receive the previous email, please replace it with the corrected attachments below. Again, I have attached the Amendment to the Professional Services Addendum per your conference call with Jacqueline Barnette, the Siebel Corporate Counsel. A copy of the Professional Services Addendum between Siebel and Enron is also attached as you requested. If you have any additional questions or comments, please feel free to contact Jackie directly at (678) 319-4510.

<<enr Amend 1 to PSA 010905b.doc>> <<Enron PSA.pdf>>

Thank You, Charlotte Shaw Sr. Contract Specialist Global Services 11625 Rainwater Drive, Suite 500 Alpharetta, GA 30004-8626 Phone (678) 624-5279 internally (4)5279 Fax (678) 319-4511

- enr Amend 1 to PSA 010905b.doc - Enron PSA.pdf

Message 28 of 167

Coal/Freight Candidate Jerry Prager

Sender	allbritton@clausman.com
Recipients	['alan.aronowitz@enron.com', 'michelle.cash@enron.com']
File	cash-m/resumes_for_recruiting/10.

Good morning, Alan. Since our last discussion yesterday, I have had a detailed conversation with Jerry Prager and am pleased to report that, not only is he an experienced energy lawyer who is very familiar with the coal industry, but that he is also experienced in the legal issues involved in the freight and transportation of coal and other energy products. Licensed in both Texas and Ohio, of course, Jerry is an attractive candidate. Interestingly, when he had his own law practice in Dallas ('97 -- '99), he represented Enron Oil & Gas in Mexico on a variety of upstream transactions. He is also fluent in Spanish.

Jerry is available to visit with you today or tomorrow afternoon by telephone. His direct number in Cincinnati is 513.721.5525 and I want to encourage you to call him directly if you are interested. I will be out of the office between 10:00 and 1:00, but will be in the office this afternoon if you would like to visit. Best regards,

J. Lee Allbritton, Jr. Vice President, General Counsel & Director of Attorney Recruiting Clausman Legal Staffing, Inc. 816 Congress Avenue, Ste. 1100 Austin, Texas 78701 512.493.5770 (tel) 512.493.5771 (fax) 888.296.5770 (toll-free)

Message 29 of 167

Re: Pittsburg Matter

Sender	michelle.cash@enron.com
Recipients	['knotestine@littler.com']
File	cash-m/all_documents/775.

Kerry, I think I sent a letter and a check for partial payment last week. Let me know if you don't get it in the next few days.
Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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"Notestine, Kerry" <KNotestine@littler.com> 06/25/2000 12:10 PM

To: "'michelle.cash@enron.com'" <michelle.cash@enron.com> cc: "Carrol, Robert" <RCarrol@littler.com> Subject: Pittsburg Matter

Michelle:

Remember the issue with the second opinion on antitrust that we had on the Pittsburg California matter? We have about a \$10,000 bill that we paid to the other law firm that did the opinion. You indicated that you had known about the opinion, but expected something much less expensive. Of course, we also sent you the bill several months after the matter concluded. Any indication if Enron will pay any part of that bill? If not, let me know, so that I can write it off and you will not continue to get reminder notices. Thanks.

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

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Littler Mendelson, P.C. <http://www.littler.com>

Message 30 of 167

Re: Enron/continuance of trial date

Sender	michelle.cash@enron.com
Recipients	['tcarrico@spilmanlaw.com', 'Charles L. Woody' <cwoody@spilmanlaw.com']
File	cash-m/sent/456.

Tim,

Do you think these depositions will take a day apiece? Or, can we schedule more than one in a day? Let me know, so that I can arrange schedules.

Thanks for the update! Good work.

Michelle

"Tim C. Carrico" <tcarrico@spilmanlaw.com> on 11/17/2000 10:26:21 AM To: "Michelle Cash (E-mail)" <michelle.cash@enron.com> cc: "Charles L. Woody" <cwoody@spilmanlaw.com> Subject: Enron/continuance of trial date

Michelle,

We had the pretrial hearing today before Judge Kaufman. He granted our Motion to continue the trial date. The new date is February 20, 2001. The next pretrial conference is scheduled February 2, 2000, and all of the depositions must be completed by that date. I further informed the Judge that Enron would make George McClellan, Tom McQuade, Mike Beyer, Dan Reck, and Andrea Frate Bennett available in January, 2000. He will hold Enron to this.

Therefore, Please obtain dates for the depositions of George McClellan, Dan Reck, and Tom McQuade, in Houston Texas during the month of January 2001. It is my understanding based on past correspondence between you and Chuck Woody that the Enron Depositions in Houston will occur at Locke Liddell & Sapp LLP, 3400 Chase Tower, 600 Travis Street, Houston, Texas 77002-3095. Further, please do not schedule any of the depositions on January 16th or 17th because the Plaintiff's counsel will be unavailable on those days.

Furthermore, please provide a deposition date for Mike Beyer in Pittsburgh Pa. during the Month of January 2001. Again, the Plaintiff's counsel will not be available the 16th and 17th of that month.

Finally, please provide a date for Ms. Frate for January 2001 if possible that is not on the 16th or 17th.

I will provide Plaintiff's counsel with a notice of the availability of Enron employees upon receipt of your response to this E-mail.

Thanks

Tim C. Carrico Spilman Thomas & Battle, PLLC email: tcarrico@spilmanlaw.com phone: (304)-340-3856 cell phone: (304)-549-2681 fax: (304)-340-3801 address: 300 Kanawha Blvd., East Charleston, W.Va. 25301

Message 31 of 167

We've launched!

Sender	michelle.cash@enron.com
Recipients	['brian_hoogendam@computerhorizons.com']
File	cash-m/all_documents/334.

Here it is, you nabe. Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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----- Forwarded by Michelle Cash/HOU/ECT on 06/22/2000 01:42 PM -----

Jeff Hoogendam <Jeff@SmartPrice.com> 06/21/2000 05:16 PM

To: Michelle Cash/HOU/ECT@ECT cc: Subject: We've launched!

To: Michelle Cash Subject: We've launched SmartPrice.com

OK, so maybe I haven't kept in touch lately - but there's a pretty good reason for it. I've been working for a new company called SmartPrice.com, and we've been pushing hard to get our web site launched. Now that we've officially launched, I want to make sure my friends are the first to come by and use it. You can find us at <http://www.smartprice.com/>.

We deliver all of the information you need to make smart long distance choices. All you need to do is come to our site, give us a little information about your calling habits, and we'll find you the best deal. The best news is: our service is free.

Now that you know what's been keeping me so busy, I hope you'll come to the site and start saving money. I think you'll find it's worth it - so far, our customers have saved an average of 30% on their long distance bills by using our service.

As I mentioned, our site is fairly new. We're really interested in learning as much as possible, and this is where we can use your help. If you have suggestions or comments once you've come by the site, please send them to feedback@smartprice.com. The more we learn, the better we can make our site. (Also, we're breaking in our customer care processes, so if you're going through the site and have questions, please give us a call at 1-877-550-5317.)

Thanks!

Jeff

Jeff Hoogendam - President & CEO SmartPrice.com, Inc. "Changing the way the world buys telecom." T: 512.342.8800, x3008 F: 512.342.1072 www.smartprice.com

Message 32 of 167

Re: Gignilliat v. Enron

Sender	michelle.cash@enron.com
Recipients	['kriste.sullivan@enron.com']
File	cash-m/all_documents/772.

Kriste, which business unit would have handled this? I would need to confirm with them on it. I have no problem with the dollar amount.

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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Kriste Sullivan@ENRON 06/23/2000 02:42 PM

To: Michelle Cash/HOU/ECT@ECT cc: Subject: Gignilliat v. Enron

Please note the counter settlement offer set forth in the email below by our local counsel in the Gignilliat Charge of Discrimination matter.

I recommend that we settle the matter for \$7,500 or a little less if we can get there.

I think it is your Company's money so I will defer to you on this one.

Please advise.

Kriste K. Sullivan Enron Corp. Legal EB 4861 Ext. 37557 ----- Forwarded by Kriste Sullivan/Corp/Enron on 06/23/2000 02:33 PM -----

"Suppa, Suzanne M." <SuppaSM@bingham.com> 06/23/2000 01:43 PM

To: "'ksulliv@enron.com'" <ksulliv@enron.com> cc: bcc: Subject: Gignilliat v. Enron

Hi Kriste, As we discussed, I offered Gignilliat a \$5,000 nuisance value settlement. Gignilliant's counsel, after consulting with his client, said he would take \$7,500 to settle the case. While I think Enron has a very strong defense to the disability

claim, I am less certain about the aiding and abetting claim. As we discussed, the Mass. Commission Against Discrimination allowed Gignilliat to amend his charge to add this claim. Gignilliat may be able to create enough of a fact contest about what the plant manager (Dennis Sherrin) told ANP about his disability to at least get past the probable cause stage. While I still think that in the end, Enron has a very good chance of prevailing on the aiding and abetting claim, \$7,500 is a good, final resolution to avoid further litigation. Let me know what you think. Thanks,

Suzanne M. Suppa Bingham Dana LLP 150 Federal Street Boston, MA 02110 (617) 951-8976

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FW: Lake Worth, R000535, Building trades picketing jobsite

Sender	michelle.cash@enron.com
Recipients	['cindy.skinner@enron.com', 'exec.jones@enron.com', 'B-Mike Ranz; B-Bob Black; B-Mike Indivero; LW-Joe Osler']
File	cash-m/sent_items/17.

FYI re: NEPCO picketing issues. Michelle

-----Original Message-----

From: David.Lund@nepco.com@ENRON

[mailto:IMCEANOTES-David+2ELund+40nepco+2Ecom+40ENRON@ENRON.com] Sent: Tuesday, September 18, 2001 6:49 PM To: Cash, Michelle Cc: Mike.Indivero@nepco.com; Barbara.Dambergs@nepco.com Subject: FW: Lake Worth, R000535, Building trades picketing jobsite

Michelle,

Two in one day. We understand that the pipe fitters are also planning to picket the Lake Worth, Florida project as well. Our execution team needs to get some guidance and planning for this picketing should it interfere with the progress of the work. In that respect, we need to dial in Rick Johnson and Ogletree to plan and communicate that plan to the execution team. I think the first step is a call between yourself, me, Mark Stublely and Mike Indivero. And then another call with all folks or a meeting at the jobsite to lay out the plan.

Barbara, please organize a call for Mike, Michelle, Mark Stublely and me. Thanks. -----Original Message----- From: B-Galen Torneby Sent: Tuesday, September 18, 2001 4:10 PM To: B-David Lund Cc: B-Mike Ranz; B-Bob Black; B-Mike Indivero; LW-Joe Osler Subject: Lake Worth, R000535, Building trades picketing jobsite

David,

I have been advised by our Construction Manager, Mr. Joe Osler that while he was visiting the City of Lake Worth Building Planning and Zoning dept regarding our permit status he learned that the pipefitters have inquired about permit requirements to picket our site. Apparently the City informed them that no permit is required. I have heard that the pipefitters have established a picket line at the Payne Creek site today. We will need local legal counsel to assist us in this regard.

Mike Indivero, I understand that Mr. Mike Croall's release date from NEPCO is Oct 31, 2001. Please advise as to who his replacement is and their report date.

Thanks,

Galen J. Torneby

Project Manager

National Energy Production Corporation (NEPCO)

11831 North Creek Parkway North

Bothell, WA 98011 USA

Tel: 425-415-3052

Cell: 425-922-0475

Fax: 425-415-3098

email: <mailto:galent@nepco.com> mailto:galen.torneby@nepco.com

Message 34 of 167

Fwd: Employee Benefits Due Diligence

Sender	michelle.cash@enron.com
Recipients	['rick.johnson@enron.com', 'dolores.lenfest@enron.com', 'fmackin@aol.com']
File	cash-m/all_documents/790.

Dee/Pat/Rick: Here is the diligence memo. Michelle ----- Forwarded by Michelle Cash/HOU/ECT on 07/09/2000 07:13 PM -----

"GEORGE T. LEE" <GTLEE@LLGM.COM> on 07/09/2000 07:07:28 PM To: <MICHELLE.cash@enron.com> cc: Subject: Fwd: Employee Benefits Due Diligence

Michelle, attached is our June 22nd due diligence memo that we thought we had forwarded to Dolores Linfest. Perhaps we did not have a correct e-mail address. Please call me at 713-287-2066 if you have any questions.

This e-mail, including attachments, contains information that is confidential and it may be protected by the attorney/client or other privileges. This e-mail, including attachments, constitutes non-public information intended to be conveyed only to the designated recipient(s). If you are not an intended recipient, please delete this e-mail, including attachments, and notify me by return mail, e-mail or at 713-287-2066. The unauthorized use, dissemination, distribution or reproduction of this e-mail, including attachments is prohibited and may be unlawful. George T. Lee, gtle@llgm.com. Date: Thu, 22 Jun 2000 09:04:50 -0400 From: "ANN MURRAY" <AMURRAY@LLGM.COM> To: <Dolores.Lenfest@enron.com> Subject: Employee Benefits Due Diligence Mime-Version: 1.0 Content-Type: multipart/mixed; boundary="=_FEA6A3D5.A5C4E8A4"

Ms. Lenfest,

Benjamin Clark requested that we forward the attached employee benefits due diligence directly to you. As you will note from the highlighted text, the information provided thus far raises numerous questions relating to employee benefits matters.

Please let us know if you have any questions.

Ann Murray

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Ann E. Murray LeBoeuf, Lamb, Greene & MacRae 50 N. Laura St. Suite 2800 Jacksonville, FL 32202 (904) 630-5336
amurray@llgm.com

- 0151526.02

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Re: Law Candidate**Sender** michelle.cash@enron.com**Recipients** ['kriste.sullivan@enron.com', 'molly.magee@enron.com']**File** cash-m/sent/280.

Enron North America had some summer clerks this summer. Generally, we do not hire lawyers without significant legal experience (i.e., more than 6 years) unless they have some extraordinary skills and abilities (e.g., someone with lots of Enron experience).

I hope that helps.

Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

This message may contain confidential information that is protected by the attorney-client and/or work product privileges.

Kriste.Sullivan@enron.com 06/29/2000 09:37 AM

To: Molly.Magee@enron.com cc: Michelle.Cash@enron.com Subject: Re: Law Candidate

We have had some legal interns that were on rotations in the Company ,however, I am not sure what program that they were attributed to within Enron. I believe it was the old diversity program. I do not know the state of affairs today with respect to legal interns or associates. You may want to check with Michelle Cash as she may know if ENA has any legal interns or associates.

Kriste K. Sullivan Enron Corp. Legal 1400 Smith, EB 4861 Houston, TX 77002 (713) 853-7557 (713) 646-5847 Fax
KSulliv@Enron.com

This message may contain confidential information that is protected by the attorney-client and/or work product privileges.

Molly Magee@ECT To: Kriste Sullivan/Corp/Enron@ENRON cc: 06/28/2000 Subject: Re: Law Candidate 06:18 PM

Do you have some sort of policy about hiring lawyers? We have received a resume, but didn't know if anyone in Legal would be interested in seeing it.

Thanks, Molly ----- Forwarded by Molly Magee/HOU/ECT on 06/28/2000 06:17 PM -----

Charlene Jackson@ENRON 06/26/2000 06:25 PM

To: Lexi Elliott/NA/Enron@Enron cc: Molly Magee/HOU/ECT@ECT Subject: Re: Law Candidate (Document link: Molly Magee)

Lexi, I don't think the legal department takes candidates without prior legal experience. Molly, will you check with Kriste or Sharon on their policy so that we know for the future. Lexi, there may be some interest in our Program if he is interested and has had some type of finance experience. Give me a copy of his resume.

Thanks

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revised fee schedule in parts

Sender	amurray@llgm.com
Recipients	['cynthia.barrow@enron.com', 'michelle.cash@enron.com', 'lfauchaux@gspcorp.com', 'david.howe@enron.com']
File	cash-m/garden_state_paper/3.

Louis, Michelle, and Cynthia,

Attached in Word is PIC's revised Administration Agreement and Trust Accounting Agreement for your review. The Administration Agreement states that PIC will provide third party administration and actuarial services to the Plan, including calculation of contributions, preparation of disclosures and annual reports, maintenance of day-to-day records, and enrollment and termination of participants. The Trust Accounting Agreement states that PIC will handle the trust accounting for the Plan (please let us know if Enron prefers to use someone else for this task).

PIC has agreed to waive any charges for the GUST restatement of the Plan, which will be taking place later this year.

Note the following basic administration charges:

Initially: \$1,000 analysis, design, and consulting \$1,000 plan document & SPD \$ 175 IRS submission fee (for volume submitter document)

Ongoing: \$1,200 annual administration plus \$25 per participant

Additional charges will apply, including nondiscrimination testing and actuarial computations at \$150/hour.

If the agreements meet with your approval, GSP's HR Manager has already been authorized to sign any necessary documents. Therefore, Louis should sign where indicated and return the originals to Kevin Glueck, Pension Investors Corporation, 3939 Hollywood Blvd., Suite 1A, Hollywood, FL 33021, along with a retainer of \$2,000 for the initial design and plan document fees. Please provide copies to us.

Please let us know if you have questions, or you may contact Kevin Glueck at PIC directly at 954-986-8688 ext. 210.

Thanks, Ann

Ann E. Murray LeBoeuf, Lamb, Greene & MacRae 50 N. Laura St. Suite 2800 Jacksonville, FL 32202 Telephone: (904) 630-5336 Fax: (904) 353-1673 E-mail: amurray@llgm.com

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- 3S1201!.DOC

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FW: Corrected: World Trade Center, as of Friday 14 September 2001

Sender	trey.cash@enron.com
Recipients	['michelle.cash@enron.com']
File	cash-m/deleted_items/246.

-----Original Message-----

From: Jeffrey Polsky [mailto:jeffrey.polsky@db.com] Sent: Friday, September 14, 2001 2:04 PM To: Jeffrey Polsky
Subject: Corrected: World Trade Center, as of Friday 14 September 2001 Importance: High

This awkward E-mail is my way of checking to see if you are all right and/or to let you know that we seem to be all right here. I hope you are safe.

You may know that 130 Liberty Street was immediately across the street from World Trade Center 2, the so-called "south tower." My understanding is that we are very fortunate to be able to report that our building and our offices in World Trade Center 4 were evacuated successfully. However, that is not an official statement, and I have no additional information at this time.

Sadly, until further notice, the former 130 Liberty Street address cannot be used for any reason. If you need to deliver correspondence or documentation of any kind that cannot be held pending discussion and/or further instruction, please deliver it in care of:

BRIAN J. McGUIRE DEUTSCHE BANK A.G. NEW YORK 31 WEST 52ND STREET NYC01-1312 NEW YORK NY
10019-6160

Facsimile: 212-469-5630 Telephone: 212-469-5589

Although I have no telephone at this time, it might be possible to reach me via David C. Rodriguez at 212-469-7116 or Doris Eagan at 212-469-5892. Please keep in mind that we have access to no paper records at this time.

Additionally, because so many people have been affected by Tuesday's events and have had so many questions, I have taken the liberty of attaching a Microsoft Word document that contains a summer 2000 photograph of the area that shows the proximity of 130 Liberty Street to the World Trade Center.

----- Forwarded by Jeffrey Polsky on 14-09-2001 13:38 -----

In the attached Microsoft _Word_ document (586KB) (602,112 bytes used) is an annotated satellite photograph of lower Manhattan and the once World Trade Center from last year that identifies the location of my now-former office building. Annotations have been corrected pursuant to a press conference of the mayor of New York City, ended today at 10:40.

The document has been scanned with antivirus software prior to sending. Although it was determined to be free of software virus, it should be scanned again prior to launching or opening on your computer or network.

Copyright ? Jeffrey Polsky

(See attached file: WTC_DB_Plaza.doc)

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RE: lake worth project

Sender	david.lund@nepco.com
Recipients	['michelle.cash@enron.com', 'mike.indivero@nepco.com']
File	cash-m/inbox/15.

Mike, I know of no hold up here. I spoke to Michelle Cash and she had not withheld or said different to retaining this counsel. I would suggest that you call Michelle (713-853-6401) anytime you have a concern with regard to the progress of any labor and employment matter handled by outside or inside counsel. And if Stublely is concerned about who he would like to work with in Florida, he is equally able to call Michelle and discuss it.

As for a review of the training on union avoidance by Ogletree Deakins, by copy to Michelle, I'll ask for her input here.

I saw the correspondence from Mr. Fitzgerald regarding his meeting with the Mayor of Lake Worth. I interpret this as a public official saying what is expected, neither favoring the picketers or us, just saying he will up-hold the law. We appreciate that.

David H. Lund, Jr. Assistant General Counsel National Energy Production Corporation 11831 North Creek Parkway N. Bothell, WA 98011 425-415-3138 Fax: 425-415-3032 David.Lund@nepco.com or davidlu@nepco.com

-----Original Message-----

From: B-Mike Indivero Sent: Wednesday, October 03, 2001 2:28 PM To: B-David Lund Cc: B-Galen Torneby; B-Bob Black; B-John Gillis Subject: FW: lake worth project

David...fyi...thought this would have been resolved by now...does our movement over to eggs change the counsel we work with within Enron?...hate to see us not have local counsel ready to go if/when needed...setting this up is a minimal cost item...(by the way staff training for union avoidance and preventing harassment conducted by odnss is set up for 11/6)...suggestions/thoughts...let me know...thanks...Mike

-----Original Message-----

From: Stuble, Mark [mailto:StubleMM@odnss.com] Sent: Wednesday, October 03, 2001 12:36 PM To: 'Mike.Indivero@nepco.com' Subject: RE: lake worth project

I forwarded our recommendation for local counsel to Michelle Cash. She indicated that Enron might want to use another firm. In the meantime, we will continue to use Cole Fitzgerald. On September 24, I copied you (as well as Michelle Cash and David Lund) on Cole's correspondence concerning his meeting with the mayor of Lake Worth. So, his connections should prove helpful.

Lund has provided me a copy of NEPCO's subcontract. Our review and comments should be complete by Friday.

We conducted the quick, over-the-phone training for the management team at Lake Worth approximately two weeks ago. We agreed to conduct on-site training when more of the project management team is present at the site. No specific time is scheduled.

We have not received a plat for the project. We have not determined the gate setup. We have determined, however, that all construction traffic and deliveries would use the southern gate, not the main gate to the facility.

-----Original Message-----

From: Mike.Indivero@nepco.com [mailto:Mike.Indivero@nepco.com] Sent: Wednesday, October 03, 2001 2:17 PM To: mark.stuble@odnss.com Cc: Galen.Torneby@nepco.com; Bob.Black@nepco.com; Gloria.Rivas@nepco.com; Mike.Croall@nepco.com; rick.johnson@enron.com Subject: lake worth project

mark...where are with possibly of obtaining local counsel for the lake worth project?...have we reviewed the fence/gate issue and come to some conclusions?...also what about the training we discussed?... pls let me know ..thanks...mike

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RE: lake worth project

Sender	mike.indivero@nepco.com
Recipients	['michelle.cash@enron.com', 'david.lund@enron.com']
File	cash-m/inbox/18.

I'll give Michelle a call. I assume she will remain as the Enron contact for NEPCO?

-----Original Message----- From: B-David Lund Sent: Thursday, October 04, 2001 5:57 PM To: B-Mike Indivero Cc: B-Galen Torneby; B-Bob Black; B-John Gillis; 'Cash, Michelle' Subject: RE: lake worth project Mike, I know of no hold up here. I spoke to Michelle Cash and she had not withheld or said different to retaining this counsel. I would suggest that you call Michelle (713-853-6401) anytime you have a concern with regard to the progress of any labor and employment matter handled by

outside or inside counsel. And if Stublely is concerned about who he would like to work with in Florida, he is equally able to call Michelle and discuss it. As for a review of the training on union avoidance by Ogletree Deakins, by copy to Michelle, I'll ask for her input here. I saw the correspondence from Mr. Fitzgerald regarding his meeting with the Mayor of Lake Worth. I interpret this as a public official saying what is expected, neither favoring the picketers or us, just saying he will up-hold the law. We appreciate that. David H. Lund, Jr. Assistant General Counsel National Energy Production Corporation 11831 North Creek Parkway N. Bothell, WA 98011 425-415-3138 Fax: 425-415-3032 David.Lund@nepco.com or davidlu@nepco.com -----Original Message----- From: B-Mike Indivero Sent: Wednesday, October 03, 2001 2:28 PM To: B-David Lund Cc: B-Galen Torneby; B-Bob Black; B-John Gillis Subject: FW: lake worth project David...fyi...thought this would have been resolved by now...does our movement over to egs change the counsel we work with within Enron?...hate to see us not have local counsel ready to go if/when needed...setting this up is a minimal cost item...(by the way staff training for union avoidance and preventing harassment conducted by odnss is set up for 11/6)...suggestions/thoughts...let me know...thanks...Mike -----Original Message----- From: Stublely, Mark [mailto:StubleMM@odnss.com] Sent: Wednesday, October 03, 2001 12:36 PM To: 'Mike.Indivero@nepco.com' Subject: RE: lake worth project I forwarded our recommendation for local counsel to Michelle Cash. She indicated that Enron might want to use another firm. In the meantime, we will continue to use Cole Fitzgerald. On September 24, I copied you (as well as Michelle Cash and David Lund) on Cole's correspondence concerning his meeting with the mayor of Lake Worth. So, his connections should prove helpful. Lund has provided me a copy of NEPCO's subcontract. Our review and comments should be complete by Friday. We conducted the quick, over-the-phone training for the management team at Lake Worth approximately two weeks ago. We agreed to conduct on-site training when more of the project management team is present at the site. No specific time is scheduled. We have not received a plat for the project. We have not determined the gate setup. We have determined, however, that all construction traffic and deliveries would use the southern gate, not the main gate to the facility. -----Original Message----- From: Mike.Indivero@nepco.com [mailto:Mike.Indivero@nepco.com] Sent: Wednesday, October 03, 2001 2:17 PM To: mark.stublely@odnss.com Cc: Galen.Torneby@nepco.com; Bob.Black@nepco.com; Gloria.Rivas@nepco.com; Mike.Croall@nepco.com; rick.johnson@enron.com Subject: lake worth project mark...where are with possibly of obtaining local counsel for the lake worth project?...have we reviewed the fence/gate issue and come to some conclusions?...also what about the training we discussed?... pls let me know ..thanks...mike

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FW: Aug. 29 -- BNA's Corporate Counsel Weekly

Sender	sylvia.hu@enron.com
Recipients	['jim.armogida@enron.com', 'ann.ballard@enron.com', 'clement.abrams@enron.com']
File	cash-m/inbox/dlr/2.

User ID: enronccw PW: bnaweb22

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON
[mailto:IMCEANOTES+22BNA+20Highlights+22+20+3Cbhighlig+40bna+2Ecom+3E+40ENRON@ENRON.com] Sent:
Tuesday, August 28, 2001 11:27 PM To: BNA Highlights Subject: Aug. 29 -- BNA's Corporate Counsel Weekly

BNA'S CORPORATE COUNSEL WEEKLY Highlights & Table of Contents August 29, 2001

ISSN 1522-5305

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FW: Oct. 24 -- BNA's Corporate Counsel Weekly

Sender	sylvia.hu@enron.com
Recipients	['jim.armogida@enron.com', 'ann.ballard@enron.com', 'clement.abrams@enron.com']
File	cash-m/deleted_items/126.

User iD: enronccw PW: bnaweb22

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON Sent: Tuesday, October 23, 2001 11:25 PM To: BNA Highlights
Subject: Oct. 24 -- BNA's Corporate Counsel Weekly

BNA'S CORPORATE COUNSEL WEEKLY Highlights & Table of Contents October 24, 2001

ISSN 1522-5305

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FW: July 18 -- BNA's Corporate Counsel Weekly

Sender	sylvia.hu@enron.com
Recipients	['jim.armogida@enron.com', 'ann.ballard@enron.com', 'clement.abrams@enron.com']
File	cash-m/inbox/dlr/11.

User ID: enronccw PW: bnaweb22

-----Original Message-----

From: "BNA Highlights" <bhighlig@bna.com>@ENRON
[mailto:IMCEANOTES+22BNA+20Highlights+22+20+3Cbhighlig+40bna+2Ecom+3E+40ENRON@ENRON.com] Sent:
Tuesday, July 17, 2001 11:26 PM To: BNA Highlights Subject: July 18 -- BNA's Corporate Counsel Weekly

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Change in Invoice Header - Enron

Sender	diane.goode@enron.com
Recipients	['sking@tindallfoster.com', 'margaret.daffin@enron.com', 'michelle.cash@enron.com', 'agruber@tindallfoster.com...]
File	cash-m/deleted_items/184.

Alice:

We need to change the header on the invoices you are forwarding to Michelle Cash. Beginning immediately, the invoices should be addressed as follows:

Company Name - Codes Margaret Daffin, EID # 10004155 c/o Michelle Cash P. O. Box 4734 Houston, Texas 77210-4734

Margaret will be reviewing and coding these invoices. Michelle will provide a second review and approval on an as-needed basis.

Thanks for all your help. I have enjoyed working with you.

Diane Goode Senior Specialist Enron North America 1400 Smith Street, EB3833 Houston, TX 77002-7361 (713) 345-7103 (713) 646-3490 (fax) Diane.Goode@Enron.com

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:EMCMD: MGN# 100127

Sender	enron@easymatch.com
Recipients	[]
File	cash-m/personal/8.

Command: MATCH Date: 7/20/2001 Time: 11:20:54 AM TransactionID: 100127 AgencyID: 10116 Recipient: Tulane University Gift Accounting Office 3439 Prytania St., Suite 300 New Orleans, LA 70115 DonorID: 5374 GiftDate: 7/16/2001 GiftAmount: 100 Purpose: Tulane International Initiatives Fund contribution Result: Success

If you have not already done so, please send your donation to Tulane University Gift Accounting Office 3439 Prytania St., Suite 300 New Orleans, LA 70115. If they do not receive your donation within five days we will have to deny this request.

We have received the above Request. If everything appears correct there is no need to contact us. However, if you did not make this request or there is an error in the above information, then email us at: enron@easymatch.com or call us at: 1-866-545-9204.

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Re: Enron Answer to Second Amended Complaint;

Sender	michelle.cash@enron.com
Recipients	['tcarrico@spilmanlaw.com', 'Charles L. Woody' <cwoody@spilmanlaw.com>]
File	cash-m/sent/17.

Tim, was it accepted by the court? Michelle

"Tim C. Carrico" <tcarrico@spilmanlaw.com> on 11/29/2000 12:55:47 PM To: "Michelle Cash (E-mail)" <michelle.cash@enron.com> cc: "Charles L. Woody" <cwoody@spilmanlaw.com> Subject: Enron Answer to Second Amended Complaint;

Michelle,

Today, I faxed you a copy of the Plaintiff's Second Amended Complaint. I am in the process of creating Enron's answer based on my conversations with McClellan, Reck, McQuade. I need to ask you a couple of questions regarding the answer; Please call me at your earliest possible convenience.

Tim C. Carrico Spilman Thomas & Battle, PLLC email: tcarrico@spilmanlaw.com phone: (304)-340-3856 cell phone: (304)-549-2681 fax: (304)-340-3801 address: 300 Kanawha Blvd., East Charleston, W.Va. 25301

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Employment Law Learning Technology

Sender	gborchart@elt-inc.com
Recipients	['notestine@enron.com', 'michelle.cash@enron.com', 'knotestine@littler.com']
File	cash-m/deleted_items/203.

Michelle,

I have been working with Diane Goode over the past two months regarding the online computer based compliance training that we provide. I understand that moving forward Diane has asked me to follow up directly with you in regards to the project.

I will be in Houston on the 29th - 30th of this month if there is a need for us to meet to discuss the project. As of late Diane has informed me that you still need to view the courseware prior to moving forward. Please let me know if I can assist in this area. I will follow up with you by week end to get a update from you regarding the project.

I look forward to speaking soon.

Gary W. Borchart

Employment Law Learning Technologies Vice President of Sales 2049 Century Park East, 5th Floor Los Angeles, CA
90067-3107 Phone: 310-712-7350 Cell: 661-645-0809 Fax: 415-982-1203 gborchart@elt-inc.com

www.elt-inc.com

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Re: Richard Clonch v. CRDC, Enron

Sender	michelle.cash@enron.com
Recipients	['tcarrico@spilmanlaw.com', 'cwoody@spilmanlaw.com']
File	cash-m/all_documents/512.

Tim, I just got your letter about the January trial setting. When did we learn of that setting? How do we accomplish the goal of keeping our business people free from depositions at year-end? Can that be done? Michelle

"Tim C. Carrico" <tcarrico@spilmanlaw.com> on 11/03/2000 08:30:19 AM To: "Michelle Cash (E-mail)" <michelle.cash@enron.com> cc: "Charles L. Woody" <cwoody@spilmanlaw.com> Subject: Richard Clonch v. CRDC, Enron

Michelle, I just spoke to Brian Glasser; he informed me that Clonch wants 1.2 mil, therefore, no settlement. However, Clonch and Cline have agreed to meet again this coming Monday to discuss settlement. Apparently, Clonch is going to go back and look at his numbers.

Tim C. Carrico Spilman Thomas & Battle, PLLC email: tcarrico@spilmanlaw.com phone: (304)-340-3856 cell phone: (304)-549-2681 fax: (304)-340-3801 address: 300 Kanawha Blvd., East Charleston, W.Va. 25301

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Re: Clonch Deposition:

Sender	michelle.cash@enron.com
Recipients	['tcarrico@spilmanlaw.com']
File	cash-m/all_documents/18.

I've asked them for dates, and I've got them from 2 of them. Let me bug them again early next week. Tell him to chill out -- his client's deposition has been scheduled and rescheduled too many times to count.

"Tim C. Carrico" <tcarrico@spilmanlaw.com> on 11/30/2000 03:49:46 PM To: "Michelle Cash (E-mail)" <michelle.cash@enron.com> cc: Subject: Clonch Deposition:

Michelle,

Clonch's deposition is going to take place this Sunday at Spilman Thomas & Battle at 9:00 a.m. I will provide you with a transcript upon receipt. Additionally, counsel for Clonch continues to call me and write me letters for Deposition dates for Enron officials. They have provided me with the following dates on which they will be available in a letter dated 11/27/00:

Jan 3-5 Jan 8-12 Jan 22-26

Tim C. Carrico Spilman Thomas & Battle, PLLC email: tcarrico@spilmanlaw.com phone: (304)-340-3856 cell phone: (304)-549-2681 fax: (304)-340-3801 address: 300 Kanawha Blvd., East Charleston, W.Va. 25301

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ELT IPT Letter

Sender	michelle.cash@enron.com
Recipients	['twanda.sweet@enron.com']
File	cash-m/all_documents/76.

please save, run spell check, and print for my review. I think that Robert Jones or Oxley will have to sign it instead of me, since I am not an officer. Thanks. MHCC

----- Forwarded by Michelle Cash/HOU/ECT on 12/07/2000 09:53

PM -----

"Staley, Jim" <JStaley@elt-inc.com> on 12/05/2000 12:15:30 PM To: "michelle.cash@enron.com"
<michelle.cash@enron.com> cc: Subject: ELT IPT Letter

Michelle, here is the letter that Kerry and I were able to put together this morning. Hopefully this is exactly what you wanted. If all is o.k., please sign and fax a copy back to me at 214-880-0181 and send the original to: ELT Attn: Gary Meisner 650 California Street

San Francisco California 94108

Please date the letter for November 30th since we have already started the preparation for the materials and scheduling. Thanks

<<Enron Extension Letter2.doc>>

Jim Staley Account Executive Employment Law Learning Technologies Phone: (214) 880-8166 Fax: (214) 880-0181
jstaley@elt-inc.com www.elt-inc.com

- Enron Extension Letter2.doc

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RE: ruling on affidavit language.

Sender	michelle.cash@enron.com
Recipients	['christopher.kravas@enron.com', 'daniel.reck@enron.com']
File	cash-m/sent_items/250.

That is a close call. Has he already called on the acquiring company? If so, then I would think it would be ok. If not, I don't think that he could contact his friends who used to be at Novarco simply because they were acquired. That, to me, would violate the spirit of the affidavit language, particularly if Richardson still will do business with the acquiring company through Novarco.

We could revisit this once the dust has settled after the acquisition to see if that approach still is warranted.

Michelle

-----Original Message-----

From: Kravas, Christopher Sent: Tuesday, June 12, 2001 1:33 PM To: Cash, Michelle Cc: Reck, Daniel; Ashman, John
Subject: ruling on affidavit language.

Novarco (one of the companies identified on John Ashman's affidavit as a hands off account) is being aquired by a company that is not on the list. There is some language in the affidavit (3c1) which appears to extend the list to the companies identified and their "subsidiaries, affilitates, heirs, and assigns"; would a buyer be considered one of these?

Chris Kravas Enron Freight Markets 1400 Smith Street Houston, TX 77002 t- 713 853 5180 f- 713 853 6061 mobile- 713 301 0986

*Message 51 of 167***bad news**

Sender	karenfitzgerald@bigfoot.com
Recipients	['krumme@mdjlaw.com', 'mcash@ect.enron.com', 'szm@sonnenschein.com']
File	cash-m/all_documents/467.

Bad news girls:

I just got a call from Pam's secretary who let me know that Pam's brother Russ was killed in a car accident last week. Pam and I were supposed to have lunch this week and she called to fill me in. I don't know many of the details yet because her secretary did not know much.

Apparently they are having a military service in Seattle and they will probably bury him in Texas since Pam's parents are moving to Texas soon. I don't know when the service in Texas will be.

Please keep her in your thoughts and prayers because I know that this is going to be terribly hard for her. She and Russ were very close.

I'll fill you in as soon as I know more,

Thanks, Karen

Karen K. Fitzgerald Kleiman, Lawrence, Baskind & Fitzgerald, LLP 4849 Greenville Avenue, Suite 1605 Dallas, TX 75206 214.265.9958 214.265.7411 (fax) karenfitzgerald@bigfoot.com

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*Message 52 of 167***RE: Harassment Training**

Sender	michelle.cash@enron.com
Recipients	['david.lund@nepco.com']
File	cash-m/sent_items/442.

We need to talk about that meeting with me, Mike, and John. I do not think it went well at all, but I would like to discuss it with you. Michelle

-----Original Message-----

From: David.Lund@nepco.com@ENRON Sent: Tuesday, November 06, 2001 7:35 PM To: Cash, Michelle Subject: FW: Harassment Training

Michelle, Here's the training the NEPCO HR group has on their schedule. I think the outcome of your meeting with Indivvero and Schwartzburg is that Mike would forward through me all requests involving the retention of outside counsel

including the expected training needs from outside counsel. Let me know if you have any comments or suggestions.
Thanks.

David H. Lund, Jr. Assistant General Counsel National Energy Production Corporation 11831 North Creek Parkway N.
Bothell, WA 98011 425-415-3138 Fax: 425-415-3032 David.Lund@nepco.com or davidlu@nepco.com

-----Original Message-----

From: B-Gloria Rivas Sent: Tuesday, November 06, 2001 1:26 PM To: B-David Lund Cc: B-Mike Indivero Subject:
Harassment Training

David, we have schedule Ogletree, Deakins and Nash to conduct Harassment and Union Avoidance training at our El
Dorado, AK job site on December 4th and 5th. We will be scheduling the training at our Lakeworth job site after the first of
the year. If you have any questions, please contact me at x3136.

Glo

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Employment Law Learning Technologies online demo

Sender	gborchart@elt-inc.com
Recipients	['michelle.cash@enron.com', 'diane.goode@enron.com']
File	cash-m/deleted_items/235.

Diane,

I have updated both you and Michelle into our demo site so you can access the course as if you are a learner, the older
passwords were no longer valid for this particular site. This will allow you to demo manager and employer versions unlike
the actual product itself which only allows you to see the version you are assigned by the organization. This will make it
easier to review the courseware.

INSTRUCTIONS:

Clicking on the link below will take you to a sign-in screen.

Your user names are: dgoode mcash (first initial, last name)

Password is: enron

All entries are in lower case.

<http://employer2001.elt-inc.com>

After you click the "log in" button, you will be brought to a "Welcome" screen. Click on the "Course List" link. You will now
be brought to a table with all of the courses available to you.

Click on any of the courses. Your computer will check to make sure you have macromedia installed, and if you do it will
take you directly to the "Launch" screen. You'll want to click on "Launch the course with sound" and you're all set.

If you get any security warnings simply click "yes".

ENJOY! Please call if you have any questions.

Gary W. Borchart

Employment Law Learning Technologies Vice President of Sales 2049 Century Park East, 5th Floor Los Angeles, CA
90067-3107 Phone: 310-712-7350 Cell: 661-645-0809 Fax: 415-982-1203 gborchart@elt-inc.com

www.elt-inc.com

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RE: Enron Metals North America Voluntary Separation

Sender	catherine.huynh@enron.com
Recipients	['lizzette.palmer@enron.com', 'michelle.cash@enron.com', 'twanda.sweet@enron.com']
File	cash-m/deleted_items/227.

Lizzette, Michelle,

Thanks for the quick turnaround. Per your notation in file 101Imp.doc, attached is a copy of the memo that was sent out by John Sheriff and Michael Brown. There is an added piece where our Commercial and Commercial Support leads of the office added their bit.

Also, please note that the calculation in the separation calculator was off so I've corrected and attached here for your reference.

Are we now waiting on Drew and Pat to come back with their comments of the documents?

Regards, Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: Sweet, Twanda On Behalf Of Palmer, Lizzette Sent: Wednesday, October 17, 2001 6:56 PM To: Huynh, Catherine; 'amarks@littler.com'; 'fmackin@aol.com' Cc: Cash, Michelle Subject: Enron Metals North America Voluntary Separation Sensitivity: Confidential

Attached are the following documents regarding Enron Metals North America Voluntary Separation:

BU Head's Talking Points to the Business

<< File: 101Imp.doc >> Voluntary Separation Payment Calculation

<< File: 103Imp.xls >>

Application for Voluntary Separation

<< File: 100Imp.doc >>

Enron Metal Voluntary Separation Program Summary Description

<< File: 102Imp.doc >> If you have any questions, please contact me at 713-345-4674.

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FW: Enron CSA 12/17/97 - Signed

Sender	michelle.cash@enron.com
Recipients	['ava.syon@enron.com']
File	cash-m/sent_items/264.

Ava, would you please forward this to the IP lawyer who is handling Mark's work? We are looking for a quick turnaround, so if you could ask him to call me asap, I'd appreciate it. Thanks. Michelle

-----Original Message-----

From: Cash, Michelle Sent: Thursday, June 28, 2001 2:01 PM To: Holsworth, Mark Cc: Frolov, Yevgeny Subject: FW: Enron CSA 12/17/97 - Signed

Mark,

Attached is a signed version of the Consulting Services Agreement between Enron and Andersen Consulting (now Accenture). Yevgeny Frolov in HR is working on a project whereby Accenture is developing software for Enron. Enron will own the content of the programs, and ultimately, licenses will be sold for the software, with Enron and Accenture sharing the royalty interest.

I think that your expertise is needed on this agreement. I will send you a copy of the latest term letter, along with my handwritten comments on the draft.

Would it be possible to get your comments/thoughts on these? Yevgeny will contact you directly.

Thanks.

Michelle

-----Original Message-----

From: michael.e.baer@accenture.com@ENRON
[mailto:IMCEANOTES-michael+2Ee+2Ebaer+40accenture+2Ecom+40ENRON@ENRON.com] Sent: Thursday, June 28, 2001 1:42 PM To: Cash, Michelle Subject: Enron CSA 12/17/97 - Signed

Mike Baer Accenture - Legal Group 100 South Wacker Drive, Ste. 515, Chicago, IL 60606-4006 Voice: 312-693-1512, Octel: 69/31512, Fax: 312-652-1512 eMail: michael.e.baer@accenture.com

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RE: Enron CSA 12/17/97 - Signed

Sender michelle.cash@enron.com

Recipients ['mark.greenberg@enron.com']

File cash-m/sent_items/176.

In my dealings with Accenture, they have acted as if this is the agreement that governs them. I don't know which Accenture group is involved, however. Either way, I believe that it is time for an updated agreement, with better rates. Have you been working with Global Strategic Sourcing on this?

-----Original Message-----

From: Greenberg, Mark Sent: Thursday, August 09, 2001 5:43 PM To: Cash, Michelle Subject: RE: Enron CSA 12/17/97 - Signed

Michelle -

This is the same agreement I referred to in my e-mail. I understand this has been rolled to apply to the Accenture LLP group, which is a group that is separate and distinct from AA LLP. If it is AA LLP's position that the below agreement is effective, that is fine, but I am not sure this is the case.

Mark

-----Original Message-----

From: Cash, Michelle Sent: Thursday, August 09, 2001 5:00 PM To: Greenberg, Mark Subject: FW: Enron CSA 12/17/97 - Signed

Mark, I understand that this is a copy of the latest agreement between Enron and Andersen Consulting. I agree that a new master would be a good idea. Michelle

-----Original Message-----

From: michael.e.baer@accenture.com@ENRON

[mailto:IMCEANOTES-michael+2Ee+2Ebaer+40accenture+2Ecom+40ENRON@ENRON.com] Sent: Thursday, June 28, 2001 1:42 PM To: Cash, Michelle Subject: Enron CSA 12/17/97 - Signed

Mike Baer Accenture - Legal Group 100 South Wacker Drive, Ste. 515, Chicago, IL 60606-4006 Voice: 312-693-1512, Octel: 69/31512, Fax: 312-652-1512 eMail: michael.e.baer@accenture.com

This message is for the designated recipient only and may contain privileged or confidential information. If you have received it in error, please notify the sender immediately and delete the original. Any other use of the email by you is prohibited. - B0033CF1.TIF << File: B0033CF1.TIF >>

Message 57 of 167

MUSEUM MENU

Sender	dorie.hitchcock@enron.com
Recipients	['michelle.cash@enron.com', 'twanda.sweet@enron.com']
File	cash-m/all_documents/172.

The catering companies that were selected to submit proposals for the Legal Museum Event included: A Fare Extraordinaire, Abuso, M,lange, The Stone Kitchen and Tony's At Home. After carefully reviewing all the proposals, I have determined that M,lange is offering us the most for our money.

Listed below is the proposed menu for the event. Please review and let me know if you have any changes or suggestions for the menu. Thanks.

Adult Menu Herb crusted beef tenderloin with mustard chive sauce and fresh horseradish cream - all served with petite rolls

Guests choose from spicy crayfish, ham and cheese, or spinach quesadillas served with sour cream and jalapenos

Mexican cheese torte with cumin pita chips

Warm queso with tri colored tortilla chips

Elegant display of the freshest fruit to include juicy pineapple, ripe strawberries, grapes and melons surrounded by a melange of cheese tortes to include raspberry and cheddar cheese, sun dried tomato and pesto and blue cheese and bacon torte accompanied with gourmet crackers and toast rounds

Warm artichoke dip with herbed pita chips

Chicken Simon medallions (breast of chicken stuffed with spinach and pine nuts) served with a creamy dijonnaise

Penne pasta with smoked chicken, cooked on site with fresh herbs & spices Grilled balsamic vegetables accompanied by sun-dried tomato & parmesan breads

Desserts include assorted pick up sweets such as cappuccino brownies, lemon opera bars, white chocolate pecan bars, butterscotch brownies, double dipped strawberries, assorted truffles and dipped biscotti

Kid's Menu (children under 12) Chicken fried chicken tenders with cream gravy

French bread pizza bites

Tater tots with catsup

Toll house cookies

Dorie Hitchcock Event Manager Enron 1400 Smith Street, EB 3640a Houston, TX 77002 Office (713) 853-6978 Fax (713) 646-5800 Cell (713) 594-7093 E-Mail - dorie.hitchcock@enron.com

Message 58 of 167

RE: Mid-Year PRC Data

Sender	andrea.yowman@enron.com
Recipients	['kathryn.schultea@enron.com', 'michelle.cash@enron.com', 'diane.goode@enron.com']
File	cash-m/deleted_items/108.

Kathy, Just got a call from Diane Goode who is waiting for the consolidated data. When can this be provided or is there someone else who can assist?

Thanks. ay

-----Original Message-----

From: Schultea, Kathryn Sent: Monday, October 22, 2001 10:45 AM To: Yowman, Andrea; Goode, Diane Cc: Cash, Michelle Subject: RE: Mid-Year PRC Data Sensitivity: Confidential

I'll be providing you these files today.

-----Original Message-----

From: Yowman, Andrea Sent: Monday, October 22, 2001 9:35 AM To: Goode, Diane Cc: Cash, Michelle; Schultea, Kathryn Subject: RE: Mid-Year PRC Data Sensitivity: Confidential

Hi Diane, The attached files are Business Objects reports and should be converted to excel by Kathy Schultea. Kathy should be adding the HR employees and then the files should go directly with Jeanneret. No need to copy me on the files, due to confidentiality of HR data. You can just let me know the files went. Thanks. ay

-----Original Message-----

From: Goode, Diane Sent: Monday, October 22, 2001 9:30 AM To: 'Dick@jeanneret.com' Cc: Cash, Michelle; Yowman, Andrea Subject: Mid-Year PRC Data Importance: High Sensitivity: Confidential

<< File: Diversity - Mid Year 2001 Download for calculating Standard deviation.rep >> << File: Diversity - Mid Year 2001 Download for calculating Standard deviation (expats).rep >>

Mr. Jeanneret:

I am forwarding these file at Michelle Cash's request. After you have received and opened these files, please call Michelle Cash to discuss the types of analyses we would like to have performed on the data.

Michelle Cash's direct number is 713-853-6401. If you have any problems with the attachments, please contact me at the number below.

Diane Goode Senior Specialist Enron North America 1400 Smith Street, EB3833 Houston, TX 77002-7361 (713) 345-7103 (713) 646-3490 (fax) Diane.Goode@Enron.com

Privileged and Confidential. Prepared in Anticipation of Litigation.

Message 59 of 167

RE: Harassment Training

Sender	michelle.cash@enron.com
Recipients	[david.lund@nepco.com]
File	cash-m/sent_items/463.

David,

I guess I think that it is not worth the fight these days. I suppose would approve this training, but I think we need to have an understanding w/ Ogletree about travel time, travel expenses, billing rates, etc. They need to understand who holds the purse strings, and I do not think it would be appropriate for them to bill their full hourly rate for time spent on travel given that we could find someone local to do the same training -- or could send me or Lizzette to do it for the cost of travel only. For your information, David, there is nothing magic about the training they are doing. It is standard training that I used to deliver frequently when I was in private practice. Ogletree does not have a monopoly on it.

I'll try to call you early this week, now that the other work I have been focusing on may slow down a bit.

Michelle

-----Original Message-----

From: David.Lund@nepco.com@ENRON Sent: Tuesday, November 06, 2001 7:35 PM To: Cash, Michelle Subject: FW: Harassment Training

Michelle, Here's the training the NEPCO HR group has on their schedule. I think the outcome of your meeting with Indivero and Schwartzburg is that Mike would forward through me all requests involving the retention of outside counsel including the expected training needs from outside counsel. Let me know if you have any comments or suggestions. Thanks.

David H. Lund, Jr. Assistant General Counsel National Energy Production Corporation 11831 North Creek Parkway N. Bothell, WA 98011 425-415-3138 Fax: 425-415-3032 David.Lund@nepco.com or davidlu@nepco.com

-----Original Message-----

From: B-Gloria Rivas Sent: Tuesday, November 06, 2001 1:26 PM To: B-David Lund Cc: B-Mike Indivero Subject: Harassment Training

David, we have schedule Ogletree, Deakins and Nash to conduct Harassment and Union Avoidance training at our El Dorado, AK job site on December 4th and 5th. We will be scheduling the training at our Lakeworth job site after the first of the year. If you have any questions, please contact me at x3136.

Glo

Message 60 of 167

FW: Dynegy acquisition and lay offs

Sender	margaret.daffin@enron.com
Recipients	['cole.brown@enron.com', 'tim.o'rourke@enron.com', 'michelle.cash@enron.com', 'a..knudsen@enron.com']
File	cash-m/inbox/225.

Michelle said the attachments didn't make it, so here they are. Margaret

- Enron WHAT HAPPENS IF DYNEGY ACQUIRES ENRON.doc - Enron WHAT HAPPENS IF I'M LAID OFF.doc

-----Original Message-----

From: Daffin, Margaret Sent: Tuesday, November 13, 2001 4:54 PM To: O'rourke, Tim Cc: Knudsen, Sheila A.; Brown, Cole; Cash, Michelle Subject: FW: Dynegy acquisition and lay offs

Tim: I asked Tindall & Foster to answer various visa related questions that I have received over the past few days, and they have sent me the attached which covers both the non-immigrant (visas) and the immigrant (permanent residency) areas of concern.

Please have these posted as soon as possible. Thanks Margaret

-----Original Message-----

From: Alice Gruber <agruber@tindallfoster.com>@ENRON Sent: Tuesday, November 13, 2001 3:22 PM To: Daffin, Margaret Cc: Lisa Reid; Susan King; Lisa Mundahl Subject: Dynegy acquisition and lay offs

Here are two memos for review by you. Please review and let us know if you have any questions.

<<Enron WHAT HAPPENS IF DYNEGY ACQUIRES ENRON.doc>> <<Enron WHAT HAPPENS IF I'M LAID OFF.doc>>

Tindall & Foster, P.C. Email Message from Alice Margaret Gruber Alice Margaret Gruber Tindall & Foster, P.C. 600 Travis, Suite 2800 Houston, Texas 77002-3094 Telephone: (713) 229-0636 ext. 1124 Fax: (713) 228-1303 Email: agruber@tindallfoster.com _____
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- Enron WHAT HAPPENS IF DYNEGY ACQUIRES ENRON.doc - Enron WHAT HAPPENS IF I'M LAID OFF.doc

Message 61 of 167

RE: Non-compete language

Sender	michelle.cash@enron.com
Recipients	['Skinner', 'Cindy', 'patrick.johnson@enron.com']
File	cash-m/sent_items/14.

yes, we still own the IP.

-----Original Message-----

From: Johnson, Patrick Sent: Wednesday, September 19, 2001 9:31 AM To: Cash, Michelle Subject: RE: Non-compete language

Point well taken. I softened the language up after sending out the e-mail, but can probably go further. As to protection of intellectual property, the employees still have that obligation correct? Our concern is that we spent \$17MM for the IP, and we now have a former employee brazenly declaring that he can use our IP to start his own business.

-----Original Message-----

From: Cash, Michelle Sent: Tuesday, September 18, 2001 11:17 PM To: Johnson, Patrick; Engeldorf, Roseann; Brownfeld, Gail Cc: Skinner, Cindy Subject: RE: Non-compete language

Although all employees did sign the non-compete, I believe (without doing any research on Florida law) that it would be difficult, if not impossible, to enforce since there is no ongoing business of AMPS to protect. As such, I believe that such a statement is kind of like rubbing salt into the wounds of these employees.

A gentle reminder of confidentiality would be appropriate, but any mention of a non-compete probably would not be well received.

Michelle

-----Original Message-----

From: Johnson, Patrick Sent: Tue 9/18/2001 5:34 PM To: Engeldorf, Roseann; Brownfeld, Gail; Cash, Michelle Cc: Subject: Non-compete language

I would like to include the following paragraph in the termination letter to AMPS employees: Please advise.

NON-COMPETE/CONFIDENTIALITY AGREEMENT

When you became an AMPS employee, you signed a confidentiality and non-compete agreement promising to maintain company information in strict confidence. The provisions of the confidentiality agreement include a non-compete agreement, which is in effect for 24 months after you leave AMPS. The non-compete and confidentiality provisions are in effect, and we would like to remind you of your responsibility not to share proprietary company information with new employers or competitors of AMPS until the expiration of the 24-month period. If you have any questions, please refer to the employment agreement which you signed when you became an AMPS employee.

Patrick Johnson 1400 Smith, EB3624 Houston, TX 77002 713.853.9453 (o) 713.646.3577 (f) 713.857.2652 (c)

Message 62 of 167

RE: Mid-Year PRC Data

Sender	diane.goode@enron.com
Recipients	['michelle.cash@enron.com']
File	cash-m/deleted_items/80.

I'll schedule the meeting after we get data from Kathy Schultea and we know it's in a workable format for Dick Jeanerret. Kathy said data would get to us today.

-----Original Message-----

From: Cash, Michelle Sent: Monday, October 22, 2001 12:13 PM To: Schultea, Kathryn; Yowman, Andrea; Goode, Diane Subject: RE: Mid-Year PRC Data Sensitivity: Confidential

Thanks, Kathy!

Diane, would you please ask Dick to make sure that he can work with the files. Once he has done that, let's set up a meeting with him, Jeff Donahue, Andrea, you, and me to discuss approach. Kathy, do you think you need to attend? Dick can be in person or on the phone, although an in-person meeting may be preferable.

Thanks!

Michelle

-----Original Message-----

From: Schultea, Kathryn Sent: Monday, October 22, 2001 10:45 AM To: Yowman, Andrea; Goode, Diane Cc: Cash, Michelle Subject: RE: Mid-Year PRC Data Sensitivity: Confidential

I'll be providing you these files today.

-----Original Message-----

From: Yowman, Andrea Sent: Monday, October 22, 2001 9:35 AM To: Goode, Diane Cc: Cash, Michelle; Schultea, Kathryn Subject: RE: Mid-Year PRC Data Sensitivity: Confidential

Hi Diane, The attached files are Business Objects reports and should be converted to excel by Kathy Schultea. Kathy should be adding the HR employees and then the files should go directly with Jeanneret. No need to copy me on the files, due to confidentiality of HR data. You can just let me know the files went. Thanks. ay

-----Original Message-----

From: Goode, Diane Sent: Monday, October 22, 2001 9:30 AM To: 'Dick@jeanneret.com' Cc: Cash, Michelle; Yowman, Andrea Subject: Mid-Year PRC Data Importance: High Sensitivity: Confidential

<< File: Diversity - Mid Year 2001 Download for calculating Standard deviation.rep >> << File: Diversity - Mid Year 2001 Download for calculating Standard deviation (expats).rep >>

Mr. Jeanneret:

I am forwarding these file at Michelle Cash's request. After you have received and opened these files, please call Michelle Cash to discuss the types of analyses we would like to have performed on the data.

Michelle Cash's direct number is 713-853-6401. If you have any problems with the attachments, please contact me at the number below.

Diane Goode Senior Specialist Enron North America 1400 Smith Street, EB3833 Houston, TX 77002-7361 (713) 345-7103 (713) 646-3490 (fax) Diane.Goode@Enron.com

Privileged and Confidential. Prepared in Anticipation of Litigation.

Message 63 of 167

FW: Outstanding items for GSP

Sender	cynthia.barrow@enron.com
Recipients	['michelle.cash@enron.com', 'amurray@llgm.com']
File	cash-m/garden_state_paper/1.

I have a conference call scheduled between myself, Dusty Burke and Hewitt today at 2:30 regarding Enron's 410(b) variable. I expect that following this call, Dusty will be able to provide you all with what you need. I'd still like to talk with you.

-----Original Message-----

From: Barrow, Cynthia Sent: Tuesday, June 19, 2001 7:20 AM To: "ANN MURRAY" <AMURRAY@LLGM.COM>@ENRON; Cash, Michelle Cc: Howe, David; Fauchaux, Louis J.; Serrano, Racquel Subject: RE: Outstanding items for GSP

See attached that was sent to you 6/15/01. Ann, I think you and I need to talk. Can you give me a call at 713 853 6891.

(Michelle -- this needs to come from ENA or GSP not Enron Corp. Benefits. I do not have authorization to sign documents such as this.)

<< File: RE LLC Action appointing Trustee of GSP Pension Plan.rtf >>

-----Original Message-----

From: "ANN MURRAY" <AMURRAY@LLGM.COM>@ENRON [mailto:IMCEANOTES+22ANN+20MURRAY+22+20+3CAMURRAY+40LLGM+2ECOM+3E+40ENRON@ENRON.com] Sent: Monday, June 18, 2001 6:13 PM To: Barrow, Cynthia; Howe, David; Fauchaux, Louis J.; Serrano, Racquel Cc: Edison, Andrew; Murray, Julia; Cash, Michelle Subject: Outstanding items for GSP

We are checking the status of two documents sent to you last week:

(1) GSP LLC Action approving Merrill Lynch as Trustee. This was sent to David and Cynthia on June 14th and needs to be signed by the appropriate person at Enron (we understand that Enron is the sole member of GSP, LLC).

(2) Pension Investors Corp Intake Form. This was sent to Louis and David on June 14th and needs to be completed and e-mailed or faxed to me or Pension Investors Corp.

Please return both documents as soon as possible.

Thanks, Ann

Ann E. Murray LeBoeuf, Lamb, Greene & MacRae 50 N. Laura St. Suite 2800 Jacksonville, FL 32202 Telephone: (904) 630-5336 Fax: (904) 353-1673 E-mail: amurray@llgm.com

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Message 64 of 167

RE: Dynegy acquisition and lay offs

Sender	margaret.daffin@enron.com
Recipients	['cole.brown@enron.com', 'michelle.cash@enron.com', 'tim.o'rourke@enron.com', 'a..knudsen@enron.com']
File	cash-m/inbox/234.

Michelle: please let me know when you would like to discuss these? Thanks Margaret

-----Original Message-----

From: Cash, Michelle Sent: Wednesday, November 14, 2001 12:49 AM To: Daffin, Margaret; O'rourke, Tim Cc: Knudsen, Sheila A.; Brown, Cole Subject: RE: Dynegy acquisition and lay offs

We definitely don't want to post these as is. Let's discuss. Michelle

-----Original Message-----

From: Daffin, Margaret Sent: Tue 11/13/2001 4:58 PM To: O'rourke, Tim Cc: Cash, Michelle; Knudsen, Sheila A.; Brown, Cole Subject: FW: Dynegy acquisition and lay offs

Michelle said the attachments didn't make it, so here they are. Margaret

- Enron WHAT HAPPENS IF DYNEGY ACQUIRES ENRON.doc <<Enron WHAT HAPPENS IF DYNEGY ACQUIRES ENRON.doc>> - Enron WHAT HAPPENS IF I'M LAID OFF.doc <<Enron WHAT HAPPENS IF I'M LAID OFF.doc>>

-----Original Message-----

From: Daffin, Margaret Sent: Tuesday, November 13, 2001 4:54 PM To: O'rourke, Tim Cc: Knudsen, Sheila A.; Brown, Cole; Cash, Michelle Subject: FW: Dynegy acquisition and lay offs

Tim: I asked Tindall & Foster to answer various visa related questions that I have received over the past few days, and they have sent me the attached which covers both the non-immigrant (visas) and the immigrant (permanent residency) areas of concern.

Please have these posted as soon as possible. Thanks Margaret

-----Original Message-----

From: Alice Gruber <agruber@tindallfoster.com>@ENRON Sent: Tuesday, November 13, 2001 3:22 PM To: Daffin, Margaret Cc: Lisa Reid; Susan King; Lisa Mundahl Subject: Dynegy acquisition and lay offs

Here are two memos for review by you. Please review and let us know if you have any questions.

<<Enron WHAT HAPPENS IF DYNEGY ACQUIRES ENRON.doc>> <<Enron WHAT HAPPENS IF I'M LAID OFF.doc>>

Tindall & Foster, P.C. Email Message from Alice Margaret Gruber Alice Margaret Gruber Tindall & Foster, P.C. 600 Travis, Suite 2800 Houston, Texas 77002-3094 Telephone: (713) 229-0636 ext. 1124 Fax: (713) 228-1303 Email: agruber@tindallfoster.com _____
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Message 65 of 167

FW: Mid Year PRC

Sender	michelle.cash@enron.com
Recipients	['Mike.Indivero@nepco.com', 'twanda.sweet@enron.com']
File	cash-m/sent_items/120.

Please arrange as many of these as you can. Michelle

-----Original Message-----

From: Skinner, Cindy Sent: Tuesday, July 24, 2001 11:04 AM To: Cash, Michelle Subject: FW: Mid Year PRC Sensitivity: Confidential

Attached is the email between Robin Johnson and Melissa Becker I described to you.

Also, while at Nepco, I would suggest you have an introductory meeting with:

John Gillis (President) Dan Haas (SVP of Operations) (#2 guy) Mike Indivero (Sr. Dir. - HR) Robin Johnson (Lead Generalist) Gloria Rivas (HR Training & Dev.) David Lund (AGC)

-----Original Message-----

From: Skinner, Cindy Sent: Friday, July 20, 2001 1:31 PM To: mike.indivero@nepco.com Subject: FW: Mid Year PRC Sensitivity: Confidential

Mike:

I was somewhat disturbed by Robin's email below and unclear as to why Melissa Becker needed to know how NEPCO participated in the PRC process. I would like to discuss this with you as soon as you return from your trip. I realize NEPCO is a little different. However, Robin and the rest of the NEPCO team need to understand that as long as they are part of Enron, they will, in some form or fashion, participate in the current performance management process. Robin needs to discontinue using the term "forced" and begin using the term "preferred". Also, please explain to Robin that in the overall EEOS PRC meeting held in Houston, in which both John Gillis and Dan Haas participated as voting committee members, the Enron-wide preferred distribution process was adhered to. I would like to clear up this confusion as soon as possible.

Thanks,

Cindy

-----Original Message-----

From: Walton, Sheila Sent: Thu 7/19/2001 6:52 PM To: Skinner, Cindy Cc: Subject: FW: Mid Year PRC

FYI. Is it wise to put this in writing???

Sheila

-----Original Message-----

From: Becker, Melissa Sent: Thursday, July 19, 2001 9:37 AM To: Walton, Sheila; Yowman, Andrea Subject: FW: Mid Year PRC

FYI

-----Original Message-----

From: Johnson, Robin Sent: Thursday, July 19, 2001 8:38 AM To: Becker, Melissa Cc: Mike.Indivero@nepco.com
Subject: RE: Mid Year PRC

Hi Melissa:

Sorry for the late response. NEPCO did not participate in the preferred distribution for PRC. The only group that I am aware of within NEPCO that was "forced" to recognize it was the HR department and we are still discussing the outcome of that exercise and forced ratings. Let me know if you have any other questions!

THANKS!

Robin Johnson HR Manager 11831 North Creek Parkway, North Bothell, WA 98011 425-415-3178 Fax: 425-415-3199

-----Original Message-----

From: Becker, Melissa [mailto:Melissa.Becker@ENRON.com] Sent: Monday, July 16, 2001 1:41 PM To: robinj@nepco.com Subject: Mid Year PRC

Hi Robin. Hope all is going well in Bothell. I have a quick question about PRC (the performance review process we use in Houston). Does NEPCO use the same process of 360 feedback, followed by assigning employee ratings based on a preferred distribution, followed by communication with the employee? I heard that some parts of NEPCO use it and some don't. Could you give me the "lowdown?" Thanks!

Message 66 of 167

Re: AESOP Language

Sender	michelle.cash@enron.com
Recipients	['brad.coleman@enron.com', 'sharon.butcher@enron.com', 'cynthia.barrow@enron.com', 'brian.schaffer@enron.com']
File	cash-m/all_documents/780.

Hello, all. Please wait on including this language in the offer letters until we hear further on this issue. Thanks a lot!
Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

This message may contain confidential information that is protected by the attorney-client and/or work product privileges.

Sharon Butcher@ENRON 06/26/2000 06:57 PM

To: Michelle Cash/HOU/ECT@ECT cc: Ted C Bland/HOU/ECT@ECT, Ryan Seleznov/Corp/Enron@Enron, Mary Joyce/HR/Corp/Enron@ENRON, Cynthia Barrow/HR/Corp/Enron@ENRON, Brad Coleman/HOU/ECT@ECT, Brian Schaffer/Corp/Enron@ENRON, Kriste Sullivan/Corp/Enron@ENRON Subject: Re: AESOP Language

Hello everyone: Please make sure that Rex Rogers has reviewed and approved the language so as to avoid any SEC issues. Thanks. Sharon

Michelle Cash @ ECT 06/23/2000 05:16 PM

To: Ted C Bland/HOU/ECT@ECT, Ryan Seleznov/Corp/Enron@Enron, Mary Joyce/HR/Corp/Enron@ENRON, Cynthia Barrow/HR/Corp/Enron@ENRON, Brad Coleman/HOU/ECT@ECT, Brian Schaffer/Corp/Enron@ENRON cc: Sharon Butcher/Corp/Enron@ENRON, Kriste Sullivan/Corp/Enron@ENRON Subject: Re: AESOP Language

Enclosed is new language for offer letters regarding the AESOP.

Let me know if you have any questions.

Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

This message may contain confidential information that is protected by the attorney-client and/or work product privileges.
----- Forwarded by Michelle Cash/HOU/ECT on 06/23/2000 05:14 PM -----

FMackin@aol.com 06/21/2000 10:55 AM

To: Michelle.Cash@enron.com cc: Subject: Re: AESOP Language

Michelle,

The new program still needs final approval by the Enron Corp. board of directors. The design was tentatively approved last month, subject to final review. The following revised provision should serve you well in the meantime:

All-Employee Stock Option Program

Enron Corp. has previously awarded stock options to full time and part-time regular employees in designated domestic and international locations through the All Employee Stock Option Program (AESOP). Stock option grants were made under this program to eligible employees hired prior to January 1, 2000. The grants represented value for the time period of 12/31/94 through 12/31/00 or a pro-rata portion if hired after 12/31/94. Subject to final approval by the Enron Corp. board of directors, a one time award of non-qualified stock options under a replacement program is proposed to be made to eligible employees as of December 29, 2000, in value equal to 25% of annual base salary (5% of annual base salary for a 5-year period; salary valuation and value may vary in some international locations). Program awards are subject to and effective upon the approval by the Compensation and Management Development Committee of the Enron Corp. Board of Directors. Such stock awards will be made pursuant to the appropriate Enron Corp. Stock Plan as determined by the Committee. The exercise price for grants of stock options will be determined according to the provisions of the Stock Plan under which the award is granted. The program may or may not be offered in certain domestic and international locations based upon management discretion and/or local labor and employment laws.

Message 67 of 167

RE: PRC for individuals on leave

Sender	gina.corteselli@enron.com
Recipients	['michelle.cash@enron.com', 'david.oxley@enron.com']
File	cash-m/prc/1.

I agree that employees who are out on leave at PRC time should be encouraged to select reviewers, obtain feedback, and participate in PEP. Michelle is right, they can do the process from the internet, and in event that they don't have internet access but have email access, we can send the forms to them electronically and manually input their data when the form is returned to us.

-----Original Message-----

From: Cash, Michelle Sent: Tuesday, May 22, 2001 9:12 AM To: Corteselli, Gina; Oxley, David Subject: PRC for individuals on leave

Gina/David, I think we need to have some guidelines for these types of questions. My view is that we should encourage people to be contacted while out on leave to identify reviewers and submit a self-evaluation. Presumably, if they have a Click at Home PC, they can do it from there. If not, we should be able to facilitate it manually. Your thoughts?

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

This message may contain confidential information that is protected by the attorney-client and/or work product privileges.

----- Forwarded by Michelle Cash/HOU/ECT on 05/22/2001 09:10 AM -----

Kim Cadena@EES 05/21/2001 06:15 PM To: Michelle Cash/HOU/ECT@ECT cc: Subject: PRC for individuals on leave

Michelle, I received the below message, but still have questions:

If someone has been on leave for less than 12 weeks, but is currently out, what should we do in terms of selecting reviewers for them? Should the supervisor select? What should we do in terms of the self evaluation of listing 5 accomplishments that will be flashed on the screen during PRC meetings? Should we just leave theirs blank? If it is blank will it be viewed as a negative? Can the supervisor contact the individual at home to ask them who they want for reviewers and what do they want to put for 5 accomplishments? If the employee knows that we are going through this process and wants to select reviewers and do their accomplishments from home, should we allow that since they are on leave?

Sorry to throw all of these questions at you, but the EES HR group has thrown them at me and I agreed to send you one e-mail to keep from all of us contacting you. Also, I need to get information from you on what to do in submitting my list of PRC attendees to you for review in terms of diversity. It would be helpful if I understood what exactly you want and what you are looking for.

Any guidance you can provide on these matters would be appreciated.

----- Forwarded by Kim Cadena/HOU/EES on 05/21/2001 06:06 PM -----

From: Teri Ashley/ENRON@enronXgate on 05/18/2001 10:07 AM To: Kim Cadena/HOU/EES@EES, Wanda Chalk/ENRON_DEVELOPMENT@Enron_Development, Jana Domke/Corp/Enron@Enron, Belinda McGaughy/EWC/Enron@ENRON, Lee Brace/EWC/Enron@ENRON, Willie Williams/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Gerry Chatham/ENRON@enronXgate, Ann Vaughn/ENRON@enronXgate, Roger Sumlin/ENRON@enronXgate, Kathleen Blankenship/HOU/AZURIX@AZURIX, johnpa@nepco.com@SMTP@enronXgate, robinj@nepco.com@SMTP@enronXgate, gloriari@nepco.com@SMTP@enronXgate, Ron James/HOU/EES@EES cc: Subject: FW: Performance Review

NOTE - see below

Thanks Teri

-----Original Message-----

From: Cash, Michelle Sent: Friday, May 18, 2001 9:08 AM To: xxxx Cc: Corteselli, Gina Subject: Re: FW: Performance Review

We have decided that someone who is out for more than 12 weeks during the review period should not be reviewed. That guideline should be communicated to all of HR soon. Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

Message 68 of 167

Re: Reply

Sender	michelle.cash@enron.com
Recipients	[esholeen@bracepatt.com]
File	cash-m/all_documents/279.

Don't worry about it! Of all people, I understand about schedules being tight. Good luck with the post-trial work. Michelle

"Eden Sholeen" <esholeen@bracepatt.com> 06/07/2000 09:01 AM

To: <mcash@enron.com> cc: Subject: Reply

Sorry that I have not called. We were gone the first weekend that you called and I worked this last weekend. I am trying to get our JMOL and motion for new trial filed by this Friday. I will call you this weekend. I am a little keyed up.

Eden P. Sholeen Bracewell & Patterson, L.L.P. South Tower Pennzoil Place 711 Louisiana, Suite 2900 Houston, Texas 77002 (713) 221-1526 (713) 222-3221 fax esholeen@bracepatt.com

Message 69 of 167

RE: Eden Sholeen Mediation in Dallas

Sender	michelle.cash@enron.com
Recipients	['mail@mapquest.com']
File	cash-m/deleted_items/273.

The attachment did not come through. Would it be possible to fax it to me? 713-646-3490 is the fax number. Thanks.
Michelle

-----Original Message-----

From: mail <mail@mapquest.com>@ENRON Sent: Wednesday, October 24, 2001 9:04 AM To: Cash, Michelle Subject: Eden Sholeen Mediation in Dallas

Ms. Cash: Eden Sholeen asked that I give you the address, etc. for her mediation in Dallas on Friday. Attached is a map of the area. The address is:

JAMS 8401 North Central Exprwy, Suite 610 Dallas, TX 75225 (214) 744-5267

If there are any questions, please contact me or Eden.

Teresa Swayze Map: http://www.mapquest.com/cgi-bin/share?s8ma18gcodlcr8pk

Message 70 of 167

RE: Redacted Consulting Agreements

Sender	michelle.cash@enron.com
Recipients	['angela.davis@enron.com']
File	cash-m/deleted_items/347.

I don't know about those -- sorry. Michelle

-----Original Message-----

From: Davis, Angela Sent: Sunday, December 09, 2001 12:40 PM To: Cash, Michelle Subject: Redacted Consulting Agreements

Covinton & Burling were furnished with redacted Consulting Agreements (they specifically mentioned an E&Y agreement). They need to get unredacted versions to determine what there obligations would be going forward. Could you give me copies to supply them with. I will need to make copies for the data room. We may not leave them in there, but need to have copies for serious parties going forward. Thanks.

Angela D. Davis Enron North America Corp. 1400 Smith Street, EB3817 Houston, Texas 77019 Tel: (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

Message 71 of 167

Unemployment Question

Sender	catherine.huynh@enron.com
Recipients	[michelle.cash@enron.com]
File	cash-m/inbox/49.

Hi Michelle,

The presentation went as well as it could. There was quite a bit of stunned silence, but the questions are already starting to trickle in.

One particular question on unemployment insurance I'm not familiar with, hoping you or Drew can help.

Since the VSP is effectively a voluntary election, would employees qualify for unemployment insurance, specifically in New York State.

Under the involuntary program, is the severance payment offset by unemployment compensation?

You can see where this question is leading, some people may be hedging their bets on the time value of the money.

Thanks Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

Message 72 of 167

FW: Drew Lynch

Sender	michelle.cash@enron.com
Recipients	[mary.joyce@enron.com', 'david.oxley@enron.com']
File	cash-m/sent_items/372.

Are we agreeing to this?

-----Original Message-----

From: Huynh, Catherine Sent: Monday, December 17, 2001 9:01 AM To: Aggar, Brenda; Cash, Michelle Subject: RE: Drew Lynch

Michelle,

Would you know where these need to be sent?

Thanks Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: Aggar, Brenda Sent: Friday, December 14, 2001 9:52 AM To: Huynh, Catherine Subject: Drew Lynch

Hi Cathy, how are you?

I wonder if you can help me with this. I have a contract novation here for Drew Lynch which needs to be signed by an authorised signatories of Enron Corp, and Enron Expat Services Inc. Who should I fax this to for signature.

Many thanks

Brenda

Message 73 of 167

RE: EGM v. McGowan

Sender	knotestine@littler.com
Recipients	['Kerry', 'michelle.cash@enron.com', 'Notestine', 'timothy.mcinturf@enron.com']
File	cash-m/deleted_items/352.

Michelle: There are a couple of blanks that we need filled in in this petition. First, where is EGM incorporated? We listed EGM as the plaintiff because that is the entity that was the party to the contract with McGowan. Second, we need a last known address for McGowan. We do not have that information from the documents you sent us. Thanks. Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com -----Original Message----- From: McInturf, Timothy Sent: Wednesday, December 26, 2001 3:59 PM To: Michelle Hoogendam Cash (E-mail) Cc: Notestine, Kerry Subject: EGM v. McGowan

Here's the draft petition we discussed. Please call with questions or if you need anything. Tim

<< File: 2twm02!.doc >>

Message 74 of 167

RE: Immigration

Sender	michelle.cash@enron.com
Recipients	['lizzette.palmer@enron.com', 'timothy.callahan@enron.com', 'david.oxley@enron.com']
File	cash-m/sent_items/378.

lizzette has taken the lead on this immigration issue. thanks. michelle

-----Original Message-----

From: Callahan, Timothy Sent: Tuesday, December 18, 2001 8:33 AM To: Oxley, David Cc: Cash, Michelle Subject: RE: Immigration

I think we should have Charles Foster in on this call. I will call to see his availability today and advise.

Timothy J. Callahan Director, Global Employee Services Enron Corp 333 Clay Street, Suite 1047 Houston, Texas 77002 Telephone: 713.646.9565 Fax: 713.646.9501

-----Original Message-----

From: Oxley, David Sent: Tuesday, December 18, 2001 8:05 AM To: Callahan, Timothy Cc: Cash, Michelle Subject: Immigration

As we get closer to this transaction that we are working on I need to be sure what is the best approach for Lavo and Louise. Tim, who at Tindell and Foster is working their cases and Michelle and you and I call them today?

David

Message 75 of 167

Avoid Firing Employees

Sender	doug.selwyn@davisselwyn.com
Recipients	[michelle.cash@enron.com]
File	cash-m/all_documents/618.

Ms. Cash:

It was a pleasure speaking with you today. Attached is the memo I told you about. I look forward to hearing from you soon.

Douglas M. Selwyn

Douglas M. Selwyn Davis & Selwyn 3850 One Houston Center 1221 McKinney Street Houston, Texas 77010-2028 (713) 650-3850 (713) 650-3851 Doug.Selwyn@davisselwyn.com

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- Avoid Firing Memorandum 11.29.00.doc

Message 76 of 167

RE: Employee Trust Documentation

Sender	david.oxley@enron.com
Recipients	['Cash', 'michelle.cash@enron.com', 'Michelle']
File	cash-m/inbox/166.

March!

Seriously, I will find time this week. -----Original Message----- From: Cash, Michelle Sent: Wednesday, December 12, 2001 9:41 PM To: Oxley, David Subject: FW: Employee Trust Documentation

David, Diane really needs to get with you to make sure that our record is clean on the bonus trust establishment. Would you email her with a time that may be good for her to call you on it? Thanks. Mich

-----Original Message-----

From: Goode, Diane Sent: Tue 12/11/2001 11:20 AM To: Oxley, David Cc: Cash, Michelle Subject: Employee Trust Documentation

I am preparing the documents related to the Trust we established for the retention bonuses. I need details to prepare the papers. Please call or e-mail me and let me know when we can talk. Thanks.

Diane Goode Senior Specialist Enron North America 1400 Smith Street, EB3833 Houston, TX 77002-7361 (713) 345-7103 (713) 646-3490 (fax) Diane.Goode@Enron.com

Message 77 of 167

RE: Hi	
Sender	michelle.cash@enron.com
Recipients	['rank@mdjwlaw.com']
File	cash-m/sent_items/445.

What a delightful and welcome change of pace in my email today!

Definitely count us in. We'd love to join you.

By the way, do you have Mata Kroger's new phone number? Or, is she still with Comsys?

Thanks!

Michelle

-----Original Message-----

From: "Deborah Rank" <rank@mdjwlaw.com>@ENRON Sent: Wednesday, November 07, 2001 11:42 AM To: Cash, Michelle Subject: Hi

Hi stranger -- I am checking to see if you and Trey can join the Krummes and us for champagne brunch on Sunday, Dec 16 at 10:30 at Cafe Noche. Rob is coming in for our Christmas party and is leaving for Austin right after brunch. We are both excited to have a whole night and next morning without kids. Let us know if you guys can join us.

DEB

Deborah Rank Martin, Disiere, Jefferson & Wisdom, L.L.P. 808 Travis, Suite 1800 Houston, Texas 77002 (713) 632-1710 Fax: (713) 222-0101www.mdjwlaw.com << File: <http://www.mdjwlaw.com> >>

- MDJW.jpg << File: MDJW.jpg >>

Message 78 of 167

RE: Enron Metals & Commodity Corp. Voluntary Separation Program	
Sender	catherine.huynh@enron.com
Recipients	['lizzette.palmer@enron.com', 'michelle.cash@enron.com', 'twanda.sweet@enron.com']
File	cash-m/inbox/57.

Pat,

Thanks. As far as I know the Plan document should now be in its final stage. I'll await to receive hard copies for signature by appropriate exec.

Regards, Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: FMackin@aol.com@ENRON [mailto:IMCEANOTES-FMackin+40aol+2Ecom+40ENRON@ENRON.com] Sent: Friday, October 19, 2001 3:49 PM To: Sweet, Twanda; Huynh, Catherine; Palmer, Lizzette Cc: Cash, Michelle Subject: Re: Enron Metals & Commodity Corp. Voluntary Separation Program

Lizzette's changes to the plan document look good to me. When the plan document is finalized, we will prepare unanimous consent resolutions for adoption by the board of directors of the two participating employers. It has always been the Enron practice to have an employer's board of directors approve such a plan for purposes of corporate

governance. Pat

Message 79 of 167

FW: Information for Employees Regarding Anthrax

Sender	michelle.cash@enron.com
Recipients	['ben.herman@enron.com', 'john.brindle@enron.com', 'exec.jones@enron.com']
File	cash-m/sent_items/70.

FYI. Michelle

-----Original Message-----

From: "Stuart, Laurence E" <Laurence.E.Stuart@BakerNet.com>@ENRON Sent: Thursday, October 18, 2001 10:08 AM
To: Cash, Michelle; 'ksulliv@enron.com'; Butcher, Sharon Cc: Williams, Robert C.; Hammett, J Richard Subject:
Information for Employees Regarding Anthrax

In light of the recent scare regarding Anthrax, we have prepared a memorandum for our clients to use in communicating with their employees about this serious issue, a copy of which is attached. This memorandum is based in large part on information recently released by the Centers for Disease Control and Prevention ("CDC"). More information can be obtained at the CDC's website located at www.cdc.gov. Please feel free to use the memorandum as you see fit, and if you have any questions, please contact Larry Stuart at (713) 427-5027 or reply to this e-mail.

Sent on behalf of The Houston Labor and Employment Group Baker & McKenzie 1301 McKinney, Suite 3300 Houston, Texas 77010 (713) 427-5000 <<21#H01!.DOC>>

- 21#H01!.DOC

Message 80 of 167

Media General Update

Sender	dburke@velaw.com
Recipients	['nunnally@enron.com', 'sutherland@enron.com', 'knunnally@velaw.com', 'michelle.cash@enron.com', 'andrew.ediso...']
File	cash-m/garden_state_paper/4.

Andy and Michelle: I am still waiting to hear from Ann Murray (at LeBoeuf Lamb) about the results of the "410(b) test" for the GSP pension plan. (If the plan cannot pass that test, it cannot be maintained in the Enron controlled group as drafted.) I called Ann again yesterday, and she is out of town until Tuesday, although she left a message that the actuary should have the results of the test when she gets back. I am holding up the letter to Media General and the notice to the trustee until I hear from Ann that all is ok. If the test is not passed, there are several alternatives, but I do not want to direct the trustee to send the assets to the GSP plan until we are sure that it is the plan that will receive the Media General assets. I will let you know as soon as I get word from Ann. Let me know if you have any questions in the meantime. Dusty Burke.

Miriam M. (Dusty) Burke Vinson & Elkins L.L.P. One American Center 600 Congress Avenue, Suite 2700 Austin, TX 78701 (512) 495-8425; (713) 758-3558 (telephone) (512) 236-3411 (fax) dburke@velaw.com

Message 81 of 167

Revised statistics

Sender	knotestine@littler.com
Recipients	['kriste.sullivan@enron.com', 'michelle.cash@enron.com']
File	cash-m/inbox/118.

<<analysis revision 3.xls>> Kriste: Here is a chart prepared by our statistician indicating adverse impact based on the spreadsheet that we received on Monday. As we have discussed before, the more relevant statistics are the job group numbers and not the gross statistics. Allan King also called me after he sent me this and said that Rob Speakman (the statistician) also said that he was able to compare the HR staff selected for layoff versus the HR general population and there was statistically significant adverse impact of 10 on gender and 12 on African-American. He asked if this group was selected as a group or if this was an amalgamation of HR employees from the various operating companies. I said that I thought that there was at least a component of a centralized decisionmaking. Accordingly, we probably need to discuss those statistics. Give me a call when you receive this. Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

- analysis revision 3.xls

Message 82 of 167

FW: Personnel Manual -- Standard Form

Sender	michelle.cash@enron.com
Recipients	['twanda.sweet@enron.com', 'diane.goode@enron.com']
File	cash-m/sent_items/253.

for my forms files. thanks. mhc

-----Original Message-----

From: Notestine, Kerry [mailto:KNotestine@littler.com] Sent: Wednesday, May 30, 2001 10:50 PM To: 'michelle.Cash@enron.com' Subject: Personnel Manual -- Standard Form

<<SD201!.doc>>

Michelle:

Here is the standard form I use for an employee manual. I call these essential policies but others certainly are appropriate based on the company's needs. I also will check around for other manuals you could review.

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

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Littler Mendelson, P.C. <http://www.littler.com>

- SD201!.doc

Message 83 of 167

RE: Letter(s) to RWE re Solicitation of Employees

Sender	michelle.cash@enron.com
Recipients	['janette.elbertson@enron.com', 'diane.goode@enron.com']
File	cash-m/sent_items/498.

Hi, Janette and Diane,

Based on my conversations with Mark, we are going to revise this letter a bit. So, hold off on giving them to him until the next round!

Thanks.

Michelle -----Original Message----- From: Goode, Diane Sent: Wednesday, November 14, 2001 12:25 PM To: Elbertson, Janette Cc: Cash, Michelle Subject: Letter(s) to RWE re Solicitation of Employees Importance: High

Janette:

At Michelle Cash's request, I have prepared the attached letters for the CEO and two managing directors of RWE Trading. We have set the letters up to go to both the Germany and United Kingdom addresses. We are still working on an address and name for the General Counsel. Since their London office is closed for the day, it will probably be Thursday morning before I get those details.

Please call me if you need additional information. Thanks.

Diane Goode Senior Specialist Enron North America 1400 Smith Street, EB3833 Houston, TX 77002-7361 (713) 345-7103 (713) 646-3490 (fax) Diane.Goode@Enron.com

<< File: 5930-A mhc.doc >> << File: 5930-B mhc.doc >> << File: 5930-C mhc.doc >> << File: 5930-D mhc.doc >> << File: 5930-E mhc.doc >> << File: 5930-F mhc.doc >>

Message 84 of 167

FW: Waiver of Benefits

Sender	michelle.cash@enron.com
Recipients	['FMackin (E-mail)', 'timothy.callahan@enron.com']
File	cash-m/sent_items/398.

try this

-----Original Message-----

From: Callahan, Timothy Sent: Wednesday, October 17, 2001 11:31 AM To: Cash, Michelle Cc: FMackin (E-mail) Subject: Waiver of Benefits Importance: High Sensitivity: Confidential

Michelle,

I've been working with Pat on a separate Waiver of Benefits agreement for our employees on a dual payroll system with the UK/US (Oxley, Kitchen and Pickering). Somehow the waiver was never put in place for David and Louise when they came over. I discovered this when working on the package for Pickering.

David has agreed to take the agreement to Louise and Mark, once he is comfortable. We've gone back and forth with David a couple of times. He now says he'll sign if we take out item 1 and the last sentence of 4.

I think we need item 1, but I've adjusted it on the attached to try to meet our needs. David's concern is that the current wording puts "salt in the wounds" regarding the benefits they are giving up, or may give up in the future. He wants to keep it simple.

Please review and let Pat and I know your thoughts.

Regards,

Timothy J. Callahan Director, Global Employee Services Enron Corp 333 Clay Street, Suite 2025 Houston, Texas 77002
Telephone: 713.646.9565 Fax: 713.646.9501

Message 85 of 167

FW: Leased Employee Memorandum

Sender	cynthia.barrow@enron.com
Recipients	['michelle.cash@enron.com', 'sharon.butcher@enron.com']
File	cash-m/general_research/13.

Can't remember if I ever shared this with you two. (Michelle, Dusty sent this following one of the GSP conversations)

-----Original Message-----

From: "Burke, Dusty" <dburke@velaw.com>@ENRON
[mailto:IMCEANOTES+22Burke+2C+20Dusty+22+20+3Cdburke+40velaw+2Ecom+3E+40ENRON@ENRON.com] Sent:
Tuesday, June 19, 2001 6:21 PM To: Barrow, Cynthia Subject: Leased Employee Memorandum

Cynthia: Attached (for your reading enjoyment when you are REALLY bored) is a memorandum summarizing the "leased employee rule" under section 414(n) of the Internal Revenue Code. As I mentioned, the "recordkeeping exception" outlined in the memo and in the attached chart (if you meet the requirements) will keep you from having to track leased employees, related hours, etc. In addition, the recordkeeping exception gets you out of the requirement to grant participation and vesting service credit in the case of any temp/contractor who is later hired by Enron as a regular employee, which you otherwise have to do. Let me know if you have any questions. Dusty Burke. Miriam M. (Dusty) Burke Vinson & Elkins L.L.P. One American Center 600 Congress Avenue, Suite 2700 Austin, TX 78701 (512) 495-8425; (713) 758-3558 (telephone) (512) 236-3411 (fax) dburke@velaw.com

- Leased Employee Rule - Internal Revenue Code Section 414(n).DOC

Message 86 of 167

Re: DOL

Sender	michelle.cash@enron.com
Recipients	['Cash', 'mcover@velaw.com', 'Michelle'] <michelle.cash@enron.com>, 'Steve', 'Hamilton']
File	cash-m/all_documents/234.

Any idea why they did this? Michelle

"Cover, Mark" <mcover@velaw.com> on 05/09/2000 12:55:26 PM To: "'Maffett, Randy'" <randal.maffett@enron.com> cc: "'Cash, Michelle'" <michelle.cash@enron.com>, "'Hamilton, Steve'" <steve@ecogas.com> Subject: DOL

Steve Hamilton informed me this morning that the Department of Labor called him to postpone their investigation scheduled for Monday, May 15th. They said they would call again to reschedule later. We are still proceeding with our review and report, as are the auditors, and we hope to have our report ready by the end of this week. Please let me know if you have any questions in the meantime.

/s/ Mark A. Cover Vinson & Elkins L.L.P. 3700 Trammell Crow Center 2001 Ross Avenue Dallas, Texas 75201 (214) 220-7869 (214) 999-7869 FAX mcover@velaw.com

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- C.DTF

Message 87 of 167

Terrorism Audit

Sender	knotestine@littler.com
Recipients	['michelle.cash@enron.com']
File	cash-m/inbox/12.

Michelle:

Here is the first response I received from one of our senior partners in SF:

I think the best thing such a client can do is to use a reputable security outfit (such as Kroll Associates) to give the co. a very thorough assessment. I think, quite frankly, that relying on the advice of such an outfit would provide more legal protection than talking to all of the lawyers in the world, although our advice could be an additional benefit.

As you know, we have an extensive task force report on workplace violence that would be relevant to this inquiry and could provide the basis for an analysis of this issue, although other areas would have to be explored.

I am soliciting comments about the HR consultant you referenced.

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

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Littler Mendelson, P.C. <http://www.littler.com>

Message 88 of 167

RE: Serious Health Condition based on Certification from a

Sender	michelle.cash@enron.com
Recipients	['knotestine@littler.com']
File	cash-m/sent_items/208.

So, my question goes to the highest bidder . . .

-----Original Message-----

From: "Notestine, Kerry" <KNotestine@littler.com>@ENRON

[mailto:IMCEANOTES+22Notestine+2C+20Kerry+22+20+3CKNotestine+40littler+2Ecom+3E+40ENRON@ENRON.com]

Sent: Thursday, August 23, 2001 9:25 AM To: #All Attorneys Firmwide Cc: Cash, Michelle Subject: Serious Health Condition based on Certification from a Nutritioni st

Client received an FMLA leave request based on a Certified Nutritionist's completion of the serious health condition form. This does not appear to be a person authorized by the regs to certify a person as having a serious health condition. Any thoughts on how to respond to this leave request. Billable credit for the most helpful response(s).

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

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Littler Mendelson, P.C. <http://www.littler.com>

Message 89 of 167

Dr. Mo's notice period

Sender	catherine.huynh@enron.com
Recipients	['michelle.cash@enron.com']
File	cash-m/inbox/31.

Michelle,

All efforts to try to get Mo to reduce his contract pay and end the separation negotiations have been unsuccessful and on August 9th, he sent me an e-mail stating that he has decided to continue his garden leave with full pay & benefits and will await "Enron's notification regarding termination according to his employment terms."

We were prepared that he would come back with this and we will continue to pay him, but it's this last statement about the notification of termination that concerns me.

I would have thought that our presentation of a separation agreement to him back in November would have been enough written "notification" that we do not wish to continue his employment past the contract end date, but in speaking with him further, he seems to think that its not.

His contract states that if the Company terminates your employment without 12 months written notice, then the Company shall pay you the remainder of your salary for the 12 months from the date it gave your notice, in a lump sum.

His contract end date is 6/30/2002 and the last thing we want to do is to pay him additional money. Please let me know what your legal interpretation of this notification clause is and whether or not we are required to give him a formal termination notice.

Thanks Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

Message 90 of 167

RE: Waiver of Benefits

Sender	timothy.callahan@enron.com
Recipients	['michelle.cash@enron.com', 'fmackin@aol.com']
File	cash-m/deleted_items/62.

Michelle,

I didn't get your attachment?

Tim

-----Original Message-----

From: Cash, Michelle Sent: Friday, October 19, 2001 1:50 PM To: Callahan, Timothy Cc: 'FMackin (E-mail)' Subject: RE: Waiver of Benefits Sensitivity: Confidential

See my comments, attached. Michelle

-----Original Message-----

From: Callahan, Timothy Sent: Wednesday, October 17, 2001 11:31 AM To: Cash, Michelle Cc: FMackin (E-mail) Subject: Waiver of Benefits Importance: High Sensitivity: Confidential

Michelle,

I've been working with Pat on a separate Waiver of Benefits agreement for our employees on a dual payroll system with the UK/US (Oxley, Kitchen and Pickering). Somehow the waiver was never put in place for David and Louise when they came over. I discovered this when working on the package for Pickering.

David has agreed to take the agreement to Louise and Mark, once he is comfortable. We've gone back and forth with David a couple of times. He now says he'll sign if we take out item 1 and the last sentence of 4.

I think we need item 1, but I've adjusted it on the attached to try to meet our needs. David's concern is that the current wording puts "salt in the wounds" regarding the benefits they are giving up, or may give up in the future. He wants to keep it simple.

Please review and let Pat and I know your thoughts.

Regards,

Timothy J. Callahan Director, Global Employee Services Enron Corp 333 Clay Street, Suite 2025 Houston, Texas 77002
Telephone: 713.646.9565 Fax: 713.646.9501

Message 91 of 167

FW: F&J Seminar "Military Leave and Other War-Related Employment

Sender	michelle.cash@enron.com
Recipients	['rick.johnson@enron.com', 'a.hope@enron.com', 'ryan.seleznov@enron.com']
File	cash-m/deleted_items/297.

FYI if you would like to attend. Michelle

-----Original Message-----

From: "Le, Marie" <mle@fulbright.com>@ENRON Sent: Tuesday, October 16, 2001 3:37 PM To: Le, Marie Subject: F&J Seminar "Military Leave and Other War-Related Employment Issues" Wednesday, October 24, 2001

Fulbright & Jaworski will host a Legal Issues breakfast seminar on Wednesday, October 24. The program is entitled "Military Leave and Other War-Related Employment Issues" F&J speakers are T.J. Wray and Michael Moore.

Wednesday, October 2001 7:30 a.m. - 9:00 a.m. The St. Regis Hotel 1919 Briar Oaks Lane - Houston, TX

If you would like to attend this seminar, please register on-line at www.fulbright.com/news go to Events > Military Leave and Other War-Related Employment Issues. If you have already registered for this event, please disregard this e-mail.

Thank you.

Marie Le Client Relations Database Coordinator Fulbright & Jaworski L.L.P. 1301 McKinney, Suite 5100 Houston, Texas 77010-3095 (713) 651-8496 Voice (713) 651-5246 Fax

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FULBRIGHT & JAWORSKI L.L.P. *****

Message 92 of 167

RE: Project Comanche

Sender	jenny.rub@enron.com
Recipients	['rus.woody@enron.com', 'scott.tholan@enron.com', 'michelle.cash@enron.com', 'david.oxley@enron.com']
File	cash-m/inbox/211.

Rus, Will you please provide a copy of all requested telephone numbers, URL's and MailSweeper criteria, via email, to all included on this distribution, then I will make sure my team executes. Also, as you make changes, please do so via email to the all addressees. Thanks. JR

-----Original Message-----

From: Woody, Rus Sent: Wednesday, November 07, 2001 2:17 PM To: Rub, Jenny Cc: Oxley, David; Cash, Michelle; Tholan, Scott Subject: Project Comanche Sensitivity: Confidential

Jenny - Enron Human Resources and the Competitive Analysis Group, in coordination with General Counsel, request IT assistance for an ongoing, sensitive project involving numerous outside firms. In conjunction with Enron Corporate policy, we have requested your group, via Keith Dziadek, generate periodic Call Detail Records (CDRs) involving outside telephone numbers of interest and to log visits to specific URLs. We have also requested MailSweeper assistance, via Bob McAuliffe and Chris Behney, for the related outside e-mail addresses. We have already provided a significant list of these numbers, URLs and addresses and will periodically update this list in the days to come. The duration of this effort is likely to continue for several more weeks. Thank you in advance for your support and please give myself or one of the principals above a call should you have any questions. Thanks again, Rus

Rus Woody 1400 Smith Street, Suite 3387 Houston, TX 77002-7361 W (713) 853-4312 C (713) 410-2286
russell_woody@enron.net

Message 93 of 167

Re: Call from Ted

Sender	michelle.cash@enron.com
Recipients	['nathan.wesely@roystonlaw.com']
File	cash-m/sent/403.

Nathan, Ted Bland is the Enron wholesale person responsible for all recruiting for one of the business units I support.

I actually spoke with Ted today about you. He is working on scheduling you for a meeting, but he has had some difficulty in finalizing schedules. So, there is no need to follow up, because he will get with you in a few days.

Hope all is well.

Michelle

"Nathan Wesely" <Nathan.Wesely@roystonlaw.com> on 10/24/2000 01:50:23 PM To: <Michelle.Cash@enron.com> cc:
Subject: Call from Ted

Michelle,

I received a call from Ted about 10 days ago about a possible interview. Ted said he would call to schedule an interview at the beginning of last week, but I have not heard back from Ted. I would like to email Ted to remind him I am still interested. Who is Ted? Can you forward his email address?

Thanks for your help!

Nathan Wesely Royston, Rayzor, Vickery & Williams, L.L.P. 600 Travis, Suite 2200 Houston, Texas 77002 Email:
nathan.wesely@roystonlaw.com Website: www.roystonlaw.com Telephone: 713.224.8380 Facsimile: 713.225.9945

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Message 94 of 167

Final Scripts for Scenarios 1 and 2

Sender	kirk.mcdaniel@enron.com
Recipients	['elizabeth.tilney@enron.com', 'yevgeny.frolov@enron.com', 'michelle.cash@enron.com', 'tim.o'rourke@enron.com']...
File	cash-m/inbox/298.

Michelle Please review the scripts below for the BRM Project. Thanks a million in advance for your assistance,

Tim/Yevgeny Please review and any changes need to go by Michelle or her designee. Thanks

Cheers Kirk ----- Forwarded by Kirk McDaniel/HOU/EES on 11/23/2001 10:32 AM -----

sheri.a.righi@accenture.com on 11/21/2001 01:47:28 PM To: kmcdani@enron.com cc: donald.l.barnhart@accenture.com, laura.a.de.la.torre@accenture.com Subject: Final Scripts for Scenarios 1 and 2

Kirk -

Below are the scripts for scenarios 1 and 2 for Legal to review. The remaining scripts will be in your mailbox first thing Monday morning. Thank you and have a Happy Thanksgiving.

Sheri A. Righi Accenture Human Performance Service Line Hartford - One Financial Plaza Direct Dial: 860 756 2245 VPN & Octel: 765 2245 e-mail: sheri.a.righi@Accenture.com

----- Forwarded by Sheri A. Righi/Internal/Accenture on 11/21/2001 02:46 PM

Laura A. de la Torre To: Sheri A. Righi/Internal/Accenture@Accenture 11/21/2001 03:03 PM cc: Subject: Final Scripts
(See attached file: Scenario 1-2 Final.doc)

Laura de la Torre Accenture Resources Houston, Texas Direct Dial 713.837.2133 Octel 83 / 72133

This message is for the designated recipient only and may contain privileged, proprietary, or otherwise private information. If you have received it in error, please notify the sender immediately and delete the original. Any other use of the email by you is prohibited. - Scenario 1-2 Final.doc

Message 95 of 167

Re: Thanks

Sender	michelle.cash@enron.com
Recipients	['jeff@smartprice.com']
File	cash-m/sent/113.

Jeffrey,

Thanks for the "thanks." Also, thanks to you for the big wine bucket. We used it at our New Year's Day party, and it worked great. I must admit, though, that I still don't understand the purpose of the round thing that goes in the bottom.

I heard that Nathan took 30 steps the other day. That is awesome!! I know that you are thrilled.

Cameron's birthday party will be March 18 at 3:30 at Gymboree. If your kids will be able to attend, let me know.

Talk to you later -- gotta go now.

Michelle

"Jeff Hoogendam" <Jeff@SmartPrice.com> on 01/05/2000 10:05:18 AM Please respond to Jeff@SmartPrice.com To: Michelle Cash/HOU/ECT@ECT cc: Subject: Thanks

Michelle-

Thanks for all the great Christmas gifts... I was thinking about you because last night I was showing a friend Sim City, this morning I awoke to the little portable clock, and was reading Texas Monthly in our library (you can guess!). The boys specially like the clock. They've figured out how to turn on the back lighting by pressing the snooze button.

We went to Shiner for the new year. The Lewis' invited 3 other couples and their kids. We stayed up until about 2am playing cards and drinking champagne (although I only had two glasses).

Nathan is getting more and more stable in his walking. He took 10 steps yesterday, the most ever. He also stands for several minutes at a time, learning how to balance himself. He's at 19 months, 17 months adjusted. Kiera walked at 16 months. We will be very happy if he is walking soon, given where he started.

Thanks again for the great gifts.

JP

Jeff Hoogendam President & CEO - SmartPrice.com, Inc. 110 Wild Basin Road, Suite 280 Austin, TX 78746 P: 512-437-7950 F: 512-437-7925

Message 96 of 167

RE: Jon Solem's resume

Sender	michelle.cash@enron.com
Recipients	['tara.piazze@enron.com', 'david.portz@enron.com']
File	cash-m/sent_items/219.

Tara,

Thanks so much for sending me your friend's resume. He certainly has a strong academic and work history.

Unfortunately, it is not Enron's practice to hire attorneys right out of law school. We prefer that our candidates have at least 4-6 years (minimum) experience at a big law firm or substantial corporate law department before they are eligible for consideration here. The rationale is that we have so much to do that we really cannot provide adequate training, which is critical for new lawyers; nor can we take the time necessary to supervise and review work of lawyers who don't have the

requisite experience.

So, please thank your friend for his interest. If you would like, I would be happy to visit with him about other types of opportunities in the legal profession, from law firms to some corporate legal departments that do hire straight out of law school. Alternatively, he may be a candidate for the Associate and Analyst Program, if he doesn't want to practice law.

Call me with any questions.

Michelle

-----Original Message-----

From: Piazza, Tara Sent: Tuesday, August 28, 2001 2:51 PM To: Cash, Michelle Cc: Portz, David; 'Rotcgm@aol.com'
Subject: Jon Solem's resume

Michelle, David Portz has referred me to you regarding a friend's resume. Jon Solem is a friend who just recently graduated from Rutgers Law, and is looking to get into corporate law. I told him that I would try to get his resume into the system for him. It is enclosed. Please let me know what else I can do to help in the process. Thanks so much for your time, Tara << File: SolemResume1.doc >> Tara E. Piazza Enron Americas- Southeast Power Origination 1400 Smith St., 3107C Houston, TX 77002 Phone: 713-853-5276 Fax: 713-646-4940 tara.piazza@enron.com

Message 97 of 167

FW: Issue in PR

Sender michelle.cash@enron.com

Recipients ['kriste.sullivan@enron.com']

File cash-m/sent_items/199.

Here is the first part of Kerry's email. MHC

-----Original Message-----

From: "Notestine, Kerry" <KNotestine@littler.com>@ENRON
[mailto:IMCEANOTES-+22Notestine+2C+20Kerry+22+20+3CKNotestine+40littler+2Ecom+3E+40ENRON@ENRON.com]
Sent: Wednesday, August 15, 2001 1:39 PM To: Cash, Michelle Subject: Issue in PR

Michelle:

Here are two good responses regarding the issue about which you called me this morning.

I researched this issue under federal criminal law and did not find any duty to report. You should know, though, that the penalties are pretty draconian. Tell your client not to print anything, forward anything, etc. Just delete it all.

Per the recent news stories re the arrest of individuals who have downloaded child porn, the possession of same is itself unlawful, so the client should systematically dispossess itself of it. Brian

I received no comments to the contrary regarding these. Thus, it appears that you can delete the material and go forward. I will do a little more checking and get back to you with any supplements. We have not checked the law of PR, do you want me to do that?

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748
713.951.9212 (fax) knotestine@littler.com www.littler.com

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Message 98 of 167

Harassment Training

Sender	michelle.cash@enron.com
Recipients	['gracie.presas@enron.com', 'tim.o'rourke@enron.com', 'marty.chrisman@enron.com', 'neil.davies@enron.com']
File	cash-m/sent/412.

Marty/Tim,

Here is pricing information about harassment prevention training. Feel free to call Kerry directly about his availability.

Michelle ----- Forwarded by Michelle Cash/HOU/ECT on 10/26/2000 03:14 PM -----

"Notestine, Kerry" <KNotestine@littler.com> on 10/26/2000 07:58:14 AM To: "'michelle.cash@enron.com'" <michelle.cash@enron.com> cc: Subject: Harassment Training

Michelle:

Thanks for the call. I have not heard from Marty Christian (spelling?) about training but will be glad to talk to her about scheduling. Regarding the cost, the price I quoted before was \$1500 for half day, and \$2500 for a whole day. The actors are \$100 apiece per presentation (\$300 total for each presentation). Typically, I can do three sessions in a half day and five in a whole day. Thus, total cost with the actors for a half day would be \$2400 and \$4000 for a whole day. One issue with the actors is that they do shows in the morning at their theater so afternoons usually are better for them. I know they have some Fridays in November in which they are open full days.

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

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Message 99 of 167

EMPLOYER PPT TRAINING FOR STERLING BANK.ppt

Sender	michelle.cash@enron.com
Recipients	['twanda.sweet@enron.com']
File	cash-m/all_documents/220.

Twanda, please save this in whatever power point directory you have. Then, print for me to revise for a presentation to Energy Operations for Norma. Save this one, though, because the one I am going to use for Energy Ops will be much shorter, and this one has good stuff in it! Thanks. Michelle ----- Forwarded by Michelle Cash/HOU/ECT on 04/18/2000 10:21 AM -----

"Notestine, Kerry" <KNotestine@littler.com> on 04/18/2000 07:49:43 AM To: "'mcash@enron.com'" <mcash@enron.com> cc: Subject: EMPLOYER PPT TRAINING FOR STERLING BANK.ppt

Michelle:

The PowerPoint presentation that you requested. Please delete any reference to Sterling Bank, but otherwise, this is my personal work product and you may use it. Let me know if you need anything else on this topic.

In addition, I will let Anne Marie know the timing issue related to the checks.

Also, let me know what you hear from Jack. We are disappointed that he did not come to our firm, but it does not surprise me.

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

<<EMPLOYER PPT TRAINING FOR STERLING BANK.ppt>>

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- EMPLOYER PPT TRAINING FOR STERLING BANK.ppt

Message 100 of 167

FW: Language for WARN Set off

Sender	michelle.cash@enron.com
Recipients	[fmackin@aol.com]
File	cash-m/sent_items/452.

For your information -- Here is some severance language I received from Littler. Michelle

-----Original Message-----

From: "Notestine, Kerry" <KNotestine@littler.com>@ENRON Sent: Thursday, November 08, 2001 4:33 PM
To: Cash, Michelle Subject: Language for WARN Set off

Michelle: In response to my firm-wide email regarding set off for WARN notice: I received a plan that included the following language: The severance benefits provided under this Plan (including any additional benefits provided pursuant to authority reserved in [company] under the provisions of this Plan) are the maximum benefits that [company] will pay. To the extent that any federal, state or local law, including, without limitation, the Worker Adjustment and Retraining Notification Act (WARN) and any other so-called "plant closing" laws, requires [company] to give advance notice or make a payment of any kind to an Eligible Employee because of that Employee's involuntary termination due to a layoff, reduction in force, plant or facility closing, sale of business, change of control, or any other similar event or reason, the benefits provided under this Plan shall be reduced by the amount of such payment. Notwithstanding any other provision of the Plan to the contrary, an Employee's Severance Benefits shall not be less than the amount required by WARN, and in the case of an Enhanced Severance Benefit, shall not be less than the amount required by WARN plus an additional amount to be determined by the Employer. Hope this is helpful. Let me know if there is any big news at Enron. Things appear to be moving fast. Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

Message 101 of 167

Letter regarding double-breasted status

Sender	michelle.cash@enron.com
Recipients	['twanda.sweet@enron.com']
File	cash-m/sent/228.

Please print this and attachment. Thanks a lot. Michelle

----- Forwarded by Michelle Cash/HOU/ECT on 06/17/2000 08:32 AM -----

"Notestine, Kerry" <KNotestine@littler.com> 05/10/2000 10:18 AM

To: "john.schwarzenburg@enron.com" <john.schwarzenburg@enron.com> cc: "mcash@enron.com" <mcash@enron.com>, "Cobb, Christi" <CCobb@littler.com> Subject: Letter regarding double-breasted status

<<24_#02!.doc>> John:

As we discussed, I am sending you a letter summarizing the law related to double-breasted issues, with particular focus on operating two companies in the same geographic and project market. I also have included some information, as you requested, about the potential liability if the efforts to maintain double-breasted status fail.

I will send the original of this letter to you by mail. I have copied this letter to Michelle Cash but have not sent it to anybody else in your organization because of your prior comments about David Lund's direct contact with me. Let me know if you want me to forward a copy of this to David, Rick Johnson, or anybody else.

If you have any questions about this letter or this topic in general, please let me know.

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

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- 24_#02!.doc

Message 102 of 167

FW: Net Works Trading Agreement and Administrative Services Agree

Sender	julia.murray@enron.com
Recipients	['michelle.cash@enron.com']
File	cash-m/notes_inbox/14.

As we discussed. Julia

Julia Heintz Murray Enron North America Corp. 1400 Smith Street, EB3838 Houston, TX 77002 (713) 853-4794 Fax: (713) 646-3393 julia.murray@enron.com

----- Forwarded by Julia Murray/HOU/ECT on 11/29/2000 01:29 PM -----

"Astin, Ronald T." <RAstin@velaw.com> 11/28/2000 05:37 PM

To: "Murray, Julia (Enron)" <julia.murray@enron.com>, "Bahlmann, Gareth (Enron)" <gareth.bahlmann@enron.com> cc: "Ramirez, Debbie" <dramirez@velaw.com> Subject: FW: Net Works Trading Agreement and Administrative Services

Agree ment

I believe these are the most recent versions of the Trading Agreement and the Administrative Services Agreement Debbie did some time ago.

-----Original Message----- From: Ramirez, Debbie Sent: Tuesday, October 03, 2000 6:20 PM To: Astin, Ronald T.; Baird, Bob Subject: Net Works Trading Agreement and Administrative Services Agreement Ron and Bob, Attached for your review are blacklined versions of the Trading Agreement and the Administrative Services Agreement. Please let me know if you have questions or comments. Debbie <<Blackline Trading Agreement v1 to v2.DOC>> <<Blackline Administrative Services Agreement v2 to v3.DOC>>

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- Blackline Trading Agreement v1 to v2.DOC - Blackline Administrative Services Agreement v2 to v3.DOC

Message 103 of 167

RE: Waiver of US Benefits

Sender	timothy.callahan@enron.com
Recipients	['madeline.fox@enron.com', 'michelle.cash@enron.com', 'david.oxley@enron.com']
File	cash-m/deleted_items/92.

The dual payroll arrangement would imply dual benefits, which is not the intent. We haven't included them in the US ERISA plans. Since the UK benefits are a better deal, we need to document that they have waived the right to the US benefits. Depending on how the conversation goes, you could use the discrimination rules as well.

Tim -----Original Message----- From: Oxley, David Sent: Monday, October 22, 2001 12:48 PM To: Callahan, Timothy Cc: Cash, Michelle; Fox, Madeline Subject: RE: Waiver of US Benefits

So my line to Louise and Mark is?

-----Original Message-----

From: Callahan, Timothy Sent: Monday, October 22, 2001 12:04 PM To: Oxley, David Cc: Cash, Michelle; Fox, Madeline Subject: RE: Waiver of US Benefits

I'll get duplicate copies to you for signature. The reason for doing this is more the former than the latter mentioned below. However, there is a concern that other UK nationals remaining on the UK payroll could try to use the US non-discrimination rules to obtain US benefits, if you were provided both. Their success in such a challenge is questionable.

Tim -----Original Message----- From: Oxley, David Sent: Monday, October 22, 2001 11:27 AM To: Callahan, Timothy Cc: Cash, Michelle; Fox, Madeline Subject: RE: Waiver of US Benefits

OK. Much better. Explain to me again why we have to do this? Is it purely to confirm we don't get stuff twice or is there a concern that our participation in both causes a sub-space paradox which may create a time vacuum into which the entire world population may be sucked?

David

-----Original Message-----

From: Callahan, Timothy Sent: Monday, October 22, 2001 10:22 AM To: Oxley, David Subject: Waiver of US Benefits
David,

Let me know if this latest version is acceptable and I'll prepare a waiver for Louise and Mark, as well.

Regards,

Timothy J. Callahan Director, Global Employee Services Enron Corp 333 Clay Street, Suite 2025 Houston, Texas 77002
Telephone: 713.646.9565 Fax: 713.646.9501

Message 104 of 167

FW: Employee Separations and Immigration

Sender	catherine.huynh@enron.com
Recipients	['lizzette.palmer@enron.com', 'michelle.cash@enron.com']
File	cash-m/deleted_items/99.

Michelle, Lizzette,

Attached is the piece on immigration for the FAQ. Alice Gruber from Tindall & Foster has provided the language.

Thanks Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel:
212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: Daffin, Margaret Sent: Thursday, October 18, 2001 12:20 PM To: Huynh, Catherine Cc: Alice <agruber (E-mail)>
Subject: RE: Employee Separations and Immigration Sensitivity: Confidential

Cathy: please see the following response from Alice Gruber:

IMMIGRATION MATTERS

Q: I've been working for Enron under a US work permit. How will my immigration status be affected when my employment ceases?

A: Your work permit is specific to Enron and is not transferable to any other employer without additional processing by the INS. A non-immigrant (H-1B, L-1, TN, etc.) is out of status once s/he has been terminated. Once the non-immigrant is out of status, in theory, s/he should depart the US as soon as possible. If the non-immigrant can find a new employer and file within approximately 30 to 60 days from the date of termination, the INS has generally overlooked the violation of the maintenance of status. Keep in mind this is not a hard and fast rule, and the INS has the ability to enforce shorter or longer periods on a case-by-case basis.

If you are offered another job in the US your prospective employer will have to apply for a new work permit on your behalf. If you do not get another job in the US and you wish to remain here then you must seek permission to stay on other grounds.

Upon termination, the foreign national should contact an attorney and schedule a time for a full consultation (in-person whenever possible) regarding all issues. There are often many issues which need to be addressed as each person's immigration issues are unique.

I hope this is what you are looking for. Let me know if we need anything else? Thanks Margaret

Message 105 of 167

Re: Suggested Text for Memo

Sender	michelle.cash@enron.com
Recipients	['randal.maffett@enron.com', 'steve@ecogas.com', 'michelle.cash@enron.com', 'mcover@velaw.com']
File	cash-m/all_documents/239.

Mark,

Do we need to say something about the fact that V&E is representing Ecogas and not the plan to ensure protection of the privilege? MHC

"Cover, Mark" <mcover@velaw.com> 05/10/2000 03:34 PM

To: "'Hamilton, Steve'" <steve@ecogas.com> cc: "'Maffett, Randy'" <randal.maffett@enron.com>, "'Cash, Michelle'" <michelle.cash@enron.com> Subject: Suggested Text for Memo

Steve,

Here is some proposed language for your memo or e-mail to employees, per your concerns:

Recently, you may have noticed some activity or heard some rumors regarding the Ecogas 401(k) plan. Let me assure you that the plan is sound, and that the assets of the plan are safely held in trust with Merrill Lynch. The activity you may have noticed or the rumors you may have heard likely come from the fact that Ecogas has been contacted by the Department of Labor for a routine investigation of the plan. In connection with that investigation, Ecogas has hired the law firm of Vinson & Elkins, who has visited our offices, to conduct a review and to make recommendations for improvement and for corrective action. I cannot stress enough that Ecogas stands behind the 401(k) plan and is committed to making the necessary improvements and corrections. I know you will join me in welcoming this opportunity to make our plan better.

/s/ Mark A. Cover Vinson & Elkins L.L.P. 3700 Trammell Crow Center 2001 Ross Avenue Dallas, Texas 75201 (214) 220-7869 (214) 999-7869 FAX mcover@velaw.com

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- C.DTF

Message 106 of 167

FW: HIPAA privacy regulations

Sender	michelle.cash@enron.com
Recipients	['cynthia.barrow@enron.com']
File	cash-m/sent_items/109.

FYI, with apologies if I already sent this to ya'll.

-----Original Message-----

From: "Notestine, Kerry" <KNotestine@littler.com>@ENRON

[mailto:IMCEANOTES-+22Notestine+2C+20Kerry+22+20+3CKNotestine+40littler+2Ecom+3E+40ENRON@ENRON.com]

Sent: Thursday, June 14, 2001 1:34 PM To: knotestine@mcworldcom.net Subject: HIPAA privacy regulations

Attached is a handout on the HIPAA privacy regulations that our firm prepared for the employee benefits session of the 2001 National Employer conference. The emphasis is on the regulations as they affect employers who administer group health plans for their employees. In many cases plan amendments will be required. In addition the regulations mandate training of personnel and the development of internal complaint procedures.

If you have difficulty accessing this document, please contact me and I can send you a hard copy. In addition, feel free to forward this summary to others within your organization or others at different companies or organizations. If you do not wish to receive these notices, contact me by a reply to this email and I will delete you from my circulation list.

Littler Mendelson is the nation's largest law firm representing management in employment and labor matters. With approximately 400 lawyers in 31 offices in the country, we have more lawyers practicing in this field than anyone else. Please let me know if you have questions about these regulations or any other employment or labor issue.

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com <<hipaa handout.doc>>

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Littler Mendelson, P.C. <http://www.littler.com>

- hipaa handout.doc

Message 107 of 167

Re: Employment Contracts

Sender	michelle.cash@enron.com
Recipients	['felecia.acevedo@enron.com', 'twanda.sweet@enron.com', 'diane.goode@enron.com']
File	cash-m/sent_items/227.

Hi, Felicia.

As I told Cindy, there is no easy way for me to determine which contracts I have done in the past are for corporate versus other business units. I simply don't organize my documents that way. Instead, I do a numeric list of documents, and the documents are identified by employee name, as opposed to business unit. As of now, I have over 4500 documents on that list. So, I can't easily pull out corporate agreements.

I can say that most of the corporate agreements I have done have been for RAC or Finance, so Sheila Walton probably has kept track of them somehow. The others most likely were at VP or above level, so I think they have been captured by corporate comp.

I hope that gives you information, even if it doesn't provide exactly what you are looking for.

Let me know if you have questions.

Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

This message may contain confidential information that is protected by the attorney-client and/or work product privileges.

Felecia Acevedo/ENRON@enronXgate 05/21/2001 04:09 PM To: Sharon Butcher/ENRON@enronXgate, Kriste Sullivan/ENRON@enronXgate, Michelle Cash/HOU/ECT@ECT cc: Andrea Yowman/Corp/Enron@ENRON, Cindy R Ward/ENRON@enronXgate Subject: Employment Contracts

In my new roll in Compensation, I am trying to get comfortable that we have all the Employment Agreements up-to-date in the Corporate Compensation Database so that we can ensure that payments are made in a timely matter and contracts are looked at for renewal in the same timely manner. What would help us tremendously is if we could get copies of all the contracts you produce for Corporate employees both VP and above and below VP so we can make sure they are entered into the Compensation Database. Mary Joyce's group enters the VPs and above but Cindy Ward and I are responsible for making their payments under the contracts. Because of this, I want to make sure we have copies and do not miss anyone. As always, your help is very much appreciated!

Thanks!

Felecia ext. 39815

Message 108 of 167

FW: Enron Metals North America Voluntary Separation

Sender	michelle.cash@enron.com
Recipients	['lizzette.palmer@enron.com']
File	cash-m/sent_items/73.

-----Original Message-----

From: Huynh, Catherine Sent: Friday, October 19, 2001 11:38 AM To: Cash, Michelle Subject: RE: Enron Metals North America Voluntary Separation

Michelle,

I'm quite happy with the lay out of the plan (great flexibility), but have just a few comments/questions.

Article 2.3, Can we make such a broad statement that is so biased toward the Company?

Article 3.1, I think the max payment is 56 weeks.

Article 5.2, Under failure to meet performance, can we reduce the 45 day period and reference oral notification as well as written notification? One of my concerns is, if we notify someone that we accept their Voluntary application, but need them to work for the next 3-4 months, the employees' motivation level might be very low which will effect their performance level. Or perhaps we can build a statement in to the Separation and Release Agreement stating that the completion of their transition of their role needs to be satisfactorily completed to receive the separation pay.

Also, somewhat related, do we expect to have the involuntary severance plan amended anytime this year? As I'm working out the next stage of involuntary severance reductions, just need to know if the calculation is likely to change.

Thanks Michelle.

Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: Cash, Michelle Sent: Thursday, October 18, 2001 1:57 PM To: Huynh, Catherine Subject: FW: Enron Metals North America Voluntary Separation

FYI, please let me know if you have any comments. Michelle

-----Original Message-----

From: FMackin@aol.com@ENRON Sent: Thursday, October 18, 2001 12:27 PM To: Palmer, Lizzette; Cash, Michelle Subject: Re: Enron Metals North America Voluntary Separation

Lizzette and Michelle, Attached is a discussion draft of the plan document. Please review and send to others who need or wish to review it. I have designed flexibility into the Plan that should serve us well in the event of design changes. Please share your comments with me or let me know if you have any questions. Pat

- Enron Metals US Vol Term Plan Doc1.doc << File: Enron Metals US Vol Term Plan Doc1.doc >>

Message 109 of 167

Fw: RE: Kishkill	
Sender	michelle.cash@enron.com
Recipients	['Gilchrist', 'twanda.sweet@enron.com', 'Scott']
File	cash-m/sent_items/48.

Please revise accordingly. Thanks. Michelle

Sent from my BlackBerry Wireless Handheld (www.BlackBerry.net)

-----Original Message-----

From: Callahan, Timothy <Timothy.Callahan@ENRON.com> To: Cash, Michelle <Michelle.Cash@ENRON.com> CC: Gilchrist, Scott <Scott.Gilchrist@ENRON.com> Sent: Fri Oct 12 16:45:05 2001 Subject: RE: Kishkill

Michelle,

Joe has caved in on the home leave issue. We only need to add the following to Exhibit A at the end of the Repatriation and Related items section:

"The items described above must be used within the six-month non-competition period; after that time, they will be forfeited. If household goods are to be shipped to Argentina, Employee will have until May 15, 2002 to provide for duty free importation of goods into Argentina. Additional time will be allowed where Enron must provide documents for duty free import of goods into Argentina."

Change Furniture Storage from reimbursed to Provided.

Once we resolve 7.9 and 7.10 below, he'll sign.

Tim -----Original Message----- From: Callahan, Timothy Sent: Thursday, October 11, 2001 4:12 PM To: Cash, Michelle Cc: Gilchrist, Scott Subject: Kishkill

Michelle,

Discussed the latest draft separation agreement with Joe today. He has just a couple more questions.

1. Article 7.9 was adjusted to add the first sentence, which references articles of the employment agreement. He wants to know the intent of this addition. Also, article 4.4 is referenced and there is no 4.4 in the employment agreement.
2. Article 7.10 - He is still concerned about the situation where Enron is acquired by a company where he was employed. I explained to him that such a situation would not fall under "rehire" by Enron. However, he would like the last sentence to read, "This provision would not apply if Employee is employed by an entity that may be acquired by or acquires a Company after the effective date of this agreement."

These are all the items for you. I'm still haggling with him over home leave and timing on shipment of goods. Let me know your thoughts on the above and I think I can get him to agree to some terms that we can finalize.

Regards,

Timothy J. Callahan Director, Global Employee Services Enron Corp 333 Clay Street, Suite 2025 Houston, Texas 77002
Telephone: 713.646.9565 Fax: 713.646.9501

Message 110 of 167

New California Statute on Disabilities

Sender	michelle.cash@enron.com
Recipients	['Vicki' <VCummings@littler.com>, 'Cummings', 'amy.fitzpatrick@enron.com']
File	cash-m/sent/457.

FYI re: California law. Michelle

----- Forwarded by Michelle Cash/HOU/ECT on 11/17/2000 11:13

AM -----

"Notestine, Kerry" <KNotestine@littler.com> on 11/17/2000 10:52:08 AM To: "'knotestine@mciworldcom.net'" <knotestine@mciworldcom.net> cc: "Cummings, Vicki" <VCummings@littler.com> Subject: New California Statute on Disabilities

I am sending you a link to our newest ASAP on California disability issues. Our ASAP's are our summaries of important developments in employment law. If you do not have employees in California, this ASAP probably is not relevant to your company. This ASAP addresses a recent bill signed into law that expands the definition of disability beyond federal law and creates a new cause of action against employers for failing to engage in the reasonable accommodation interactive process.

http://www.littler.com/nwsltr/asap_cal_disability.html

Just double-click on the link to open it. Please notify me if you have problems opening this link. I can send you a hard copy of the ASAP if necessary. In addition, feel free to print or forward this link to others in your or other companies, or use it in any other manner that assists your organization. In addition, let me know if you do not wish to receive these updates.

Littler Mendelson is the nation's largest law firm devoted exclusively to representing management in employment and labor matters. With approximately 400 lawyers in 30 offices around the country, our firm handles more employment matters than any other law firm. Please contact me if you have questions about the issues addressed in this ASAP or about any other employment law issue

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

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Message 111 of 167

Recent ASAP on AAP issues

Sender	michelle.cash@enron.com
Recipients	['cindy.skinner@enron.com', 'Vicki' <VCummings@littler.com>, 'david.oxley@enron.com', 'Cummings', 'robert.jone...]
File	cash-m/all_documents/44.

For your information. Michelle

----- Forwarded by Michelle Cash/HOU/ECT on 12/05/2000 02:36

PM -----

"Notestine, Kerry" <KNotestine@littler.com> on 12/04/2000 10:34:33 PM To: "'knotestine@mciworldcom.net'" <knotestine@mciworldcom.net> cc: "Cummings, Vicki" <VCummings@littler.com> Subject: Recent ASAP on AAP issues

I am sending you our most recent ASAP. Our ASAP's are our summaries of recent developments in employment matters. This ASAP addresses the recent changes in the regulations related to affirmative action plans. Employers which have contracts with the federal government, or contracts with federal contractors, must prepare and maintain affirmative action plans (AAPs) as long as they employ 50 or more employees, when the contracts are for \$50,000 or more. The changes addressed in this ASAP are quite technical and require careful consideration.

http://www.littler.com/nwsltr/asap_fed_affirmact.html

Please double click on the above link to access the ASAP. Let me know if you have trouble accessing this ASAP, and I can send you a hard copy. You also may visit our website (www.littler.com) to review this and other publications by lawyers from our firm. Feel free to forward this link or print a copy and distribute it to others within or outside your company. In addition, let me know if you do not want to receive these updates, and I will delete you from my distribution list.

Littler Mendelson is the nation's largest firm representing employers in employment and labor matters. With approximately 400 attorneys in 30 office, we address more issues related to employment than any other law firm. Please contact me if we can assist you with your AAP or other employment matters.

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

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Message 112 of 167

RE: Matthias Lee - Employment Agreement.

Sender	michelle.cash@enron.com
Recipients	[' alan.aronowitz@enron.com ']
File	cash-m/sent_items/158.

Neither did I. I just got the comments yesterday. I'll review the issues on the plane today and provide comments. Michelle

-----Original Message-----

From: Aronowitz, Alan Sent: Wednesday, August 01, 2001 9:26 AM To: Cash, Michelle Subject: FW: Matthias Lee - Employment Agreement. Sensitivity: Confidential

FYI.

Have you reviewed the suggestions/comments raised?

Also, I did not know that HR in Singapore had shown the draft to Matt.

Alan

-----Original Message-----

From: Lee, Matthias Sent: Tuesday, July 31, 2001 9:27 PM To: Aronowitz, Alan Cc: Lee, Matthias Subject: FW: Matthias Lee - Employment Agreement. Sensitivity: Confidential

Alan

Chor Lim has been working with me on my draft Employment Agreement (which is quite different from the Singapore Employment Agreement I have seen). Chor Lim forwarded amendments for Houston's consideration yesterday (see Chor Lim's e-mail below), but she was re-sent the original draft overnight (without comment on the amendments) advising that you will be speaking to me about it in our call tomorrow. I'm not sure if you have seen the amendments, so I requested Chor Lim for a copy for your reference.

Looking forward to speaking with you tomorrow.

Regards Matt

-----Original Message-----

From: Goh, Chor Lim Sent: Tuesday, July 31, 2001 6:32 PM To: Sweet, Twanda Cc: Mayes, Fran Subject: RE: Matthias Lee Sensitivity: Confidential

Twanda and Fran

Matt and I have reviewed the document and made some changes in line with local practice. Pls advise if we could proceed on this. Also, in Singapore we do not use Form B but have employee signed Certificate of Compliance. Matthias signed this on 7 Sep 99. << File: Executive Agreement_SIN_Matthias Lee1.doc >>

regards, Chor-Lim Goh 391B Orchard Road #10-03 Ngee Ann City Tower 1 Singapore 238874 DID : 65-838 9064 Mobile: 65- 967 888 42 Fax : 65-835 4291 email: chor.lim.goh@enron.com

-----Original Message-----

From: Sweet, Twanda Sent: Saturday, July 28, 2001 7:13 AM To: Goh, Chor Lim Cc: Mayes, Fran Subject: Matthias Lee Importance: High Sensitivity: Confidential

Pursuant to Fran Mayes request, attached is a confidential draft of the Employment Agreement for Matthias Lee.

If you have any questions, please feel free to contact Michelle Cash at (713) 853-6401.

Thanks.

<< File: 5263mhc.doc >> Cover Memo

<< File: 5211mhc.doc >> Employment Agreement

Twanda Sweet Sr. Administrative Assistant Enron Wholesale Services 1400 Smith Street, EB 3822 Houston, Texas 77002 (713) 853-9402 tsweet@enron.com

Message 113 of 167

Recent developments in California related to wage and hour and wo

Sender	michelle.cash@enron.com
Recipients	['james.bouillion@enron.com']
File	cash-m/all_documents/464.

Jim,

FYI.

The second link here is about workers' comp insurance in California.

Michelle

----- Forwarded by Michelle Cash/HOU/ECT on 10/15/2000 07:26

PM -----

"Notestine, Kerry" <KNotestine@littler.com> on 10/15/2000 06:00:01 PM To: "Cummings, Vicki" <VCummings@littler.com> cc: Subject: Recent developments in California related to wage and hour and workers compensation

I am sending you links to our newest ASAP's on California wage and hour and workers compensation issues. Our ASAP's are our summary of important developments in employment law. If you do not have employees in California, these ASAP's probably are not relevant to your company.

The first ASAP summarizes recent developments relating to whether or not computer professionals and nurses must be paid overtime. The link to this ASAP follows:

http://128.241.163.162/nwsltr/asap_sb88.html

The second ASAP is a general overview of the current state of the workers' compensation system in California. This may even be of interest if you do not have employees in California because the issues that arise in California often occur in other parts of the country. The link to this ASAP follows:

http://128.241.163.162/nwsltr/asap_insurance.html

Please notify me if you have problems opening this link. I can send you a hard copy of the ASAP if necessary. In addition, feel free to print or forward this link to others in your or other companies, or use it in any other manner that assists your organization. In addition, let me know if you do not wish to receive these updates.

Littler Mendelson is the nation's largest law firm devoted exclusively to representing management in employment and labor matters. With approximately 400 lawyers in 30 offices around the country, our firm handles more employment matters than any other law firm. Feel free to contact me if you have questions about the issues addressed in these ASAP's or about any other employment law issue.

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Message 114 of 167

RE: Welcome aboard, Angela!

Sender	michelle.cash@enron.com
Recipients	[angela.davis@enron.com]
File	cash-m/deleted_items/348.

Are you going?

-----Original Message-----

From: Davis, Angela Sent: Monday, December 17, 2001 7:09 AM To: Cash, Michelle Subject: FW: Welcome aboard, Angela!

i think the final installment. I HAVE A JOB AND DID NOTHING TO GET IT!

Angela D. Davis Enron North America Corp. 1400 Smith Street, EB3817 Houston, Texas 77019 Tel: (713) 345-8347 Fax: (713) 646-3393 e-mail: angela.davis@enron.com

-----Original Message-----

From: timedecision@acninc.net@ENRON Sent: Saturday, December 15, 2001 4:27 AM To: undisclosed-recipients:;@ENRON Subject: Welcome aboard, Angela!

Hello Angela,

We are happy to inform you that you have met our qualifications and we are offering you a position with our company! You will also be excited to know that we are going to compensate you not just for your efforts, but also on the efforts of each former Enron employee that you PERSONALLY assist in finding placement with our company!

As an additional bonus you will receive 2%-8% personal residual income for each customer you personally refer to our services, allowing you to over-ride the entire energy market in Texas, and that's just the beginning! There are additional bonuses in our compensation plan of which will be explained to you.

Angela, If you do not believe in GOD, you should start believing NOW! The magnitude of being able to essentially transfer companies along with your former employees can only be considered an ACT OF GOD.

This is a ONCE IN A LIFETIME opportunity to continue to work with the people you know and love, and NOT be affected economically by your recent layoff.

YOU CANNOT AFFORD TO WAIT. We HIGHLY urge you to take advantage of this remarkable opportunity.

We will be hosting a special training Saturday, December 15th. The location of this spectacular event will be the Renaissance Hotel, 6 Greenway Plaza East.

Please meet your escorts in the hotel lobby by 9:45 a.m. as we will begin promptly at 10:00 a.m. Your personal hosts will be Mr. Jared Radden and Ms. Rachel Blake.

Our goal is for you to help us make this one of the most successful and memorable events in history, to be known as a "Weekend To Remember"!

If there are any further questions, please address them by e-mail. That address is: timedecision@acninc.net

Welcome aboard, and we look forward to seeing you OVER the top!

Thanks,

Jared Radden

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<http://tnp.ca/radden/unsub.cgi?e=angela.davis@enron.com&s=2>

Message 115 of 167

RE: Ross Malme/ Enron

Sender	michelle.cash@enron.com
Recipients	['kriste.sullivan@enron.com', 'Cash', 'kerry', 'notestine@enron.com', 'Michelle']
File	cash-m/sent_items/281.

absolutely, unless Kerry plans to be nice to him

-----Original Message-----

From: Sullivan, Kriste Sent: Wednesday, July 11, 2001 1:37 PM To: 'Notestine, Kerry' Cc: Cash, Michelle Subject: RE: Ross Malme/ Enron

I do not think this is a conflict issue as to Enron and your representation of Enron as you are not being engaged by Malme. I do not see a problem. Michelle do you agree?

However, we thank you for bring it to our attention.

-----Original Message-----

From: Notestine, Kerry [mailto:KNotestine@littler.com] Sent: Tuesday, July 10, 2001 9:56 PM To: Cash, Michelle; ksulliv@enron.com Subject: FW: Ross Malme/ Enron

Michelle and Kriste:

Of all bizarre twists. Please see message below. Malme has purchased an employment practices liability insurance policy (EPLI) and we are scheduled to do the audit required by the insurance company. While Texas conflicts law probably would not make this a conflict because it is not like or related to other work we have done for Enron, California conflict laws apparently are more strict. Could you confirm that Enron does not have a problem with us doing an employment law audit for Malme's current company.

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

-----Original Message----- From: Roeder, Randolph Sent: Tuesday, July 10, 2001 11:34 AM To: Notestine, Kerry Cc: McMillan, Brian; Conflicts Desk Subject: Ross Malme/ Enron Kerry, Brian McMillan has submitted a New Case Memo for an EPLI audit of a client named Retx.com, whose president is Ross D. Malme. The Conflicts Desk notes you as representing Enron in a matter involving Ross D. Malme. If this is the same person and he is your opposing party, written notice to your client of this fact would probably be required under California law. Assuming you will be checking to see if this is the same person and if so, you will check to see if under Texas law you are required to provide notice to Enron, I have signed off on the Conflict of Interest Report and forwarded it to the Conflicts Desk.

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Message 116 of 167

FW: Emails on Terrorism Audit and Consultant

Sender	michelle.cash@enron.com
Recipients	['cindy.skinner@enron.com', 'neil.davies@enron.com', 'david.oxley@enron.com']
File	cash-m/sent_items/37.

FYI -----Original Message----- From: "Notestine, Kerry" <KNotestine@littler.com>@ENRON [mailto:IMCEANOTES+22Notestine+2C+20Kerry+22+20+3CKNotestine+40littler+2Ecom+3E+40ENRON@ENRON.com] Sent: Friday, October 05, 2001 9:38 AM To: Cash, Michelle Subject: Emails on Terrorism Audit and Consultant

Michelle:

After I sent you my prior emails, Garry Mathiason responded with the following emails on the two subjects that you raised. Garry usually has helpful insights so I thought I would pass them along:

Regarding the terrorism audit, this is an "external" threat assessment and requires a qualified security company. I think that Johnathan Tal could do such an audit as well as some other more established security firms.

<<Johnathan Tal>>

Regarding the HR consultant, the potential list is endless. I have some top level contacts with Delotte's Human Capital group. Meanwhile, I think the best non-attorney group on downsizing is probably Right and Associates. This is an area that we (Littler) have developed into a science. At Cisco, HP, AA, AOL, Solection, etc. we have advised on many of this issues. Call me if you would like specifics. Garry

Michelle, here is the local contact for Right & Associates whom I have met:

<<Joe A. Bowden>>

It does not look like we have an off-the-shelf memo on legal issues related to Terrorism, but with our workplace violence work, we probably can put something together less expensively and more thoroughly than other firms. Let me know what we can do to help.

Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com

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Content-Transfer-Encoding: 7bit Message-ID: <8310030B08C3D311A7C600508B6A81290178644C@SFRMAIL> To: Subject: Johnathan Tal Date: Tue, 18 Nov 1997 10:53:50 -0700 MIME-Version: 1.0 X-Mailer: Internet Mail Service (5.5.2653.19) Content-Type: text/plain; charset=iso-8859-1

6/01

Content-Transfer-Encoding: 7bit Message-ID: <613D9AD04006D211880300805FBB4C5A772D4A@HOUEXCH> From: "Notestine, Kerry" <KNotestine@littler.com> To: Subject: Joe A. Bowden Date: Wed, 7 Mar 2001 06:43:42 -0700 MIME-Version: 1.0 X-Mailer: Internet Mail Service (5.5.2653.19) Content-Type: text/plain; charset=iso-8859-1

Asked to speak at HR Roundtable in April of 2001

Message 117 of 167

Oregon Statute

Sender	michelle.cash@enron.com
Recipients	['amy.fitzpatrick@enron.com', 'brian.schaffer@enron.com', 'valeria.hope@enron.com']
File	cash-m/all_documents/454.

FYI -- Michelle

----- Forwarded by Michelle Cash/HOU/ECT on 10/10/2000 02:29

PM -----

09/27/2000 03:09 PM Kriste Sullivan@ENRON Kriste Sullivan@ENRON Kriste Sullivan@ENRON 09/27/2000 03:09 PM 09/27/2000 03:09 PM To: Sharon Butcher/Corp/Enron@ENRON, Michelle Cash/HOU/ECT@ECT cc: Subject: Oregon Statute

FYI

In case this issue comes up for you, be advised that in Oregon by statute the employer is required to provide a terminated employee access to his or her PH file and a certified copy of the file upon request. A copy of the statute is attached.

Kriste K. Sullivan Enron Corp. Legal 1400 Smith, EB 4861 Houston, TX 77002 (713) 853-7557 (713) 646-5847 Fax KSulliv@Enron.com

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----- Forwarded by Kriste Sullivan/Corp/Enron on 09/27/2000 03:06 PM -----

Barbara Halle/ENRON@Gateway 09/25/2000 02:10 PM

To: Kriste Sullivan/Corp/Enron@ENRON cc: Subject: Oregon Statute

Here is the statute you were asking about. Any questions, please call....

O.R.S. o 652.750

1999 OREGON REVISED STATUTES TITLE 51. LABOR AND INDUSTRIAL RELATIONS CHAPTER 652. HOURS; WAGES; RECORDS PERSONNEL RECORDS

Current through End of 1999 Reg. Sess.

652.750. Inspection of records by employee; furnishing copy to employee; disposition of record on termination of employment; charge for copies.

(1) As used in this section:

(a) "Employer" has the meaning for that term provided in > ORS 656.005.

(b) "Personnel records" do not include records of an individual relating to the conviction, arrest or investigation of conduct constituting a violation of the criminal laws of this state or another state or the United States, confidential reports from previous employers or records maintained in compliance with > ORS 351.065.

(2) At the request of an employee, the employer shall provide reasonable opportunity for the employee to inspect, at the place of employment or place of work assignment, those personnel records of the employee which are used or have been used to determine the employee's qualification for employment, promotion, additional compensation or employment termination or other disciplinary action. At the request of the employee, the employer shall furnish a certified copy of such records.

(3) Upon termination of employment, the employer shall keep the terminated employee's personnel records for not less than 60 days. At the request of the employee, within the 60-day period or at any time if the employer has retained the records at the time of the request, the employer shall furnish a certified copy of such records.

(4) An employer may make only such charge for the services referred to in subsections (2) and (3) of this section as is reasonably calculated to recover the actual cost of providing the service.

(1977 c. 861 o 2; 1985 c. 404 o 6)

Message 118 of 167

FW: EEL Voluntary Severance

Sender	kriste.sullivan@enron.com
Recipients	['michelle.cash@enron.com']
File	cash-m/deleted_items/14.

-----Original Message-----

From: Huynh, Catherine Sent: Monday, October 08, 2001 4:03 PM To: Sullivan, Kriste Subject: EEL Voluntary Severance

Hi Kriste,

Some 'light' reading for you?

For some background, I've attached a memo that Enron Metals North America sent out to our staff on Friday. We sent it out under the cover of our lead commercial and lead commercial support execs. It is an acknowledgement and response to a memo sent out by the CEO and COO of EEL announcing their voluntary redundancy program.

Further to the memo, my colleagues in London HR have forwarded additional details on how the program will work in London. These next four attachments contain general information about the program that can also be found on the EEL intranet site.

General information Application for VR VR Q&A UK VR Calculation

EEL plans on running the VR Program for 2 weeks starting today. Following this 2 week program, they will then start a compulsory redundancy program with payout under the statutory requirements. In preparation for this, each business unit will need to follow a selection process within each group to identify key employees. Here in North America, we are going through the same selection process. Attached is the selection guide and an example spreadsheets we are using.

As much as we can, we want to offer a voluntary program in the US as well. Doing so will help us send a unified global message within EEL; US employees will not be treated any different then their London colleagues. However, as I noted in our telecon, our current involuntary severance is quite generous already and I can't imagine padding it even more. I ran a quick calculation and based on the yrs of service employees carried over from MG, over 75% of our North America staff would eligible for over 4 months of severance. There is a long history of tenure in Metals and the average time of service is 7 yrs.

Seems the selection process and criteria would also work for us in the US, as long as we apply it consistently, but I would welcome your thoughts.

Once you've had a chance to review it, please call me and we can discuss it further.

Thanks Cathy

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

-----Original Message-----

From: Kingsley, Sophie Sent: Monday, October 08, 2001 2:20 PM To: Huynh, Catherine Subject: FW: Cathy

Cathy, I think realistically we need to be ready to run for a week today - just in case.

Let me know what you need from me. -----Original Message----- From: Mehmood, Melanie Sent: 08 October 2001 16:01 To: Kingsley, Sophie Subject: Cathy

I have spoken to Cathy and she has gone through most of the documents, she is passing them by legal and has done some basic calculations to ascertain whether it would be attractive to her employee base.

Cathy will also try and get Philip and Marcello to look at the criteria to see if that works for their population before they come over here. I think Cathy will be ready as soon as she needs to be.

Mel

Message 119 of 167

RE: Voluntary Separation Program Update

Sender	michelle.cash@enron.com
Recipients	['lizzette.palmer@enron.com', 'catherine.huynh@enron.com']
File	cash-m/sent_items/424.

I think we have had our release reviewed by NY counsel already, but it might be a belts and suspenders idea to have Drew look at it quickly.

I agree with Lizzette's view of the persons who don't sign the release; I believe that they probably have quit. If, however, they rescind their application before termination, it is not a voluntary term. If the situation arises, however, I think we should reevaluate at that time.

Michelle

-----Original Message-----

From: Palmer, Lizzette Sent: Wednesday, October 31, 2001 4:22 PM To: Cash, Michelle Subject: FW: Voluntary Separation Program Update

Whoops! didn't get the copy to you on the first try.

--Lizzette

-----Original Message-----

From: Palmer, Lizzette Sent: Wednesday, October 31, 2001 3:50 PM To: Huynh, Catherine Subject: RE: Voluntary Separation Program Update

I'll be glad to review and edit, and to prepare a separation agreement. Michelle, do you think we need to have NY counsel review the separation agreement?

On the question of rescinding the agreements, I think that an employee who rescinds a separation agreement may not be entitled to anything because the person still has voluntarily quit and isn't entitled to any severance under any plan. But for employees who try to rescind the application for voluntary severance (ie say they don't want to quit at all), I think we've led them to believe that they can do so without repercussion. So, I would say that they remain employees who (1) ultimately still can choose to voluntarily quit, or (2) may be selected for termination, in which case we may owe severance. Michelle, do you agree?

--Lizzette

-----Original Message-----

From: Huynh, Catherine Sent: Wednesday, October 31, 2001 3:08 PM To: Palmer, Lizzette; Cash, Michelle Subject: Voluntary Separation Program Update

Michelle, Lizzette,

We have extended our application deadline to 9AM Monday since many employees have been asking for more consideration time.

I expect by Tues, Weds next week we will have determined which employees applications will be accepted. With this in mind, can I ask you to take a look at the following acceptance and rejection letters? These were used in London's program, and will need to be edited for use in the US.

Additionally, can you send me a copy of the Separation and Release Agreement to be used for the Voluntary Program? I would like to familiarize the business leads on what it will contain. Can you please ensure that the Agreement contains verbiage reference payment subject to adequate performance (per the Plan document).

We anticipate that the termination dates for the first wave of employees leaving under the is Program would leave by 12/31/2001. This means that the latest I can get the Agreement to them is Nov 15 so they will have the full 45 day consideration period. With such a narrow timeline, I will try my best to get you all the information for effected employees soon as possible so that you will have time to prepare the Agreements.

Also, what happens in the event that the employee rescinds the Separation & Release Agreement? Do they then, by default, receive involuntary severance?

Thanks Cathy

<< File: Acceptance Letter-Draft.doc >> << File: Rejection Letter-Draft.doc >>

Human Resources Enron Metals & Commodity Corp. 520 Madison Ave., 28th Floor New York, NY 10022 Tel: 212-715-5276 Fax: 212-715-5231 E-Mail: Catherine.Huynh@Enron.com

Message 120 of 167

FW: ENA agreement- review for compliance with Mississippi law

Sender	knotestine@littler.com
Recipients	['michelle.cash@enron.com', 'diane.goode@enron.com']
File	cash-m/inbox/45.

Michelle: You had asked us to review the employment agreement under Mississippi. Here is the analysis we have. As I mentioned, we do not have any lawyers actually resident in Mississippi, so we did the work here. This analysis seems comprehensive enough. Let me know if you need anything else. Kerry E Notestine Littler Mendelson, PC 1900 Chevron Tower 1301 McKinney Street Houston, Texas 77010 713.652.4748 713.951.9212 (fax) knotestine@littler.com www.littler.com -----Original Message----- From: Zimmermann, Ashley Sent: Monday, October 08, 2001 7:51 PM To: Notestine, Kerry Subject: ENA agreement- review for compliance with Mississippi law Generally, the agreement is compliant with Mississippi law. It is not hard to comply with Mississippi law when it comes to employment agreements. Mississippi is pretty much the opposite of California in regard to employee rights. Mississippi does not have many restrictions. Plaintiffs' employment attorneys would probably starve in Mississippi if it weren't for federal laws. Mississippi allows non-competes and protection of trade secrets and confidential business information. It has a pretty broad view of what is included in that category, so I think the agreement is ok in that regard. Specifically, the case law says that a covenant not to compete may be enforced if "necessary for the protection of [the employer's] business and goodwill." See Texas Rd. Boring Co. of La.-Miss. v. Parker, 194 So.2d 885 (Miss. 1967). The validity and enforceability of a non-compete is predicated upon the reasonableness and specificity of its terms, primarily, the duration of the restriction and its geographic scope. See Redd Pest Control Co. v. Heatherly, 248 Miss. 34, 157 So.2d 133 (1963). To be enforceable, the covenant must strike a balance between the interests of the employer and the employee, and its enforcement must not pose a threat to the public of monopoly or unfair competition. See Empiregas, Inc. of Kosciusko v. Bain, 599 So.2d 971, 975 (Miss. 1992). Incidentally, even if the court found the terms and categories of a non-compete to be too broadly defined, that would not be a problem because Mississippi courts can blue pencil those types of things to make non-competes enforceable. The time and geographic restriction in this agreement would most likely be found to be reasonable under Mississippi law, as other courts have upheld similar restrictions. The only concern I have in that regard is that the agreement says it will be enforceable even against an employee who is termed without cause, and Mississippi law holds that Court's should not enforce non-competes if the employee was terminated in an arbitrary or capricious manner or in bad faith. However, I don't think that means we need to change the language in the contract, I just think you need to advise the client of that fact so it cannot expect to be able to terminate an employee in bad faith and still enforce the non-compete. Mississippi allows for employment agreements to be arbitrated. Thus, the arbitration provision is fine. The only thing I might add is a clause which says, "The arbitrator selected may not have any interest in the subject matter in dispute, nor can he be related by consanguinity or affinity to the parties entering into this agreement" because that is a requirement under Mississippi law. Incidentally, my only other concern is that the agreement says it will be governed by Texas law. Choice of law is an unsettled area in Mississippi when it comes to employment agreements/non-competes in Mississippi, so there is no reason why the client cannot insist on such a provision. However, the client should probably be advised that such an area of law is always subject to change and it might be enforced by a Mississippi court regardless of what the agreement says. Ashley

Message 121 of 167

RE: Emergency Check In Policy

Sender	michelle.cash@enron.com
Recipients	['legal <.schuler@enron.com', 'paul.trieschman@enron.com']
File	cash-m/sent_items/42.

I have looked at the policy and have no major issue with it, except to the extent that it may be either duplicative or different from policies that Corp. is looking to implement.

I agree with Paul's approach on the practice aspect as well as the statement that management will take reasonable steps to look for their unaccounted-for personnel.

Paul, it might make sense for you to talk with Robert Jones and David Oxley, who are looking at overall security issues in the wake of the terrorist attacks.

Michelle

-----Original Message-----

From: Trieschman, Paul Sent: Monday, October 08, 2001 3:43 PM To: Schuler, Lance (Legal); Cash, Michelle Subject: RE: Emergency Check In Policy

Can't this be communicated as a simple Field Ops "practice" going forward instead of Policy? I'd rather see it be sold as "this makes sense for all of us to do" vs. "do this because it is Policy" Additionally, what will be the consequences for not adhering to policy? Shouldn't we also state management will proactively track down their employees and together we will account for everyone's safety.

-----Original Message-----

From: Schuler, Lance (Legal) Sent: Monday, October 08, 2001 2:14 PM To: Trieschman, Paul; Cash, Michelle Subject: FW: Emergency Check In Policy

I would appreciate your review of the policy set out below. As you can see, the policy has already been circulated, without legal review. While we may all have had comments or suggestions, is there anything you think would require recirculation? Thank you. Lance.

W. Lance Schuler Enron North America Corp. 1400 Smith Street Houston, Texas 77002 Phone: 713/853-5419 Fax: 281/664-4890 Email: lance.schuler-legal@enron.com

-----Original Message-----

From: Grimm, Allan Sent: Thursday, October 04, 2001 1:22 PM To: Schuler, Lance (Legal) Subject: *FW: Emergency Check In Policy

Lance,

Below is the policy note that we talked about earlier today. Any comment or input will be appreciated.

Regards,

Allan Grimm Sr. Director, Field Operations Enron Broadband Services allan.grimm@enron.com 713 293-8121

-----Original Message-----

From: Fehl, Rick Sent: Monday, October 01, 2001 2:53 PM To: Grimm, Allan Cc: Moss, Kevin Subject: RE: Emergency Check In Policy

Was this reviewed by legal? If not I would like the wording checked and if necessary clarified relative to the obligations; expressed or implied regarding employee safety. certainly, knowing of the status of employees is important in an emergency.

Rick

-----Original Message-----

From: Grimm, Allan Sent: Monday, October 01, 2001 2:49 PM To: DL-EBS FieldOps -- North America Cc: Fehl, Rick; Moss, Kevin; Nahas, Al Subject: Emergency Check In Policy

Team,

Please consider the policy outlined below to be effective immediately.

EMERGENCY CHECK IN POLICY FOR EBS FIELD OPERATIONS EMPLOYEES

In light of the recent tragedies that occurred in New York City and Washington, D.C., Enron Broadband Services Field Operations is adopting a new policy that requires field operations personnel to check-in during unusual situations and

emergencies, whether natural or man-made. Through this check in, management will be able to ensure that any and all necessary measures are taken to provide for the safety of employees.

Therefore, in the event of a disaster or emergency, all EBS employees and contractors shall call the Network Operations Center in Houston at 800 267-7028, as soon as they can do so safely, to advise EBS management of their status. Since some personnel may be traveling or on a temporary assignment known only to their immediate supervision, all personnel are requested to check-in, not only those physically assigned to a location near the event. Personnel on vacation or other leave should also make an effort to check-in so their safety can be assured as well. Phone contact is preferable, however, email or other communication services are acceptable. When you make the call, please provide the following information:

Name Phone number where you can be reached Immediate Supervisor Current location Assigned location Any assistance required

It is the goal and focus of the company to provide a safe and secure work atmosphere for all employees. Should you have any other further suggestions in this regard, please forward them to Herb Caballero, our safety manager, who is charged with developing policies to ensure your safety.

Regards,

Allan Grimm Senior Director, Field Operations

Message 122 of 167

Re: FW: 2001 AFFIRMATIVE ACTION PLAN

Sender	michelle.cash@enron.com
Recipients	[david.oxley@enron.com]
File	cash-m/sent_items/232.

That was my response also. I have no idea. . . .

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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David Oxley/ENRON@enronXgate 06/01/2001 08:24 AM To: Michelle Cash/HOU/ECT@ECT cc: Subject: FW: 2001 AFFIRMATIVE ACTION PLAN

HUH?

-----Original Message-----

From: "AA_Programs@enron.com" <AA_Programs@enron.com>@ENRON [mailto:IMCEANOTES-+22AA+5FPrograms+40enron+2Ecom+22+20+3CAA+5FPrograms+40enron+2Ecom+3E+40ENRON@ENRON.com] Sent: Thursday, May 31, 2001 10:07 AM To: Oxley, David Subject: 2001 AFFIRMATIVE ACTION PLAN

This year the Office of Labor & Employee Relations (OLER) is pleased to provide your business unit's 2001 Affirmative Action Program online. The online site contains the documentation required to meet our regulatory obligations including the AAP narrative, goals and utilization analysis. We have also included links to critical EEO/AA policies and related information. We are excited about this opportunity to simplify your access to this critical and important information. Please reference this web-site when you have an open position that needs to be filled or when considering transferring and promoting employees. The URL link is listed at the bottom of this message.

Through our Affirmative Action Programs we take positive steps to ensure that we deliver on our commitment to EEO. Affirmative Action is not about quotas for women or minorities nor is it about preferential treatment to less qualified candidates because of their race, gender, disability or veteran status. Through affirmative action, we seek to establish a "level playing field" for all employees and applicants, regardless of race, gender, disability or veteran status. We use

statistical analyses of employment patterns as indicators of whether the playing field is truly level.

The AAP contains proprietary information, therefore it should not be shared with anyone outside of Enron. If your operating company is participating in a bidding process where EEO/AAP information is requested, please forward those requests to the corporate Office of Labor & Employee Relations at EB1561 or call (713) 853-3086. Please refer to Enron's Code of Ethics book for guidance concerning your obligations of confidence with proprietary company information.

Although the AAP contains proprietary information and belongs to Enron Corp., the narrative section is to be made available for review during regular work hours to all job applicants and employees who ask to see it. We ask that these requests be forwarded through Human Resources and that the web site you are accessing not be shared.

We would also like to take this opportunity to reaffirm the strong commitment of Enron Corp. to the principle of Equal Employment Opportunity in its personnel policies and practices. It is our Company policy to recruit, hire, train, and promote into all job levels, the most qualified employees and applicants for employment, without regard to race, color, religion, age, sex, national origin, disability, or veteran status. All employee selections are based on (1) inclusive recruitment and outreach efforts, and the merit, qualifications and competence of individuals for the particular positions, and (2) consistently providing equal employment opportunity. We believe that a diverse workforce is a strength, and that as we implement personnel policies and practices which foster fair treatment on the basis of race, sex and disability, we promote equitable employment opportunities for all employees and applicants.

Enron administers all personnel programs and employment opportunities without regard to race, color, religion, age, sex, pregnancy, national origin, physical or mental disability, veteran status, or status as an alien authorized to work in the United States. Such employment programs and opportunities include, but are not limited to, compensation, benefits, transfers, layoff, leaves of absence, return from layoff, training, education, tuition assistance, and Company-sponsored social and recreational programs.

We have developed and implemented the 2001 Affirmative Action Program (AAP) to support our commitment to the principle of equal employment opportunity and meet federal and state requirements. The AAP describes, in detail, the policies and procedures used in the Company's operations to carry out its commitment.

Your company's EEO Officer, as stipulated in your plan narrative, is responsible for administering the Company's Affirmative Action Program and will report to senior management on a continuing basis with regard to the progress being made under the AAP. If you have questions, comments or concerns about Enron's Equal Opportunity and Affirmative Action policies, please speak with your supervisor or your Human Resource Representative.

As with any rollout of a new web-site, errors, while not expected, may occur. Please contact AA Program@enron.com if you are unable to log-in or experience any difficulties. We would recommend that once you access the site you add it to your "favorites" list for future reference.

<http://aap.enron.com/default.asp?u=2142&p=VEQIPSM>

Message 123 of 167

FW: Questions

Sender	melinda.mccarty@enron.com
Recipients	['michelle.cash@enron.com']
File	cash-m/deleted_items/204.

Hi there, Kathy McMahon mentioned that you might be able to help us with the questions on the attachment. They are from a student working on a project.

Please let me know.

Melinda McCarty University Affairs x31641

-----Original Message-----

From: MyPoohBear79@aol.com [mailto:MyPoohBear79@aol.com] Sent: Wednesday, October 17, 2001 4:39 PM To: Derecskey, Cindy Subject: Questions

Attention: Ms. Derecsky

Also if you have any informational videos doe my presentation it would be greatly appreciated. Thank you for your kind assistance with this matter.

Thank you Nicole Stumpf

My address is: University of Tampa UT Box# 1518 401 W. Kennedy Blvd Tampa, FL 33606 (813) 250-7572

Message 124 of 167

Re: Address

Sender	michelle.cash@enron.com
Recipients	[gregory.phillips@compaq.com]
File	cash-m/sent/107.

Greg, we live very close to you! We have to get together soon. I have sent you an invitation to our New Year's Day party, and I hope you can come.

By the way, congrats on all the success and good press on Fusion. It is well deserved!

Merry Christmas!

Michelle

"Phillips, Gregory L (Legal)" <Gregory.Phillips@COMPAQ.com> on 12/16/99 10:32:00 AM To: Michelle Cash/HOU/ECT@ECT cc: Subject: Address

Michelle:

I just got your voicemail and I was on a conference call. However, I'm running late to another meeting. I will try to call you later today. I hope that the family is doing well and that you guys are having a wonderful Holiday Season. Here's our information:

Greg, Cynthia and Sidney Phillips 2711 S. Glen Haven Blvd. Houston, TX 77025 713-660-7880

I will talk to you later.

GLP

Message 125 of 167

Re: NEW HR PERSON FOR PORTLAND

Sender	michelle.cash@enron.com
Recipients	[fiona.lavelle@enron.com]
File	cash-m/all_documents/346.

Michael,

I met Amy today and look forward to working with her. Thanks for the heads up about her arrival here in the States.

Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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Fiona Lavelle 05/25/2000 05:43 AM

To: Michelle Cash/HOU/ECT@ECT cc: Mark E Haedicke/HOU/ECT@ECT, David Oxley/HOU/ECT@ECT, Cindy Olson/Corp/Enron@ENRON Subject: NEW HR PERSON FOR PORTLAND

I understand that Amy Fitzpatrick will be moving from Enron Europe to Portland in the near future as her husband is relocating back to the states.

As you will no doubt be dealing with Amy going forward, I thought I would let you know that she has worked extensively with myself and Jon Chapman and is also the HR rep for the Legal Department in Europe. She has done an outstanding job and is an absolute pleasure to work with, so we are very disappointed to lose her. However, our loss is your gain and I have asked her to look you up when she goes to Houston.

Speak to you soon. Michael

Message 126 of 167

No Excuses Girls Night

Sender	michelle.cash@enron.com
Recipients	['trey.cash@enron.com', 'michelle.blaine@enron.com', 'twanda.sweet@enron.com', 'esholeen@bracepatt.com', 'rank...']
File	cash-m/all_documents/807.

Debbie, would you please forward this to Deanne, Lisa Anouilh, and Mary Thamm? I've lost those email addresses! Thanks.

Hello girls! Is everyone ready to party on Friday???

Here are the details:

Date: Friday, Sept. 29

Time: 6:30 pm

Place: My house 4531 Beech Street Bellaire, Texas 77401 713-218-7155

Directions: Take 59 to Newcastle, go south on Newcastle. Beech is off of Newcastle between Bissonnet and Bellaire.

Alternative: Take Loop 610, exit Bissonnet, go inside the loop, then go south (right) on Newcastle. Beech is off Newcastle.

In the interest of keeping this simple and quick (since I am going to be travelling from Boston that day), I am going to order fajitas and serve margaritas and wine. Rather than have people bring or do stuff, everyone can just toss in some cash (it won't be much more than \$10-ish) based upon how many people will be there. So, let me know, and I'll count you in (and get your booze!).

So far, I have "yes" from Blaine and her friend who makes the jewelry (bring your orders), Mata Kroger, Rank, Scofield, Stith, Gussett, and Blanco. Sholeen is a "no" because her neighbors are giving her a going away party, and she thought it would be kind of tacky not to show up. Let me know if these plans have changed.

If we have left anyone out, please include them on the list and have them get back to me to say they'll be there.

See you Friday! Michelle

Message 127 of 167

Re: Xmas	
Sender	michelle.cash@enron.com
Recipients	[wpcashjr@email.msn.com]
File	cash-m/sent/267.

Dear Gretchen:

Wow! You are thinking ahead! What is a Leap Pad? Is it something computer related? I have never heard of it.

On our end, we have planned a trip to DC to visit Madison in August -- nice and hot by then. We just got word that we have tix to the Orioles game while we are there, so that is good. We got new furniture in the living room -- a chocolate brown suede/leather sofa and chair/ottoman. It amplified the need for bright art in that room -- to the galleries and starving artists sales we go!

Stay cool -- Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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"wpcashjr" <wpcashjr@email.msn.com> 06/27/2000 03:43 PM

To: "Cash, Michelle" <michelle.cash@enron.com> cc: Subject: Xmas

Hil!? The heat has gotten to us!? We are thinking Christmas.? We would like to give C a Leap Pad if he doesn't have one and you and T think it would be appropriate.? The item is for ages 4 and up but we do not think C is too young for it and hopefully it will get him to read more.? Nothing exciting happening here.? Just waiting, waiting for furniture, materials, etc.? Takes forever as you well know.? What's happening your end?? G?

Message 128 of 167

FW:	
Sender	lou.stoler@enron.com
Recipients	[michelle.cash@enron.com]
File	cash-m/resumes_for_recruiting/5.

Michelle: this is a long time friend of mine who left SMK with Mickey Sheinfeld, but would like to move on to something new. Would she be a candidate for anything we need? Or anybody else you might think of?

thanks

Lou

-----Original Message-----

From: "Thrasher, Judy G." <JThrasher@AkinGump.com>@ENRON [mailto:IMCEANOTES-+22Thrasher+2C+20Judy+20G+2E+22+20+3CJThrasher+40AkinGump+2Ecom+3E+40ENRON@ENRON.com] Sent: Tuesday, July 31, 2001 2:39 PM
To: 'lstoler@enron.com' Subject:

<<4@3@01!.doc>>

Lou, thank you for your time and assistance. Remember, I am only interested in working a part time schedule. I will talk with Bonnie and we will set up something with you.

I did not receive your e-mail.

Good to talk with you.

Judy Thrasher Legal Assistant Akin, Gump, Strauss, Hauer & Feld 1900 Pennzoil Place, South Tower 711 Louisiana Houston, TX 77002 (713) 220-5850

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- 4@3@01!.doc

Message 129 of 167

Midwest Generation	
Sender	michelle.cash@enron.com
Recipients	['rick.johnson@enron.com', 'knotestine@littler.com']
File	cash-m/sent_items/239.

FYI -- additional information on Midwest Power. Your detective abilities would be appreciated. Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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----- Forwarded by Michelle Cash/HOU/ECT on 06/07/2001 11:01 AM -----

Philip Mayor/ENRON@enronXgate 06/07/2001 08:55 AM To: Michelle Cash/HOU/ECT@ECT cc: Subject: Midwest Generation

Jeff Hodges has told me that you are helping us out with trying to locate information re: the Midwest Generation Labor Dispute. The following article appeared in the Chicago Tribune today:

Under a settlement agreement signed with the National Labor Relations Board, Midwest Generation LLC, a wholesale power supplier to Commonwealth Edison Co., will begin negotiating as early as next week with the union representing 1,150 of its electrical workers, officials said. The move comes less than two weeks after the International Brotherhood of Electrical Workers local authorized a strike. The sides have disagreed over when the current contract expires; under a separate agreement, Midwest Generation was released from its obligation to maintain the existing contract through June 2002, company officials said.

Would there be any way to obtain details about this, or is it probably a confidential settlement? Thanks for the advice.

Phil

Message 130 of 167

For Your Review and Approval - project completion

Sender	michelle.cash@enron.com
Recipients	['fmackin@aol.com']
File	cash-m/all_documents/768.

Pat, thanks for the revisions to the AESOP language. I have another one for you. The attached is a proposed retention program for persons in HR who may be facing outsourcing. There is a need to incentivize these key personnel to stick around now and, if there is an outsourcing, to help with the transition. Your comments/thoughts would be appreciated. Thanks. Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

This message may contain confidential information that is protected by the attorney-client and/or work product privileges.
----- Forwarded by Michelle Cash/HOU/ECT on 06/21/2000 01:11 PM -----

Kimberly Rizzi 06/21/2000 12:19 PM

To: Michelle Cash/HOU/ECT@ECT, Brian Schaffer/Corp/Enron@ENRON cc: Cynthia Barrow/HR/Corp/Enron@ENRON, David O'Dell/HR/Corp/Enron@ENRON Subject: For Your Review and Approval - project completion

Michelle and Brian,

Please review the attached draft memo for distribution to employees to communicate the project completion program. We would present each employee with an individualized memo showing their award amount and the terms. The department head would be responsible for filling in the project term. Let me know what changes need to be made to the memo before we use it. They would like to communicate to their folks as soon as possible.

Also, please look over the revised presentation for the project completion incentive for the final time - no significant changes have been made.

Thanks, Kim

Message 131 of 167

Alonzo Williams

Sender	michelle.cash@enron.com
Recipients	['diane.goode@enron.com']
File	cash-m/sent_items/247.

Diane, not a high priority, but would you please get with Kim Melodick and find out what the client group wants to do with the Alonzo Williams lawsuit? He never answered, and currently is in default. Thanks. Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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----- Forwarded by Michelle Cash/HOU/ECT on 06/11/01 12:28 AM -----

"Bill W. Ogden" <bogden@ogwb.com> 12/14/00 03:27 PM Please respond to bogden To: "Michelle Cash" <michelle.cash@enron.com> cc: "Mark Haedicke" <mark.e.haedicke@enron.com> Subject: Alonzo Williams

Michelle: By my calculation Alonzo Williams' answer date will be Dec. 26. He was served on November 29. I haven't heard anything. It occurred to me that we often are successful in resolving these things quickly and cheaply by having someone at Enron call a contact at the new company, TXU, and bring the issue to a head. So far as I know no one has made such a call in this case. I recall from the Union litigation a few years ago there was an Enron exec who went to TUFCO by the name of Mark McNally. We deposed Mark in that case and he was very professional and cooperative. McNally had been at Enron and (I believe) Houston Pipeline for 15-17 years. He's now been with TXU 4 or 5 years and is CFO. A call to him might get this off dead center. I'm copying Mark on this email because I know Mark knows McNally well. What do you think? Best regards, Bill

Message 132 of 167

Re: Consulting Services Agreement

Sender	michelle.cash@enron.com
Recipients	['janel.guerrero@enron.com', 'diane.goode@enron.com']
File	cash-m/sent_items/242.

Hi, Janel,

I thought that I initialed those already. If I didn't, I'll do it when I get back after my vacation next week.

In the meantime, go ahead and forward them to the counterparty for signatures on both originals and then have someone at VP level sign for Corp. If I didn't initial, you should get them initialed before giving them to the corporate officer, because company policy requires attorney initials on all legal documents before signature.

Once signed, the original goes to the vault; we can take care of that for you.

I'll be out next week, but if you have questions, please call Diane Goode, who works in my group. She can either assist you or find someone else who can.

Thanks.

Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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Janel Guerrero@ENRON 06/08/01 01:18 PM To: Michelle Cash/HOU/ECT@ECT cc: Subject: Consulting Services Agreement

Hi Michelle,

I received the two executable copies of the CSA between Enron and KDS Communications. I'm not sure what the next step is. Should I overnight these to Ken to sign and then receive them back and sign on this end and he gets one and we get one? And I'm assuming that no one else in legal has to sign off at this point? I thought Linda Glynn mentioned something about Richard or someone else providing initials???

Just let me know. thanks!

Also does legal keep a copy or do we keep the contract with us?

Message 133 of 167

Re: Special Background letter

Sender	michelle.cash@enron.com
Recipients	[candace.womack@enron.com']
File	cash-m/sent/565.

Candace, You are right -- there is no need to send a second letter since we didn't base our decision on the background check results. Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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Candace Womack 12/12/2000 07:07 PM

To: Michelle Cash/HOU/ECT@ECT cc: Subject: Special Background letter

Michelle - Just wanted to verify that there is no need to send this candidate a second notice. It seems a bit pointless, but thought I would double check with you. Please advise.

Thanks.

Candace

Michelle Cash 11/18/2000 04:24 PM To: Candace Womack/HOU/ECT@ECT cc: Subject: Re: Special Background letter

Candace, this letter looks good. Michelle

Candace Womack 11/14/2000 11:22 AM To: Michelle Cash/HOU/ECT@ECT cc: Subject: Special Background letter

Michelle -

I have drafted up a special letter to send to the candidate with the derogatory results on his background investigation report. We had decided not to engage him for business reasons unrelated to the background report (his job requisition was actually cancelled), and you suggested that we send him a copy of his report anyway.

Could you look over this letter and let me know if it is suitable to send out? Will we need to also modify the second letter (that contains contact information for the investigation agency) and send it out in a couple of weeks, or will this one letter be sufficient? Or should I incorporate the contact information into this letter?

Thanks for your assistance.

Candace x30651

Message 134 of 167

Midwest Generation

Sender	michelle.cash@enron.com
Recipients	[rick.johnson@enron.com', 'knotestine@littler.com']
File	cash-m/sent_items/246.

Kerry,

We drove by your house, which looked like it took on some water. I hope all is ok, and that you didn't have too much damage. Bellaire was hit pretty hard.

On another note, if you are able to gather any more info on this Midwest Generation issue, would you please call Jeff Hodge in our legal department? Twanda can connect you.

I'll be on vacation this week and will return the 18th.

Thanks.

Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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----- Forwarded by Michelle Cash/HOU/ECT on 06/11/01 12:13 AM -----

Philip Mayor/ENRON@enronXgate 06/07/01 08:55 AM To: Michelle Cash/HOU/ECT@ECT cc: Subject: Midwest Generation

Jeff Hodges has told me that you are helping us out with trying to locate information re: the Midwest Generation Labor Dispute. The following article appeared in the Chicago Tribune today:

Under a settlement agreement signed with the National Labor Relations Board, Midwest Generation LLC, a wholesale power supplier to Commonwealth Edison Co., will begin negotiating as early as next week with the union representing 1,150 of its electrical workers, officials said. The move comes less than two weeks after the International Brotherhood of Electrical Workers local authorized a strike. The sides have disagreed over when the current contract expires; under a separate agreement, Midwest Generation was released from its obligation to maintain the existing contract through June 2002, company officials said.

Would there be any way to obtain details about this, or is it probably a confidential settlement? Thanks for the advice.

Phil

Message 135 of 167

FW: Follow up on Doug Miller

Sender	michelle.cash@enron.com
Recipients	['diane.goode@enron.com']
File	cash-m/sent_items/240.

FYI

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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----- Forwarded by Michelle Cash/HOU/ECT on 06/07/2001 05:07 PM -----

Kim Melodick/ENRON@enronXgate 06/07/2001 02:03 PM To: Michelle Cash/HOU/ECT@ECT cc: David Oxley/ENRON@enronXgate Subject: FW: Follow up on Doug Miller

Michelle, Doug was in the real time group. Please contact me for specific details.

-----Original Message-----

From: Presto, Kevin M. Sent: Thursday, June 7, 2001 1:46 PM To: Melodick, Kim Subject: RE: Follow up on Doug Miller
Sensitivity: Confidential

We absolutely need to hold him to his evergreen. It is his responsibility to understand the contract he signed. If we have to, we should sue him to prevent him from working.

-----Original Message-----

From: Melodick, Kim Sent: Thursday, June 07, 2001 11:15 AM To: Presto, Kevin M. Subject: Follow up on Doug Miller
Sensitivity: Confidential

My understanding from Doug Miller is that he was taking a position at Calpine. I indicated to him that he was still under an Evergreen Clause on his employment agreement. I believe that there is some confusion with employees under a standard agreement where they think that there time to sit out 3 months post their agreement not 3 months following there termination with Enron. I explained this to Doug and he stated that he needed to work and would continue with his plans to go to Calpine since he had to look after his family. That being said, I spoke with Michelle Cash and she thought we needed to hold him to the non compete. She suggested that I speak with the business unit to assess their interest. What are your thoughts?

Message 136 of 167

Japan -Local Employment Agreement

Sender	michelle.cash@enron.com
Recipients	['twanda.sweet@enron.com']
File	cash-m/sent/260.

T: Would you please print and file in Japan file? Thanks. MHC

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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----- Forwarded by Michelle Cash/HOU/ECT on 06/26/2000 02:51 PM -----

Scott Gilchrist@ENRON_DEVELOPMENT 05/19/2000 10:24 AM

To: Michelle Cash@ECT cc: Subject: Japan -Local Employment Agreement

Michelle

Alan responded to this with copies to you and John Viverito -and I've lost it.

If you still have the email, could I ask a big favour and ask you to forward it to me. Appreciate it! -----

Forwarded by Scott Gilchrist/ENRON_DEVELOPMENT on 05/19/2000 10:22 AM -----

Scott Gilchrist 03/30/2000 07:30 PM To: Alan Aronowitz@ECT cc:

Subject: Japan -Local Employment Agreement

Alan

As discussed.

1)Text from B&M document on labour law relating to contract duration states

Quote

The term of an employment contract can be indefinite. However, if an employment agreement provides for a definite term, such term may not exceed:

a) one year, or

b) 3 years in regard to agreements with any of the following types of employee:

i) a new employee with special expertise, technique or experience designated by the MOL which is necessary for research or development of new products, new services, or new technologies;

ii).a new employee with special expertise, technique or experience designated by the MOL which is necessary for services that are rendered to effect start-up, change, expansion, scale down or discontinuation of a business and that are expected to be completed within a specific period..

Unquote

I seek clarification as to whether we can obtain MOL approval that our senior Japanese (say Director level) staff can be categorized under b). Thanks for your assistance

Message 137 of 167

Section 5.14 of Stock Purchase Agreement between Enron and Sierra

Sender	michelle.cash@enron.com
Recipients	['dale.rasmussen@enron.com']
File	cash-m/all_documents/326.

Dale, here it is. Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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----- Forwarded by Michelle Cash/HOU/ECT on 06/19/2000 04:06 PM -----

Ann Ballard@ENRON 06/19/2000 10:23 AM

To: Andrew Kelemen/HOU/ECT@ECT, Michelle Cash/HOU/ECT@ECT, David Aamodt/Enron@Gateway cc: Mitchell Taylor/Corp/Enron@ENRON Subject: Section 5.14 of Stock Purchase Agreement between Enron and Sierra Pacific Resources

I spoke with Keith Fullenweider at V&E regarding PGE's discharge of liabilities, and whether or not a consent would be required from Sierra Pacific Resources pursuant to Section 5.14 of the Stock Purchase Agreement. He agreed that settlement of this type of liability by PGE in the amounts discussed would not be material to PGE (even settlements with a broader group of individuals). Payments made by PGE prior to the closing should not have any impact on Sierra's ownership of PGE or the value of PGE after closing. Enron has the right to dividend net income out of PGE before closing (up to certain limits). Payment of liabilities would probably reduce the amount that Enron could dividend before closing. Its not clear whether or not the materiality standard was intended to be material to PGE and PGH II taken as a whole. The amounts could be material to PGH II, but we assume that this would not be paid out of PGH II.

I believe that the benefit plan at issue here is sponsored by Portland General Holdings, Inc. That entity is not being sold to Sierra Pacific Resources. I do not know whether or not there will be any employees that participate in that plan after PGE and PGH II are sold to Sierra. Sierra will cause a new plan with similar benefits to be adopted at the time of the sale for PGE and PGH II employees. I suppose that the plan sponsored by Portland General Holdings, Inc. might be terminated following the sale of PGE.

Please call me if you have further questions regarding the Stock Purchase Agreement between Enron and Sierra Pacific Resources.

Message 138 of 167

Re: AESOP Language

Sender michelle.cash@enron.com

Recipients ['scott.gilchrist@enron.com']

File cash-m/all_documents/773.

Scott, here is new language for the inclusion in the Japan agreement. It still is long, but it is more current. Let me know if you need any thing else at this time. Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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----- Forwarded by Michelle Cash/HOU/ECT on 06/23/2000 04:49 PM -----

FMackin@aol.com 06/21/2000 10:55 AM

To: Michelle.Cash@enron.com cc: Subject: Re: AESOP Language

Michelle,

The new program still needs final approval by the Enron Corp. board of directors. The design was tentatively approved last month, subject to final review. The following revised provision should serve you well in the meantime:

All-Employee Stock Option Program

Enron Corp. has previously awarded stock options to full time and part-time regular employees in designated domestic and international locations through the All Employee Stock Option Program (AESOP). Stock option grants were made under this program to eligible employees hired prior to January 1, 2000. The grants represented value for the time period of 12/31/94 through 12/31/00 or a pro-rata portion if hired after 12/31/94. Subject to final approval by the Enron Corp. board of directors, a one time award of non-qualified stock options under a replacement program is proposed to be made to eligible employees as of December 29, 2000, in value equal to 25% of annual base salary (5% of annual base salary for a 5-year period; salary valuation and value may vary in some international locations). Program awards are subject to and effective upon the approval by the Compensation and Management Development Committee of the Enron Corp. Board of Directors. Such stock awards will be made pursuant to the appropriate Enron Corp. Stock Plan as determined by the Committee. The exercise price for grants of stock options will be determined according to the provisions of the Stock Plan under which the award is granted. The program may or may not be offered in certain domestic and international locations based upon management discretion and/or local labor and employment laws.

Message 139 of 167

AESOP Language

Sender michelle.cash@enron.com

Recipients ['fmackin@aol.com', 'scott.gilchrist@enron.com']

File cash-m/sent/611.

Pat,

Given that the new AESOP has been approved by the comp. committee, do you think the language attached below should be revised? (Or, should I ask -- has it been revised?). If so, would it be possible for you to revise for inclusion in offer letters, etc.?

Thanks a lot!

Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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----- Forwarded by Michelle Cash/HOU/ECT on 06/21/2000 09:59 AM -----

Scott Gilchrist@ENRON_DEVELOPMENT 06/20/2000 04:47 PM

To: Michelle Cash@ECT cc: Subject: AESOP Language

This is what we have -but it now seems dated. Do you have a more current version I could cut and paste into the Japan offer letter. Thanks ----- Forwarded by Scott Gilchrist/ENRON_DEVELOPMENT on 06/20/2000 04:46 PM -----

Catherine Huynh

06/20/2000 04:27 PM

To: Scott Gilchrist/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc:

Subject: AESOP Language

All-Employee Stock Option Program Enron Corp. has previously awarded stock options to full time and part-time regular employees in designated domestic and international locations through the All Employee Stock Option Program (AESOP). Stock option grants were made under this program to eligible employees hired prior to January 1, 2000. The grants represented value for the time period of 12/31/94 through 12/31/00 or a pro-rata portion if hired after 12/31/94. A replacement program for beyond the year 2000 is under consideration and will likely be reviewed at the May, 2000 Board meeting. If approved, this could result in stock option award grants to eligible employees. Program awards are subject to and effective upon the approval by the Compensation and Management Development Committee of the Enron Corp. Board of Directors. Such stock awards shall be made pursuant to the appropriate Enron Corp. Stock Plan as determined by the Committee. The exercise price for grants of stock options shall be determined according to the provisions of the Stock Plan under which the award is granted. This program may or may not be offered in certain domestic and international locations based upon management discretion and/or local labor and employment laws.

Message 140 of 167

Re: URGENT : Employment Contract - Rich Slovensky

Sender	twanda.sweet@enron.com
Recipients	['Lilian', 'John Chismar/SIN/ECT@ECT', 'michelle.hargrave@enron.com', 'John L Nowlan/HOU/ECT@ECT']
File	cash-m/sent/615.

Employment Agreement should be Enron North America Corp.

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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Michelle Hargrave 06/23/2000 08:40 AM

To: Matthias Lee/SIN/ECT@ECT cc: Kimberly Rizzi/HOU/ECT@ECT, John L Nowlan/HOU/ECT@ECT, John Chismar/SIN/ECT@ECT, Lilian Low/SIN/ECT@ECT, Tim Poullain-Patterson/LON/ECT@ECT, Angeline Poon/SIN/ECT@ECT, Michelle Cash/HOU/ECT@ECT, Alan Aronowitz/HOU/ECT@ECT Subject: Re: URGENT : Employment Contract - Rich Slovensky

Matthias - the executables were Fed-Ex'd to Lillian on June 6th. We have just been waiting for Rich to sign them and return them! Would you have any idea as to why he has not signed yet?? As for it being Enron Expat or Enron North America I will let Michelle Cash in our legal dept. respond to that.

Michelle - can you respond on whether or not it matters as to Enron Expat or Enron North America and which is correct??

Regards, Michelle

Matthias Lee 06/22/2000 11:03 PM To: Michelle Hargrave/HOU/ECT@ECT, Kimberly Rizzi/HOU/ECT@ECT cc: John L Nowlan/HOU/ECT@ECT, John Chismar/SIN/ECT@ECT, Lilian Low/SIN/ECT@ECT, Tim Poullain-Patterson/LON/ECT@ECT, Angeline Poon/SIN/ECT@ECT, Michelle Cash/HOU/ECT@ECT, Alan Aronowitz/HOU/ECT@ECT Subject: URGENT : Employment Contract - Rich Slovensky

Michelle / Kimberly

Please allow me to introduce myself - I am Legal Counsel for ECT Singapore.

It has just been brought to my attention by our HR Specialist Lilian Low that the employment contract for our new trader Rich Slovensky has not been executed. You would appreciate that that gives us a slew of control, compliance and legal issues. Apart from confidentiality issues, Rich does not presently have authority to bind ECT Singapore in contracts.

Please let me have your very urgent advice whether we can expect Rich's employment contract to be in place immediately to regularise the situation or whether we have to implement measures to stop Rich's trading activity.

Additionally, I noticed that the cover letter offering employment to Rich refers to employment with Enron Expat Services but the employment contract states that ENA is the employer. Please clarify or rectify as appropriate.

Regards Matt Lee

Message 141 of 167

Enron and PDI Japan	
Sender	michelle.cash@enron.com
Recipients	['Mayumi' <mama@pdi-corp.com>, 'twanda.sweet@enron.com', 'Matsushita']
File	cash-m/sent/259.

T: Please print this and attachment -- file in Japan file. Thanks. MHC

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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----- Forwarded by Michelle Cash/HOU/ECT on 06/26/2000 02:41 PM -----

John Viverito@ENRON 05/11/2000 02:44 PM

To: Michelle Cash/HOU/ECT@ECT cc: Alan Aronowitz/HOU/ECT@ECT Subject: Enron and PDI Japan

Michelle-

Pursuant to my voicemail, I am forwarding the attached e-mail traffic for your consideration. I am unsure as to the types of testing contemplated, but want to ensure that such activities are permitted under Enron's policy.

Your comments on the attached agreement would also be appreciated.

Thanks,

John ----- Forwarded by John Viverito/Corp/Enron on 05/11/2000 02:36 PM -----

Phillip -SYDNEY- Taylor@ENRON_DEVELOPMENT 05/10/2000 05:13 PM

To: John Viverito@Enron cc: Subject: Enron and PDI Japan

Hi John

Enron will be using PDI in Tokyo for candidate abilities testing prior to employment. The outcome of the testing is a confidential report that comes to me (as HR) and I then send to the participant(s) in the recruitment decision making process for their confidential consumption. PDI have agreed to me doing this via email, however are seeking some reassurance as to our use of and maintenance of confidentiality of the final product. Can you review the attached and come back to me with your thoughts? I would also appreciate a local (Japan) opinion on the legal issues associated with abilities/psych testing prior to employment (I know you guys shy away from it in the US although it is quite widely accepted "down under").

Thanks and regards

Phil ----- Forwarded by Phillip -SYDNEY- Taylor/ENRON_DEVELOPMENT on 11/05/2000 09:12

"Jack, Douglas" <doja@pdi-corp.com> on 10/05/2000 21:09:41 To: "Phillip.-SYDNEY-.Taylor@enron.com"
<Phillip.-SYDNEY-.Taylor@enron.com> cc: "Matsushita, Mayumi" <mama@pdi-corp.com>

Subject: RE: Enron and PDI Japan

Phil, With the e-mail transmission (using .pdf files), we'll need you or someone else in Enron to sign a document similar to the attached letter. Please read it and let me know if you want to make any changes before we fill in all the details.

Thanks very much, Douglas

- emailrelease.doc

Message 142 of 167

Re: MITCHELL F LUDWIN

Sender	alan.aronowitz@enron.com
Recipients	['michelle.cash@enron.com']
File	cash-m/resumes_for_recruiting/4.

Guy looks interesting.

Might be a good athlete that we could plug in to various assignments (EGM or otherwise). We could check him out from Foley & Lardner as well as Cadwalader due to our contacts at those firms. I haven't see the transactions list yet.

Is he open to moving to Houston? As you know, it is more complicated when we have to move someone.

Alan

Michelle Cash 06/09/2001 12:40 AM To: Sheila Tweed/HOU/ECT@ECT, Julia Murray/HOU/ECT@ECT, Alan Aronowitz/HOU/ECT@ECT cc: Subject: MITCHELL F LUDWIN

Here is a candidate referred by Bruce Menke at Associated Counsel. Bruce also forwarded me additional information at my request, specifically addressing why he has moved around so much. I'll forward that on as well.

Let me know if you want to talk with him.

Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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----- Forwarded by Michelle Cash/HOU/ECT on 06/09/01 12:33 AM -----

"Bruce Menke" <Bruce@associatedcounsel.com> 05/22/01 03:52 PM Please respond to Bruce To:
<Michelle.Cash@enron.com> cc: Subject: MITCHELL F LUDWIN

Michelle,

I hope your week is going well.

Please find attached the resume of Mitch Ludwin. Mitch has great academics (JD '89 cum laude-top 8%, Law Review, Order of the Coif, etc.) and extensive transactions experience with an emphasis on finance. Mitch is currently Senior Associate at Troutman Sanders in Atlanta. Mitch was originally from New York and began his career practicing for three years with Cadwalader, Wickersham & Taft in that City. Mitch then joined Mudge, Rose, Guthrie, Alexander & Ferdon, spending two years with the firm's New York office, followed by a year and a half with the firm's Los Angeles office. Upon dissolution of Mudge, Rose, Mitch joined Fried, Frank, Harris, Shriver & Jacobson in Los Angeles. Mitch then accepted an opportunity with Foley & Lardner in Milwaukee, where he practiced four years. Mitch joined the firm to participate in the start up of the firm's project finance practice and to be closer to his wife's family. This area of the firm's practice did not develop as anticipated and the attorneys brought in with this expertise moved to other firms. Mitch joined Troutman to focus on asset-based lending. I would be happy to provide any additional information concerning Mitch which you may wish and to arrange an interview, if you so desire. I anticipate receiving a transactions list, which I will forward to you. I have also submitted Mitch's resume to Enron Energy Services for consideration.

Regards, Bruce Menke

- Ludwin, Mitchell F. (resume, 89, 051801).doc

Message 143 of 167

Re: Green card Verbage

Sender	michelle.cash@enron.com
Recipients	['amanda.curless@enron.com', 'jane.allen@enron.com']
File	cash-m/sent/245.

Mandy, Jane's language looks good. I would add one thing at the end: "Of course, receipt of an H1B visa transfer and/or permanent resident status will depend on whether the INS approves those applications." Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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Amanda Curless@ENRON 06/19/2000 06:40 PM

To: Michelle Cash/HOU/ECT@ECT cc: Subject: Re: Green card Verbage

Michelle, This is the verbage that Jane gave me for the green card issue Gary Buck talked to you about. Please approve and let me know if we need to make any changes. Thanks! Mandy ----- Forwarded by Amanda Curless/Corp/Enron on 06/19/2000 06:33 AM -----

From: Jane Allen @ ECT 06/19/2000 05:24 PM

To: Amanda Curless/Corp/Enron@ENRON cc:

Subject: Re: Green card Verbage

I have expanded on it a bit:

As part of the hiring process, the Company will sponsor the transfer of your H1-B visa. Please contact Margaret Daffin at 713/345-5083 as soon as possible to discuss the documentation necessary to initiate the transfer. In addition, as part of the Performance Management Process at Enron, your job performance will be reviewed within the first 6 months of employment (year-end 2000). If your job performance is within the top 33% of your peers (employees in the IT function at your level), we will sponsor you for an employment-based permanent residency application (green card). The application process will begin shortly after the year-end review is finalized.

Amanda Curlless@ENRON 06/19/2000 04:53 PM To: Jane Allen/HOU/ECT@ECT cc: Subject: Green card Verbage

To get Andre, we have to have some language that provides him an assurance that we'll support him for a green card. I discussed this with Beth and she is ok with providing some language like this.

I would propose that we say something to the effect of : "We will support the H1B transfer. You will be reviewed for job performance within the first 6 months. If your job performance is within the top 33% of IT people at your level, we will support you for a green card process at the end of the 6 month review.

Even with this language, I think it's iffy that he'll accept.

3) I think our critical path on recruiting is as follows : Recruiting: Technical team leads for Ken / Regan in the Unify Settlements and Accounting area Recruiting: EDI team lead / developer Hiring (some assumptions here): Matt Pena as gas operations manager, Paul O'Neal as Delphi developer for DCAF.

I really appreciate all the support that ya'll are providing.

Thanks.

Message 144 of 167

Re: Agreement

Sender	michelle.cash@enron.com
Recipients	['jane.allen@enron.com']
File	cash-m/all_documents/785.

Jane, I am glad that you knew the situation, as I was clueless! Thanks. Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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Jane Allen 06/28/2000 09:45 AM

To: David Oxley/HOU/ECT@ECT cc: Michelle Cash/HOU/ECT@ECT, Tara Rozen/LON/ECT@ECT Subject: Re: Agreement

No, it is a European Agreement since she is remaining on UK payroll. Tara found out Michele Small prepared the agreement. Jon C. reviewed it then but now has comments again, plus he is questioning some of our changes.

As you recall, the file that Louise had and has signed is just a draft. We kept making changes based on her request and it has not been reviewed by Legal before she signed last week.

Jane J. Allen Enron Corp Global Employee Services Phone - 713/345-5064 Fax - 713/646-7203

David Oxley 06/28/2000 09:23 AM

To: Tara Rozen/LON/ECT@ECT cc: Jane Allen/HOU/ECT@ECT, Michelle Cash/HOU/ECT@ECT Subject: Re: Agreement

Thought this was drafted here by Jane and Michelle? Maybe we get Mich to initial and Greg to sign?

David

Tara Rozen 06/28/2000 05:01 AM To: David Oxley/HOU/ECT@ECT, Jane Allen/HOU/ECT@ECT cc: Subject: Re: Agreement

David/Jane

Jon Chapman has come back with several changes/questions on the agreement. I am not sure who drafted this or what you want me to do with this now. Mark F won't sign without Jon C's signature and Jon C won't sign as it is.

Jane - Please provide your fax number and I will fax it to you asap.

Thanks Tara

David Oxley 26/06/2000 13:56 To: Tara Rozen/LON/ECT@ECT, Jane Allen/HOU/ECT@ECT, Nigel Sellens/LON/ECT@ECT cc:

Subject: Re: Agreement

Could you do the deed with Mark? ----- Forwarded by David Oxley/HOU/ECT on 06/26/2000 07:55 AM -----

Enron Capital & Trade Resources Corp.

From: Robert Jones @ ENRON 06/23/2000 06:02 PM

To: David Oxley/HOU/ECT@ECT cc: Jane Allen/HOU/ECT@ECT, Melissa Laing/LON/ECT@ECT Subject: Re: Agreement

D-

Can you get Mark's signature? Once signed, I will get it to London for process and sorting out the money.

Thanks for all your help on this.

Robert

David Oxley@ECT 06/23/2000 07:41 AM To: Robert Jones/Corp/Enron@ENRON cc: Jane Allen/HOU/ECT@ECT, Melissa Laing/LON/ECT@ECT

Subject: Agreement

I think I have a hard copy of this agreement in my mail. What do I need to do?

David ----- Forwarded by David Oxley/HOU/ECT on 06/23/2000 07:40 AM -----

Louise Kitchen 06/21/2000 06:17 PM To: David Oxley/HOU/ECT@ECT, Jane Allen/HOU/ECT@ECT, Robert Jones/Corp/Enron@ENRON cc: gwhalle@enron.com Subject: Agreement

Just so its finally over!

Electronic copy of the agreement I signed:

I updated:

1. Registered office of Enron Europe is now 40 Grosvenor. 2. Mark Frevert as signatory as he is here. 3. \$=sterling. Up on the numbers but down on the house! etc

Louise

Same password with a 2 on the end (eg ****2)

Message 145 of 167

Legal interface - Affirmative Action Plans

Sender	michelle.cash@enron.com
Recipients	['diane.goode@enron.com']
File	cash-m/sent_items/244.

Please note and put in a file for me regarding Enron AAPs. That obviously will be of significance to me in my new role.
Thanks. MHC

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

This message may contain confidential information that is protected by the attorney-client and/or work product privileges.
----- Forwarded by Michelle Cash/HOU/ECT on 06/09/01 12:26 AM -----

Rick Johnson/ENRON@enronXgate 06/01/01 12:43 PM To: Andrea Yowman/ENRON@enronXgate, Michelle Cash/HOU/ECT@ECT, Sharon Butcher/ENRON@enronXgate, Kriste Sullivan/ENRON@enronXgate cc: Sandra Lighthill/ENRON@enronXgate, Valeria A Hope/ENRON@enronXgate Subject: Legal interface - Affirmative Action Plans

Andrea, in response to Michelle's concerns about legal review of our Affirmative Action Plans, Please consider the following:

Background: ? Affirmative Action Plan development is supported by specific software that was implemented in January 2000. ? The Plans consist of two primary elements, the narrative portion and the statistical portion. ? Narrative was reviewed for legal merit in January 2000 by George Chaffee, Attorney at Law, Littler Mendelson, Walnut Creek, CA and by a local consultant, George Pharis, President, Strategic Direction Resources Inc. o Recommended changes were incorporated into the FY 2000 AAPs. The narrative section of an AAP is generally the same each year with few changes necessary. ? The statistical portion requires an intense amount of labor each year. The database of the plan has to be confirmed for accuracy ? Plans are reviewed against the previous year's AAP for continuity ? Once we have drafts of the AAP (narrative and statistical portion) for a business unit: o Draft plan and a memo are sent to the business unit HR head for review o HR head requests any changes and confirms their buy-in before the plan is finalized and distributed to their organization o Execution signatures are obtained o Plans are distributed to management level employees to guide their hiring/promotion and termination decisions throughout the course of the plan year. o Quarterly utilization reports are completed and sent to the business units to allow them to track their progress achieving AAP goals o If a "new goal" is warranted from quarterly reports, it is highlighted for the business unit to consider as they move forward through the rest of the year

Recommendations:

? 02 Plan narratives drafted and reviewed by appropriate legal counsel. (Complete no later than Y/E 2001) o OFCCP changes to regulations became effective December 13, 2000. New Regs have reduced some narrative requirements however underlying responsibilities are still implied ? AAP Plan drafts provided to HR Head and respective legal counsel for review, change, and approvals before being submitted for execution signatures ? OLER to revise and communicate new execution milestone to get AAPs completed. Earliest data access date is Jan 15 - (reflecting Y/E promotions, terms etc)

OLER is committed to supporting an effective AAP process for client units. Please assist us by sharing you interests and perspectives on the recommendations offered.

Regards, Rj.

file: oler-core060101 ***

Message 146 of 167

Summary of Conversation

Sender	michelle.cash@enron.com
Recipients	['Melissa Laing/LON/ECT@ECT', 'twanda.sweet@enron.com']
File	cash-m/all_documents/779.

Twanda, please print and file Japan file. Thanks. MHC

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

This message may contain confidential information that is protected by the attorney-client and/or work product privileges.
----- Forwarded by Michelle Cash/HOU/ECT on 06/26/2000 03:08 PM -----

Scott Gilchrist@ENRON_DEVELOPMENT 06/08/2000 09:44 AM

To: Michelle Cash@ECT cc: Subject: Summary of Conversation

Please see first part ----- Forwarded by Scott Gilchrist/ENRON_DEVELOPMENT on 06/08/2000 09:43 AM

Nigel Sellens@ECT 06/08/2000 07:13 AM To: Scott Gilchrist/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc:
Melissa Laing/LON/ECT@ECT

Subject: Summary of Conversation

Terms and Conditions

Clause 6. I raised the issue of a reasonableness test regarding place of work and whether we should include some wording. I was advised that it was not required as it is implicit.

Clause 7. They will include a no obligation to award an increase sentence.

Options, bonus and sign-on wording will be the ENE wording.

Clause 8. I asked to have wording made clear that it was ".. otherwise as required by the Company..."

Clause 9. This will only apply to more senior levels. The para will be omitted where overtime is relevant and this will be covered under work rules and be the statutory amounts.

Clause 10. We agreed to go flat rate for holidays although we did discuss a two level approach as 20 days is generous for non managerial staff who will not use it all anyway. You and I need to agree on this.

Clause 13. I was right, it does read that we can only terminate for just cause and even then it is difficult to prove (there is a case that states that mere incompetence does not constitute Just Cause). The definition examples are those recommended by the Lawyers although they are going to take up with them a couple of my suggestions to get their view. Again I will talk you through this. As far as employees giving notice, the statutory limit is 2 weeks so the period in the contract is a moral agreement only, although this is taken more seriously in Japan than elsewhere. We also discussed the exec agreement concept which they think will not work but are reviewing the wording with their lawyers.

Clause 19. Although in the template, they would recommend including it as part of the normal terms and conditions so we need to wait for their comments on the exec agreement.

They are revising template for tomorrow morning.

Work Rules

Fairly standard and not required initially. They are working on a draft for us to review and comment on.

Benefits including Pension

They agree with our selection of benefits although they recommend a lump sum allowance type all employee pension plan which is a book reserve which pays out on termination based on salary and length of service. This is very common and supplements the Government pension scheme. This would in addition to SRAP and they are sending me more details.

Issues

Corporate/Employment Filings. They mentioned that there are a number of filing requirements that need to be done to get businesses underway. Do we know what we have done to date on this front?

Options. Although these schemes are common there is a lot of legal prep work involved so I intend to see if Enron Corp HR has started this with Japn, if not I will get it rolling.

Expat Contracts. They would like to review our expat contract terms, can you provide these or do I have them?

I will call you to discuss. I have another conference call with them tomorrow morning.

Message 147 of 167

My Contract

Sender	michelle.cash@enron.com
Recipients	['sheila.walton@enron.com']
File	cash-m/sent/255.

Sheila, do you think we should meet with Rick Buy about this? Or, should we talk about it without Rick and then respond accordingly? The bottom line is, that the non-compete probably should stay as is, even in the case of RAC. Let's discuss. Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

This message may contain confidential information that is protected by the attorney-client and/or work product privileges.
----- Forwarded by Michelle Cash/HOU/ECT on 06/23/2000 04:46 PM -----

Ted Murphy 06/21/2000 06:25 PM

To: Rick Buy, Sheila Walton/HOU/ECT@ECT, Michelle Cash/HOU/ECT@ECT cc: Subject: My Contract

I have reviewed the proposed contract and have the following comments:

1) The numbers appear acceptable but only in context with the rest of my comments 2) The language is such as to even give an illusion that I could act in an independent and objective manner 3) There is no consideration given for the obligations to not compete, solicit customers and employees, and speak harsh words 4) The length of the non-compete is ludicrous, i.e. it is so long that it makes no sense for Enron to pay someone for it and the marginal 6 months adds very little incremental protection to Enron from a competition perspective. This might be appropriate for a member of the Executive Committee.

Let me go into some more detail on the above. Point #2 All of Senior Management has told outside constituents (The Board, Shareholders, Investment Analysts, Rating Agencies, Regulatory Agencies, Banks and Counterparties) that the RAC Group is independent of the Business Units. That is, given that our job is to provide objective analysis of the business activities, it has provided great comfort to these interested parties that our judgment is not influenced by the people who are taking risk on behalf of the firm. Individual compensation is the foundation of this independence. These parties have made judgments to provide capital (dollar or otherwise) to us based on the knowledge that this group in this independent configuration exists and is effective. It has been specifically cited in reports as a strength and we are asked to make dozens of presentations each year to that effect. This is especially true in the Market Risk function because, unlike other transactions in the firm, there is no analysis and approval chain for risk taking other than coarse buckets and the valuation, direction, and volatility are so opaque. Independence is a cornerstone of the G-30 recommendations on derivatives. I

believe that these parties are much more concerned with what they can't see as opposed to what they can. I believe that our claim to have an independent function would be jeopardized if my bonus were a function of earnings targets and a PRC full of trading MD's. This should be a simple guaranteed minimum.

Point #3 If Enron wants the right to keep me on the shelf for up to 12 months, then Enron needs to pay for it. While I understand that sign on bonuses and retention bonuses are discouraged, I have firm evidence that low level commercial people are receiving both without any senior management approval. The amount should approximate the market price for the job (all in) for the period of the non-compete. This follows to point #4 - I don't expect anyone to pay me such additional amounts equal to my "target" compensation for 12 months (\$500,000!!!!). The right answer is to shorten the non-compete to a maximum of 6 months and pay me for that. I think that it would be equally stupid for Enron to not have the right to put me on the shelf for a considerable period of time given that I have and must continue to have complete access to all positions, p&l and the underlying contracts. I would consider giving Enron the option (for a smaller premium) to have me non-compete which, if exercised, would trigger a larger payment.

There are some other smaller points that I have discussed with Sheila Walton which can be addressed later.

Please give your consideration to these items asap as I my old contract has expired.

Ted

Message 148 of 167

Overtime Calculations

Sender	michelle.cash@enron.com
Recipients	["david.o'dell@enron.com", 'diane.taylor@enron.com']
File	cash-m/all_documents/769.

Here, at last, is the email response to the OT questions. I haven't had a chance to study it, but I am sending it "hot off the press" upon receipt by me.

Let's discuss if there are any problems.

Michelle

Michelle Cash Enron North America Corp. 1400 Smith Street, EB 3823 Houston, Texas 77002 (713) 853-6401
michelle.cash@enron.com

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----- Forwarded by Michelle Cash/HOU/ECT on 06/21/2000 04:14 PM -----

"Thomson, Mary Lee" <MLThomson@LITTLER.com> 06/21/2000 04:06 PM

To: "'Michelle Cash'" <michelle.cash@enron.com> cc: "Notestine, Kerry" <KNotestine@littler.com> Subject: Overtime Calculations

As we discussed on the telephone last week, the federal Fair Labor Standards Act and Department of Labor regulations prescribe the calculation of the regular rate of pay for overtime pay calculation. Shift differentials and other adjustments for working particular hours or on particular tasks are included in the regular rate of pay. If, as set forth in the e-mail forwarded to me from Kerry, an employee is paid a shift differential for night shift work, that differential becomes part of the regular rate of pay for the night shift work. If the same employee rotates between day and night shifts, she/he will be working at two different rates of pay. This is acceptable but poses special issues for the calculation of overtime.

Federal law permits two methods of calculating overtime for employees who work at two (or more) different regular rates of pay. Employers may use either a weighted average (29CFR 778.115) or a rate-in-effect (29CFR 778.419) calculation.

I. Weighted Average Calculation

This calculation involves add multiplying the number of hours worked in a workweek at rate 1 times rate 1 and adding the sum to the number of hours worked at rate 2 times the number of hours worked at rate 2. The sum is then divided by the total number of hours worked to obtain the weighted average regular rate paid for each hour worked. Overtime premiums of 1/2 the weighted average regular rate are then paid to bring the overtime rate to 1.5 times the weighted average regular rate. If, as in California, double time rates apply, the premium would be one times the weighted average regular rate.

Example:

Employee works four 8-hour day shifts at \$10 per hour and two 8-hour night shifts with a shift premium of \$1 per hour within the same workweek.

The weighted average calculation would be:

32 (hours) times 10 (dollars) plus 16 (hours) times 11 (dollars) = 496 (dollars)

496 (dollars) divided by 48 (hours) = \$10.33 (the weighted average regular rate)

1/2 of \$10.33 = \$5.17 (the additional overtime premium due for each overtime hour worked).

The weekly pay for this employee would be:

\$584.00 for straight time \$ 41.36 for overtime premium or

\$625.36 for the week.

2. Rate-in-effect With this method, the overtime pay is calculated at the rate in effect at the time the overtime is worked.

In the above example, if the last 8 hours of the week were worked on a day shift, the overtime rate would be 1.5 x \$10 or \$15 and the employee would be entitled to \$120 in overtime pay. If the last shift was worked on the night shift, the overtime rate would be 1.5 x \$11 or \$16.50 and the employee would be due \$130 in overtime pay.

Please note: These are the federal standards. State law must also be considered, since the employee is entitled to the most favorable provision if there is a conflict. For example, California does not permit the use of the rate-in-effect method; employees who work at different rates must be paid on the weighted average overtime pay calculation.

I hope this is helpful. Please do not hesitate to call if you questions or need clarification. Mary Lee Thomson Sacramento, CA

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To reply to our email administrator directly, send an email to postmaster@littler.com

Littler Mendelson, P.C. <http://www.littler.com>

Message 149 of 167

FW: Legal Question about Removing People from

Sender	michelle.cash@enron.com
Recipients	['alan.aronowitz@enron.com']
File	cash-m/sent_items/108.

Alan,

I understand that you have approved the request below. Is this because they are WRA personnel?

Thanks.

Michelle -----Original Message----- : High

Hi Michelle, please see below. Should I just take this for face value or inquire as to why? I've only been asked to take off 1 person for harrasment before. This just seems strange getting a list of people without any explanation.

-----Original Message-----

From: Deleon, Roberto Sent: Thu 6/7/2001 3:58 PM To: Schultea, Kathryn Cc: Subject: Removal from People/Expert Finder

Kathryn,

I need to have the following individuals removed from both People & Expert Finder. Jeff Jones at HRGIM informs me that you are the contact to have this done.

Users Name Phone Number Rick Boehm 713-751-7945 Dan Orbeck Jr 713-654-0197 Ken Kooser 713-654-4039 Don Chancey 713-654-4032 Angela J Wingo 713-751-7925 John F Anderson 713-853-3188 Jeremy Waggenspack 713-853-6161 Brian Mihura 713-654-4032 Junichi Sugiura 713-853-6161

This request has been approved by Alan Aronowitz (EN-Legal Emerging Markets)

Regards Roberto DeLeon Manager, IT Security & Controls

Message 150 of 167

RE: Legal Question about Removing People from

Sender	michelle.cash@enron.com
Recipients	['kathryn.schultea@enron.com']
File	cash-m/sent_items/112.

Kathy, we should go ahead and remove these people. They are employed by WRA, which is in a transition process on a confidential matter. Please remove them. Thanks. Michelle

-----Original Message-----

From: Schultea, Kathryn Sent: Saturday, June 16, 2001 12:31 AM To: Cash, Michelle Subject: Legal Question about Removing People from Peoplefinder/Expertfinder Importance: High

Hi Michelle, please see below. Should I just take this for face value or inquire as to why? I've only been asked to take off 1 person for harrasment before. This just seems strange getting a list of people without any explanation.

-----Original Message-----

From: Deleon, Roberto Sent: Thu 6/7/2001 3:58 PM To: Schultea, Kathryn Cc: Subject: Removal from People/Expert Finder

Kathryn,

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Users Name Phone Number Rick Boehm 713-751-7945 Dan Orbeck Jr 713-654-0197 Ken Kooser 713-654-4039 Don Chancey 713-654-4032 Angela J Wingo 713-751-7925 John F Anderson 713-853-3188 Jeremy Waggenspack 713-853-6161 Brian Mihura 713-654-4032 Junichi Sugiura 713-853-6161

This request has been approved by Alan Aronowitz (EN-Legal Emerging Markets)

Regards Roberto DeLeon Manager, IT Security & Controls

Message 151 of 167

Ecogas COBRA

Sender	kelly@ecogas.com
Recipients	['steve@ecogas.com', 'michelle.cash@enron.com', 'marie@ecogas.com']
File	cash-m/all_documents/675.

Michelle,

Thanks for forwarding the COBRA e-mails to me. After reading them, I am confused as to where we stand. The people listed below are on Ecogas COBRA and I suspect that they have not been presented with the option of switching to Enron COBRA. At the very least, I do not think it has been presented to them in the light that Ecogas COBRA will soon be nonexistent. Could someone in your shop send (or resend) COBRA packets to the people listed below? I will send a letter to the same list to let them know that they need to switch or lose coverage after January 1, 2001. This may be duplicating earlier efforts, but I want to make sure that no one falls through the cracks after we dissolve Ecogas.

Thanks, Kelly Mahmoud

Alan Erwin 3 Jeffrey Cove Austin, TX 78746

Robert P. Green 15619 Domart Ave. Norwalk, CA 90650

Thomas Hall 1815 W. 37th St. Austin, TX 78731

Donald J. Hazen 600 Muro Cr. Placentia, CA 92870-4275

Teddy Ogden 16 Moonstone Ct. O'Fallon, MO 63366

Michael Story 202 King Dr. Columbus, TX 78934

Message 152 of 167

RE: Immigration forms and restatement of earnings

Sender	bobbi.tessandori@enron.com
Recipients	['lizzette.palmer@enron.com', 'Palmer', 'michelle.cash@enron.com', 'Lizzette']
File	cash-m/deleted_items/421.

I'll check.

"Everything comes to those who hustle while he waits." -Thomas Edison Best Regards, Bobbi International Human Resources tel: 713 345 2809 fax: 713 646 5969 work space: EB 3658-b email: bobbi.tessandori@enron.com -----Original Message----- From: Cash, Michelle Sent: Monday, November 19, 2001 11:43 AM To: Tessandori, Bobbi; Palmer, Lizzette Subject: RE: Immigration forms and restatement of earnings

What does T&F recommend?

-----Original Message-----

From: Tessandori, Bobbi Sent: Mon 11/19/2001 10:39 AM To: Cash, Michelle; Palmer, Lizzette Cc: Subject: RE: Immigration forms and restatement of earnings

Ladies,

I failed to mention that we have paperwork pending signature, waiting on a response. If a quick response of continue "as is for now" works for me.

"Everything comes to those who hustle while he waits." -Thomas Edison Best Regards, Bobbi International Human Resources tel: 713 345 2809 fax: 713 646 5969 work space: EB 3658-b email: bobbi.tessandori@enron.com

-----Original Message-----

From: Tessandori, Bobbi Sent: Monday, November 19, 2001 7:55 AM To: Cash, Michelle Cc: Palmer, Lizzette Subject: Immigration forms and restatement of earnings

Michelle,

On the INS forms, there are two places which refer to:

Gross Annual Income: \$100 billion Net Annual Income: \$979 million

Currently when Tindall & Foster are completing the forms they use our annual report to complete these. Would you advise if we should revised these with the recent events and include the appropriate statement/restatement with the annual report we submit? Or continue utilizing only the annual reports and the figures held within?

Thank you.

"Everything comes to those who hustle while he waits." -Thomas Edison Best Regards, Bobbi International Human Resources tel: 713 345 2809 fax: 713 646 5969 work space: EB 3658-b email: bobbi.tessandori@enron.com

Message 153 of 167

RE: Letter to Matthew Hartzell

Sender	carol.st.@enron.com
Recipients	['legal <.schuler@enron.com>', 'michelle.cash@enron.com']
File	cash-m/deleted_items/222.

Michelle; I just wanted you to know that the transaction that I worked on with Joyce was a purchase of chips from Smith @ associates. I believe you have the documentation on this.

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Sweet, Twanda On Behalf Of Cash, Michelle Sent: Friday, October 19, 2001 2:38 PM To: Schuler, Lance (Legal); St. Clair, Carol Subject: Letter to Matthew Hartzell Sensitivity: Confidential

Attached is a draft of the letter to Matthew Hartzell, Smith & Associates. Please review and provide me with any comments that you may have.

<< File: 5719mhc.doc >>

Message 154 of 167

FW:

Sender	michelle.cash@enron.com
Recipients	['lizzette.palmer@enron.com', 'diane.goode@enron.com']
File	cash-m/sent_items/46.

-----Original Message-----

From: St. Clair, Carol Sent: Tuesday, October 02, 2001 3:01 PM To: Cash, Michelle Subject: FW:

Michelle: Is this on your form?

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 8774545506 (pager) 281-890-8862 (home fax) carol.st.clair@enron.com

-----Original Message-----

From: Russ, Mark Sent: Tuesday, October 2, 2001 2:55 PM To: St. Clair, Carol Subject:

Carol,

I have a straight up deal with a consultant to work for me full time at \$7500/month plus approved expenses. His scope of work is identical to Eric Raab's plus add "focus on developing the OTC market and wholesale carrier relationships that result in increasing the number of transactions and volume of traffic, particularly with buyers". He will also focus on building direct routes, our VOIP strategy and other trading oriented transactions.

He will report to me. It is month to month, 15 days notice to terminate contract.

I'd like someone to prepare a draft of this so I can review and then forward it to Mr. Omar Valdez for his review.

Thank you.

Message 155 of 167

AMPS Assignment

Sender	michelle.cash@enron.com
Recipients	['esholeen@bracepatt.com', 'twanda.sweet@enron.com']
File	cash-m/sent/545.

could you please forward to Scott Miller (email below) our short confidentiality, non-solicitation and non-compete agreement? Thanks a lot. Michelle

----- Forwarded by Michelle Cash/HOU/ECT on 12/11/2000 05:11

PM -----

"Scott Miller" <smiller@bracepatt.com> on 12/10/2000 01:40:07 PM To: <vwesterhaus@shb.com> cc: "W. Cleland Dade" <cdade@bracepatt.com>, <dan.lyons@enron.com>, <michelle.cash@enron.com> Subject: AMPS Assignment

Attached is a marked version of the Assignment Agreement with our initial comments. In addition to the comments marked, we also have a few other questions.

Although we do not object to it being mentioned twice, why is the lease assigned pursuant to this Assignment Agreement when there is also a separate lease assignment agreement?

How was the employment of the persons listed on Exhibit A to the Assignment Agreement effected? Were they terminated or did they resign? Is there any documentation regarding this?

We may have further comments after review by Enron and our labor attorney. Please call Cle at (713) 221-1314 or me at (713) 221-1131 with your comments.

Thanks.

Scott L. Miller Bracewell & Patterson, L.L.P. Phone (713) 221-1131 Fax (713) 222-3242 email: smiller@bracepatt.com

- Redline AMPS Assignment Agreement.doc

*Message 156 of 167***RE: Immigration forms and restatement of earnings**

Sender	bobbi.tessandori@enron.com
Recipients	['lizzette.palmer@enron.com', 'michelle.cash@enron.com']
File	cash-m/deleted_items/393.

Ladies,

I failed to mention that we have paperwork pending signature, waiting on a response. If a quick response of continue "as is for now" works for me.

"Everything comes to those who hustle while he waits." -Thomas Edison Best Regards, Bobbi International Human Resources tel: 713 345 2809 fax: 713 646 5969 work space: EB 3658-b email: bobbi.tessandori@enron.com

-----Original Message-----

From: Tessandori, Bobbi Sent: Monday, November 19, 2001 7:55 AM To: Cash, Michelle Cc: Palmer, Lizzette Subject: Immigration forms and restatement of earnings

Michelle,

On the INS forms, there are two places which refer to:

Gross Annual Income: \$100 billion Net Annual Income: \$979 million

Currently when Tindall & Foster are completing the forms they use our annual report to complete these. Would you advise if we should revised these with the recent events and include the appropriate statement/restatement with the annual report we submit? Or continue utilizing only the annual reports and the figures held within?

Thank you.

"Everything comes to those who hustle while he waits." -Thomas Edison Best Regards, Bobbi International Human Resources tel: 713 345 2809 fax: 713 646 5969 work space: EB 3658-b email: bobbi.tessandori@enron.com

*Message 157 of 167***Re: Benefit/Tax Meeting - Project Crane**

Sender	michelle.cash@enron.com
Recipients	['mark.greenberg@enron.com']
File	cash-m/all_documents/38.

Thanks, I'll be there. Michelle

Mark Greenberg@ENRON 12/05/2000 11:05 AM To: Michelle Cash/HOU/ECT@ECT cc: Subject: Re: Benefit/Tax Meeting - Project Crane

Michelle -

The meeting is scheduled for today at 4:00 in EB38C1. Rick will be calling in to the meeting.

Mark Senior Counsel, ENA Phone: 713-345-8897 Facsimile: 713-646-3940 E-Mail: Mark.Greenberg@enron.com

Michelle Cash@ECT 12/04/2000 09:52 PM

To: Mark Greenberg/NA/Enron@ENRON cc: Subject: Re: Benefit/Tax Meeting - Project Crane

Mark, If this hasn't already taken place, I'd like to participate. My assistant, Twanda Sweet, should have my calendar. Also, FYI, Rick JOHNSON will be in town at the end of the week if you want a face-to-face. MHC

Mark Greenberg@ENRON 12/03/2000 01:11 PM To: Dolores Lenfest/HR/Corp/Enron@ENRON, Jeff Blumenthal/HOU/ECT@ECT, Rick Johnson/HR/Corp/Enron@ENRON cc: Joya Davis/HOU/ECT@ECT, Morris Richard Clark/HOU/ECT@ECT, Jay Boudreaux/HOU/ECT@ECT, Gustavo Junqueira/HOU/ECT@ECT, Michelle Cash/HOU/ECT@ECT Subject: Benefit/Tax Meeting - Project Crane

Dee, Jeff, Rick -

I need to set up a meeting between the benefit group and the tax people to walk through the structure we want for the purchase of Project Crane. We made a good bit of progress in Toronto over Thursday and Friday on the tax structure, but clearly indicated the need to confirm all of this in relation to benefit issues. I would like to have the meeting on Monday sometime, but need to coordinate schedules. As soon as possible, please advise me of your respective availabilities so that a meeting can be scheduled, keeping in mind the need to have Rick involved.

Thanks.

Mark Senior Counsel, ENA Phone: 713-345-8897 Facsimile: 713-646-3940 E-Mail: Mark.Greenberg@enron.com

Message 158 of 167

RE: Cell phone

Sender	michelle.cash@enron.com
Recipients	['jeff@smartprice.com', 'wcash@mindspring.com']
File	cash-m/all_documents/752.

Jeffrey,

We think that we will be in Austin from Sunday to Tuesday. We made plans yesterday to spend Sunday evening with some friends from law school. At some point, I will have lunch with Maria Morris Stewart (my roommate from Tulane) who lives in Austin. We still are free on Monday evening, if that works for you. I think that we will stay at that Hawthorne Suites on MoPac, but we may splurge for the Four Seasons -- no firm plans as of yet!!

Of course, Trey has to have his Hyde Park fix at soem point as well.

Let me know your plans. Sooner would be better, because we are trying to finalize things.

Michelle

Jeff Hoogendam <Jeff@SmartPrice.com> 05/15/2000 03:18 PM

To: "'wcash@mindspring.com'" <wcash@mindspring.com> cc: Michelle Cash/HOU/ECT@ECT Subject: RE: Cell phone

Trey- Here are the new numbers. Michelle mentioned that you will be visiting Austin soon. When? Let us know so we can plan something.

Thanks for the updated info.

Thanks, JP

Jeff Hoogendam - President & CEO SmartPrice.com, Inc. "Changing the way the world buys telecom." T: 512.342.8800, x3008 F: 512.342.1072 www.smartprice.com

-----Original Message-----

From: Trey Cash [mailto:wcash@houston.rr.com] Sent: Saturday, May 13, 2000 7:51 AM To: 'Jeff Hoogendam' Subject: RE: Cell phone

Of course, I should also have asked for your new work number -- the last number I have is for the old VC firm.

Would you please send that to me as well?

FYI: My new work phone: 713-853-6935 New work e-mail: trey.cash@enron.com

Thanks,

Trey

-----Original Message-----

From: Jeff Hoogendam [mailto:Jeff@SmartPrice.com] Sent: Thursday, May 11, 2000 10:12 PM To: 'wcash@mindspring.com' Subject: RE: Cell phone

Trey- It's 512-695-1751. JPH

-----Original Message-----

From: Trey Cash [mailto:wcash@houston.rr.com] Sent: Thursday, May 11, 2000 9:06 PM To: 'Jeff Hoogendam' Subject: Cell phone

Can you send me your cell phone number again -- somehow we seem to have misplaced it.

Thanks!

Trey

Message 159 of 167

The fax

Sender	andrew.clark@weil.com
Recipients	['michelle.cash@enron.com']
File	cash-m/deleted_items/324.

I am going to leave the office shortly. In addition to sending the fax to the office (212.310.8995), where Mary Jean will be able to get it tonight, please send a copy to me at my home at 718.643.9434.

Thanks,

Drew

*****NOTE***** The information contained in this email message is intended only for use of the individual or entity named above. If the reader of this message is not the intended recipient, or the employee or agent responsible to deliver it to the intended recipient, you are hereby notified that any dissemination, distribution or copying of this communication is strictly prohibited. If you have received this communication in error, please immediately notify us by telephone (212-310-8000), and destroy the original message. Thank you.

Message 160 of 167

RE: Ship-to-Shore Information

Sender	lizzette.palmer@enron.com
Recipients	['michelle.cash@enron.com']
File	cash-m/deleted_items/378.

Thanks for the info. Hope I don't have to bug you.

Watch out for the drink special of the day; you get a fancy fluorescent drink glass, a paper umbrella, and cheap refills!

Happy Thanksgiving, Lizzette

-----Original Message-----

From: Cash, Michelle Sent: Sun 11/18/2001 1:19 PM To: Haedicke, Mark E.; Elbertson, Janette; Oxley, David; Clyatt, Julie; Sullivan, Kriste; Butcher, Sharon; Palmer, Lizzette Cc: Subject: Ship-to-Shore Information

As you know, I leave tomorrow for a cruise to Mexico with my family. I will be working from home in the morning (713-218-7155 or on my cell at 713-302-5522). The ship does not depart until about 6, so my cell should work in the afternoon.

While on board, I can be reached on ship-to-shore. The cost is \$9.50 per minute. The number is 1-877-225-7447. You must have the ship's name (Celebration) when you call.

I return to Galveston at 8 am on Saturday the 24th.

Thanks, and Happy Thanksgiving!

Michelle

Message 161 of 167

FW: comment

Sender	fran.mayes@enron.com
Recipients	['lizzette.palmer@enron.com', 'michelle.cash@enron.com']
File	cash-m/deleted_items/22.

-----Original Message-----

From: Mayes, Fran Sent: Thursday, October 18, 2001 11:02 AM To: Hope, Valeria A. Subject: comment Importance: High Sensitivity: Confidential

It has been brought to our attention that someone has written an offensive and inappropriate comment on the wall in the Men's restroom located at 4C. Security has been notified of the incident.

At Enron, every employee is expected to adhere to the Values that the Company has established. These values should govern the way we conduct ourselves with coworkers and customers. Employees are expected to be respectful, courteous and professional in all working relationships. Offensive and/or derogatory comments are unacceptable in this work place.

We want to be absolutely clear that this type of behavior will not be tolerated and is grounds for immediate termination.

Fran Mayes HR Manager Phone (713) 853-7211 Fax (713) 646-8100 Cell/Pager 713 875-3820 or 7138753820@messaging.nextel.com

Message 162 of 167

FW: Analyst & Associate Program Update

Sender	billy.lemmons@enron.com
Recipients	['mary.clark@enron.com', 'exec.jones@enron.com', 'kalen.pieper@enron.com', 'terrie.james@enron.com', 'michelle...']
File	cash-m/ethics_ljm_notre_dame/5.

fyi...this was sent to the a/a program earlier this afternoon....billy

-----Original Message-----

From: Livingston, Maxine E. On Behalf Of Lemmons Jr., Billy Sent: Friday, November 30, 2001 5:26 PM Subject: Analyst & Associate Program Update

I want to provide you with an update on current events and their potential effects on members of the Program.

As the business units make decisions about the future course of the company, members of the Program will be affected. Where positions are eliminated, individuals are being given consideration for other opportunities available within Enron. Any information communicated to you regarding elimination of your position by the business units will have been coordinated with the Program in advance, and will be definitive.

I know how anxious and frustrating these times are for everyone - they are for my team as well. The most accurate and timely internal source of information will be communication from the Enron Corp Office of the Chairman.

At this point, no one is certain what the future may bring regarding our careers at Enron. I do know for certain that each of you is here, because you were selected from "the very best of the best". I appreciate your continuing patience and efforts.

If you have any questions, please contact Ted Bland (35275), Terry Bosien (35230) or me (36671).

Message 163 of 167

RE: confidentiality agreement

Sender	michelle.cash@enron.com
Recipients	['diane.goode@enron.com']
File	cash-m/sent_items/145.

sounds good to me.

-----Original Message-----

From: Goode, Diane Sent: Thursday, July 26, 2001 12:49 PM To: Cash, Michelle Subject: RE: confidentiality agreement

I spoke with Catherine this a.m.. The vendor is actually a company called Bates Churchill. Williams offices at their facility. Catherine thought Bates Churchill had an agreement with us, but the company can't find it. I'm checking the vault, but don't expect to find one.

Should I just put together a consulting agreement and have Doug Williams sign the Confidentiality Agreement? Thanks.

-----Original Message-----

From: Cash, Michelle Sent: Thursday, July 26, 2001 12:22 PM To: Young, Kay; Goode, Diane Subject: RE: confidentiality agreement

It sounds like we are asking him to do it -- more like a consultant than it originally appeared. MHC

-----Original Message-----

From: Young, Kay Sent: Thursday, July 26, 2001 9:21 AM To: Goode, Diane Cc: Cash, Michelle Subject: FW: confidentiality agreement

Catherine's number is 55649. -----Original Message----- From: Culwell, Catherine Sent: Thursday, July 26, 2001 8:54 AM To: Young, Kay Subject: confidentiality agreement

Hi Kay,

Here is the information you requested. Enron has been asked to write a chapter for the Euro money book. We have hired Doug Williams to put this chapter together on Trading and Investment Perspectives. He will be interviewing several of our weather traders. Thank you for all your help.

Catherine

Douglas W. Williams Principal Lone Star Writers Group P.O. Box 7689 Houston, TX 77270

Physical address is 300 Reinicke, Houston, 77007.

Message 164 of 167

RE: ClickAtHome Order Verification

Sender	michelle.cash@enron.com
Recipients	['trey.cash@enron.com']
File	cash-m/sent_items/436.

Let's get with Tommy to expedite it, if you want. L, M

-----Original Message-----

From: Cash, Trey Sent: Tuesday, November 06, 2001 11:08 AM To: Cash, Michelle Subject: RE: ClickAtHome Order Verification

The Dell website estimates a 12/3/01 shipping date (when it leaves their office) -- I am shocked it would take a month to produce!

-----Original Message-----

From: Cash, Michelle Sent: Tuesday, November 06, 2001 10:41 AM To: Cash, Trey Subject: FW: ClickAtHome Order Verification

FYI. Michelle

-----Original Message-----

From: AvenueB2E <enron@avenueb2e.com>@ENRON Sent: Tuesday, November 06, 2001 10:38 AM To: Cash, Michelle Subject: ClickAtHome Order Verification

The ClickAtHome Database shows that you have placed an order with Dell Computer with an order number of 688296201. Please read below for instructions:

1. If this is correct, enjoy your computer! You can check your order status by clicking here:
<http://wwwapp.us.dell.com/us/en/ordstat/index.asp>

**** For questions about your order/changes/problems, call 1-866-220-3355 ****

2. If you did NOT place an order with Dell for the ClickAtHome program, please email enron@avenueb2e.com or call 713-895-9001 to report the incorrect order on your behalf.

3. DELL OFFERS A 30 DAY NO QUESTIONS ASKED RETURN POLICY. THE 30 DAYS BEGINS FROM THE DAY YOUR PC IS SHIPPED FROM DELL. YOU WILL NOT BE ABLE TO RETURN YOUR PC AFTER THE 30 DAY PERIOD HAS PASSED. IF FOR ANY REASON, YOU BELIEVE YOU MAY NEED TO RETURN YOUR PC (INCLUDE FOR REPAIR OR SERVICE ISSUES), YOU MUST CALL DELL AT 1-866-220-3355 BEFORE THE END OF THE 30 DAY PERIOD AND RECEIVE A RETURN AUTHORIZATION NUMBER. YOU MUST HAVE THIS NUMBER BEFORE THE END OF THE 30 DAYS.

Thank you!

ClickAtHome Team!

Message 165 of 167

RE: Former HPL Employees

Sender	michelle.cash@enron.com
Recipients	['exec.jones@enron.com', 'fran.mayes@enron.com', 'david.oxley@enron.com', 'kalen.pieper@enron.com', 'neil.davi...']
File	cash-m/sent_items/107.

Sure, sounds like a good plan to put the flag in Personic to discuss the time limitations. Other than the specific gas-related folks, I am not aware of a non-solicit of AEP employees. I'll double check to confirm, though. MHC

-----Original Message-----

From: Davies, Neil Sent: Friday, July 20, 2001 8:38 AM To: Mayes, Fran; Cash, Michelle Cc: Jones, Robert W.- HR Exec; Oxley, David; Pieper, Kalen Subject: RE: Former HPL Employees Importance: High

Have told recruiters

Will get all their resumes into personic (if not already in their) and put a precautionary note against their record. Michelle is this ok ?

Have you or Michelle been able to find out if we can hire from AEP (non ex HPL employees ?)

Thanks

Neil

-----Original Message-----

From: Mayes, Fran Sent: Fri 7/20/2001 8:04 AM To: Davies, Neil Cc: Jones, Robert W.- HR Exec; Oxley, David; Pieper, Kalen Subject: Former HPL Employees

Attached is the final list of employees who transferred to AEP. If any of these employees are considered for re-hire, please ensure

that the following procedure is followed:

1. Any former HPL rehired into Enron must come in via a resume submitted to an open posted position. (i.e. No slam dunks)
2. The candidate should be interviewed with other qualified candidates. (i.e. No single candidate on the job applicant summary).
3. If the candidate is offered a position, it cannot be at a higher level and/or higher salary (i.e Inducement). FYI, all HPL employees received an increase when they started at AEP. The exception to this is if they are being rehired into a higher level position.
4. All re-hires must sign a letter stating they were not solicited by Enron to return.

Please share this information with all recruiters, staffers and generalists.

<<HPL_Rehire_list.xls>>

Fran Mayes HR Manager Phone (713) 853-7211 Fax (713) 646-8100 Cell/Pager 713 875-3820 or 7138753820@messaging.nextel.com

Message 166 of 167

iGeneration: Meeting Action Items	
Sender	ryan.seleznov@enron.com
Recipients	['michelle.cash@enron.com', 'neil.davies@enron.com']
File	cash-m/notes_inbox/2.

Michelle, Neil will be following up with you regarding the non disclosure agreement. Don't know if you have had a chance to review.

Thanks, Ryan ----- Forwarded by Ryan Seleznov/Corp/Enron on 11/15/2000 09:17 AM -----

Chuck Bond <cbond@igeneration.com> on 11/15/2000 08:44:29 AM To: ""ryan.seleznov@enron.com""
<ryan.seleznov@enron.com> cc:

Subject: iGeneration: Meeting Action Items

Hey Ryan,

Here is the information we discussed in our last meeting regarding an iGeneration Internet professional staffing solution for Enron. I know you are in the process of getting the NDA completed, but I don't want our progress to be held up by the legal process.

In our last meeting, there were several documents shown that you had not seen in the past. Attached, you will find the documents you requested.

Business Model Overview The "business model.ppt" file contains the slides describing how iGeneration is creating web professionals and the web job role certifications/skill sets. Please let me know if you have any questions.

Project Manager Resource As an enterprise partner, a Project Manager will be assigned to Enron. This person is a resource of iGeneration and will be responsible for implementing the solution. The "project manager.doc" file should provide you with an overview of the project manager's roles and responsibilities.

Pricing Model The "iGeneration TalentLink Pricing Grid.doc" will outline standard pricing and features model. Please keep in mind, the pricing model does not account for training, so modifications will have to be made as we progress.

Skill Set Analysis We have reviewed all of the web related job reqs listed on Enron's career web site, and aligned them to iGeneration certifications. It is quite compelling how the two align. I look forward to sharing this information with you.

I know you wanted to see a detailed version of our certification skill sets. The files are quite large, so I only included a couple. Please let me know if you would like any more.

If there is additional information you would like to see, please let me know. I will call you on Friday to discuss scheduling our next meeting. Will you be available for a call? And if so, what time will be best for you.

Thanks,

Charles Bond Regional Manager, TalentLink Partnerships iGeneration, Inc 678 576 4387 (cell) 770 476 5473 (office) 770 476 3167 (fax) cbond@igeneration.com

<<Skillsmap-17 tracks final>> <<business model.ppt>> <<Project Manager.doc>> <<iGeneration TalentLink Pricing Grid.doc>> <<FAppDeveljava.pdf>> <<Fcreativeprod.pdf>>

- Skillsmap-17 tracks final - business model.ppt - Project Manager.doc - iGeneration TalentLink Pricing Grid.doc - FAppDeveljava.pdf - Fcreativeprod.pdf

Message 167 of 167

RE: HR Reminder - Fair Labor Standards Act (FLSA)

Sender	michelle.cash@enron.com
Recipients	['lizzette.palmer@enron.com', 'felecia.acevedo@enron.com', 'sharon.butcher@enron.com']
File	cash-m/sent_items/58.

Great idea to put this out there. FYI, I have arranged for Jack Wisdom to provide some training on wage and hour law issues in the next few weeks. I'll keep you posted on the status of that. Michelle

-----Original Message-----

From: Acevedo, Felecia Sent: Tuesday, October 16, 2001 7:14 AM To: Cash, Michelle; Palmer, Lizzette; Sullivan, Kriste
Subject: FW: HR Reminder - Fair Labor Standards Act (FLSA)

fyi...

-----Original Message-----

From: Butcher, Sharon Sent: Monday, October 15, 2001 7:39 PM To: Acevedo, Felecia Subject: RE: HR Reminder - Fair Labor Standards Act (FLSA)

Dear Felecia:

This is a great HR Reminder. I recommend that you send it to Michelle Cash, Lizzette Palmer, and Kriste Sullivan.

Thanks.

Sharon

-----Original Message-----

From: Acevedo, Felecia Sent: Monday, October 15, 2001 9:12 AM To: Walton, Sheila; Hill, Jo Ann; Pierce, Shelly; Migliore, Todd; McSherry, Brad; Bosien, Teresa; Taylor, Diane; Fincher, Wendy; Alvarez, Irma Cc: Butler, Sam; Carrera, Susan; Ward, Cindy R.; Aguilar, Christa; Butcher, Sharon; Galloway, Sonja; Cox, Shirley Subject: HR Reminder - Fair Labor Standards Act (FLSA)

To Corporate HR Generalists, Compensation and Payroll

Periodically, I plan to communicate refreshers on the FLSA and its requirements for both exempt and non-exempt employees. For this communication, I would like to focus on compensatory time off. While Enron does not have a formal written policy on compensatory time off, we must not forget the regulatory obligations for administering this provision of the FLSA. I encourage each of you to share this information with your client groups.

I recently overheard a conversation in the elevator where an employee was talking about all the comp time they had accrued and how they planned to take it before yearend. Several immediate and simultaneous thoughts went through my head -- 1) is this an exempt or nonexempt employee, 2) where is this being recorded, and 3) what if this employee gets redeployed/termed or transfers jobs--would they expect to take this time off or in the case of a nonexempt employee be paid for it? Unfortunately, we have no way to validate comp time since we have no tracking mechanism for this. In the case of a nonexempt employee this could become a very risky situation.

Compensatory Time Off for Non-Exempt Employees

Compensatory time off for non-exempt employees must be used in the same pay period in which it is accrued. If an employee works overtime in a workweek which falls at the beginning of a pay period, then the employee can take time off with pay in a workweek later in the same pay period. If an employee cannot use all of the accrued comp time by the end of the pay period, then the employee must be paid for the comp time in the paycheck for the pay period. Any comp time which is used by nonexempt employees must be provided at the rate of one and one-half hours off with pay for every overtime hour which is worked. There is no cost savings in the use of comp time.

Compensatory Time Off for Exempt Employees

If an employer promises comp time to an overtime exempt employee, then the employee may be able to enforce the promise of additional compensation even though the employee was not entitled to overtime pay. Enron's Overtime Pay and Reimbursement Policy states "Exempt employees are not eligible for overtime pay." Responding to an exempt employee's claim that he or she is entitled to comp time is often difficult because records are not generally kept of exempt employee's hours of work--(I plan to devote my next communication to tracking an exempt employee's hours worked as this is often an area of confusion). The provisions of comp time may also adversely affect the "salary" which must be paid for white-collar employees to be overtime exempt.

I hope this communication will be helpful and I welcome any feedback or suggested topics you may want additional information about. Please feel free to pass this on to anyone I overlooked in your respective groups.

Felecia Acevedo Director, Corporate Compensation (713) 853-9815 Phone (713) 646-2113 Fax (713) 557-5921 Cell felecia.acevedo@enron.com